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WORK QUALITY STANDARDS

1.0 PERFORMANCE OF WORK

1.1 The Contractor will carry out and complete the Work:

1.1.1 in accordance with the provisions of this Contract, the Project Requirements and Good Industry Practice to ensure that the Work is in compliance with the Project Requirements and Good Industry Practice;

1.1.2 not used

1.1.3 ensuring that Contractor and its Subcontractors perform their obligations in a manner consistent with the Third Party Agreements;

1.1.4 taking all necessary steps and acts to facilitate the discharge by Company and Owner of their obligations to the Project Third Parties under Third Party Agreement to the extent that such obligations are specifically identified in Part I;

1.1.5 in accordance with the provisions of Attachment 9 (*Project and Construction Management*) and the procedures set out in the Project Management Plan and the Quality Management Plan;

1.1.6 using Reasonable Efforts to enable the Revenue Service Commencement Date for each Commuter Rail Project to occur on or before the Revenue Service Target Date for such Commuter Rail Project;

1.1.7 to enable the Revenue Service Commencement Certificate for each Commuter Rail Project to be obtained on or before the Revenue Service Deadline Date;

1.1.8 using Reasonable Efforts to enable Final Completion for each Commuter Rail Project to occur on or before the date falling six months after the Revenue Service Commencement Date for such Commuter Rail Project;

1.1.9 to enable the Final Completion Certificate for each Commuter Rail Project to be obtained on or before the Final Completion Deadline Date; and

1.1.10 to enable each Car, when commissioned, to operate so as to comply with the Contract.

2.0 WARRANTIES

2.1 Contractor warrants to Company and Concessionaire that the Work shall comply strictly with the provisions of this Contract and all specifications, drawings and standards referred to in this Contract or thereafter furnished by Company, and that the Work shall be first-class in every particular and free from defects in materials and workmanship and in any design or engineering furnished by Contractor. Contractor warrants Company and Concessionaire that all materials, equipment and supplies furnished by Contractor for the Work shall be new, merchantable, of the most suitable grade and fit for their intended purposes. Without limitation of any other rights or remedies of Company or Concessionaire, if any defect in the Work in violation of the foregoing warranties arises within the periods set forth below, Contractor shall, upon receipt of written notice of such defect, promptly furnish, at no cost to Company or Concessionaire, design and engineering, labor, equipment and materials necessary to repair, replace or remedy such defect and cause the Work to comply fully with the foregoing warranties.

2.2 Contractor's warranties set forth in Section 2.1 shall apply until the end of the following periods: for Car Structure and Truck Frame, 15 years from Final Acceptance; everything else that is part of the Work, 3 years from Final Acceptance (each such period, a “Warranty Period”). Any period wherein the Work is not available for use due to defects in materials, workmanship or engineering furnished by Contractor shall extend the warranty period by an equal period of time.

2.3 Design and engineering, labor, equipment and materials furnished by Contractor pursuant to Section 2.1 to repair, replace or remedy defects shall be warranted by Contractor in accordance with the warranties set forth in Section 2.1 for a period of eighteen (18) months from the date of completion of the correction, or for the remainder of the warranty period set forth in Section 2.2 above, whichever is longer.

2.4 In the event Contractor shall have been notified of any defects in the Work in violation of Contractor's foregoing warranties and shall fail to promptly and adequately correct such defects, Company shall have the right to correct or to have such defects corrected for the account of Contractor, and Contractor shall promptly pay Company the costs incurred in correcting such defects.

2.5 Warranty work will be acknowledged and monitored by the parties using a work order system established between Contractor and Company. It is contemplated that Contractor will perform all warranty work hereunder. The Contractor shall not perform any warranty work on the property of Company without the express consent of the Company.

2.6 If Contractor is in default and cannot for whatever reason perform its warranty obligations, Company may do so at Contractor’s expense. Any warranty work

performed by Company's forces shall not be construed to invalidate Contractor's warranties and obligations contained in this Section 2.0 Warranties or any of Contractor's other obligations contained in this Contract.

2.7 At no cost to Company, the Contractor shall provide all necessary fixtures, jigs, special tools, and diagnostic test equipment (excluding production equipment) in adequate quantities to perform the warranty work. All such equipment shall be owned by Company at the end of the applicable Warranty Period. The Contractor shall provide all materials, components, equipment, apparatus, training, supervision, and inspection to perform the warranty work. The Contractor will provide all labor to perform all retrofit programs, correction of fleet defects, and reliability program corrective actions.

2.8 Company will send the Contractor a written notice of observed defects or failures with reasonable promptness, but in any event no later than thirty (30) days after observing the defect or failure. Unless otherwise directed in said notice, the Contractor shall commence corrective work no later than two (2) working days following notification by the Company of the defect or failure. The Contractor shall diligently pursue such corrective work to completion. To prevent delays and disruption to Project operations, Company shall have the right, when practical and feasible in its opinion, to continue use of any such goods, equipment, subsystems and work deemed defective or unsatisfactory, until such can be taken out of service to allow the corrective work to be undertaken by the Contractor.

2.9 In the event that a defect or failure, in the opinion of Company, constitutes an emergency which could jeopardize or impair the operations and schedules of revenue service, Company will provide the Contractor both verbal and written notice thereof and the Contractor shall commence corrective work within twenty-four (24) hours after receipt of written notice. Nothing herein shall be construed as preventing Company's forces from immediately commencing corrective work, provided all such corrective work is performed in accordance with the Operations and Maintenance Manuals furnished by the Contractor. The Contractor shall reimburse Company for costs of labor, fringe benefits and overhead at the labor rates in effect as stated hereinabove when such work is performed by Company. Company shall advise the Contractor of the current rates. Any corrective work by Company's forces shall not be construed to invalidate Contractor's warranties and other provisions contained in this section.

2.10 Under such emergency conditions, the Contractor, with approval of the Company, may utilize spare parts from Company's spare part inventory, provided that Contractor agrees to replace each and every spare part so used under terms within the time period to be prescribed in writing by the Company. The applicable warranty provisions described in this Section 2.0 shall be applicable to each spare part replaced by the Contractor for parts used.

2.11 During the Warranty Period, the Contractor shall maintain, at a minimum, one (1) qualified representative to be available for the corrective work under the warranty. The Contractor's representative shall be a qualified field engineer, knowledgeable in the repair and maintenance of the Cars, and shall be located at the CRMF. The field engineer shall be available on twenty-four (24) hours notice until the expiration of the Warranty Period for all Cars and the completion of all warranty work on the Cars. The field engineer shall follow up on all warranty claims and shall assist the Company in the resolution of any maintenance problems. Should the Contractor contest any warranty claim, the field engineer and Company shall make a joint inspection, with a written report made by the field engineer to Company concerning the Contractor's proposal to resolve the claim. Company shall review the proposal and if found acceptable, the Contractor shall proceed in correcting the defective work. If Company does not accept the proposal, the Contractor shall proceed in accordance with Company's instructions and the matter shall be treated as a Contract dispute in accordance with the provisions of Section 53.0 *Dispute Resolution Procedure.*

2.12 Replacement parts and repairs provided pursuant to corrective work hereunder shall be subject to prior approval of the Company and shall be tendered and performed in the same manner and extent as the Cars originally delivered. Any warranty work shall be accomplished with a minimum of disruption of Project operations and of maintenance and service facilities at the CRMF. Company will make every reasonable effort to make such facilities and available to the Contractor, consistent with operational requirements. The Contractor, at its sole expense, hereby agrees to bear all costs of corrective work which shall include, but not be limited to necessary disassembly, transportation, reassembly, repair or replacement of the defective goods, supplies, subsystems, parts, equipment and work.

2.13 The Contractor shall, to the extent reasonably possible, obtain manufacturers' warranties and guarantees of all equipment and materials required by this Contract in the names of Company and the Contractor, and shall deliver same to Company, provided that the delivery of such manufacturers' warranties and guarantees shall in no respect relieve the Contractor of its obligation under the preceding parts of this Section 2.0. Unless expressly waived in writing by the Company, no such manufacturer's warranty or guarantee shall expire prior to the date of expiration of the Warranty Period provided by the Contractor for such item under Section 2.2, nor shall it contain any terms substantially different than required under this Contract. Company, by accepting the manufacturers' warranties and guarantees provided by the Contractor, in no respect waives any of its rights as against the Contractor, and should there be a failure of the applicable manufacturer to honor any such guarantee or service obligation or a failure of the Contractor to secure any such rights from the manufacturer for Company, Company may, in its discretion, enforce any such rights against the Contractor.

2.14 In addition to those provisions outlined in Sections 2.1 through 2.4 above, Contractor shall provide that whenever during the three (3) year general Warranty Period, a Car remains out of service for more than 48 hours because of the failure of the Contractor to make available any item, part, or component necessary to perform warranty work, or correct any other warranty deficiency that prevents use of a Car in passenger service, the warranty period for that Car shall be extended by one day for each day beyond 48 hours that the item, part, or component is not delivered, or the deficiency is not corrected.

2.15 In the event any single failure mode develops in which the rate of such failure reaches ten percent (10%) of the population of an item in Company's Car fleet in any twelve (12) month period during the Warranty Period, the Contractor shall provide repairs, adjustments, or redesign and replacement at no cost to Company on one hundred percent (100%) of units concerned, not just the failed units. Such correction shall be to Company's satisfaction and shall include correction to all Cars. An alternative analysis and correction maybe provided by the Contractor and maybe accepted at the sole discretion of the Company, such acceptance not to be unreasonably withheld.

2.16 Any retrofit, modification, redesign or replacement work performed under warranty during the Warranty Period for the Car or item involved, or relating to an issue detected during the Warranty Period and performed after the Warranty Period expires, shall be warranted against material, design and workmanship defects for two (2) years from date of repair or replacement.

2.17 For the Warranty Period the Contractor shall track and report all failures of Lowest Replaceable Units (LRU) and systems on the delivered and accepted Cars for fleet service. Monthly reports shall be submitted to the Company that describes the current and cumulative failures totals for each LRU and system. The cumulative and current failure totals shall be for the 36 month period after the first LRU and system was accepted for service. This report shall graphically depict the current percentages of failures versus the Car fleet population.

2.18 In the event that cumulative failures of any kind, in identical systems, devices, apparatus, components and parts of the same application affects ten percent (10%) of Company’s Car fleet at any time prior to the expiration of the Warranty Period of the last Car accepted, the Contractor and Company shall jointly review the analysis, and if the analysis determines that the failures were the result of defects in design, application, workmanship and / or material, the Contractor shall redesign (repair and adjustment do not constitute redesign) the affected system, device, apparatus, component, and part to correct and prevent failure on all Cars procured under this Contract. The Contractor shall perform such tests as Company may deem necessary to verify that such redesign complies with the requirements of the Contract. All costs associated with such redesign and testing, including but not limited to removal,

replacement, reinstallation, shall be borne by the Contractor. Such redesigns and tests shall be subject to approval by Company.

2.19 In no case shall the corrections, under the warranty or otherwise, of defects in design, workmanship and / or materials, result in an increase in the cost of operations and / or maintenance of the Cars.

2.20 Company owned parts (Capital Spare Parts) shall not be used for warranty purposes without the expressed approval of the Company. Subject to Company approval, any Company owned parts used for warranty purposes by Contractor shall be promptly replaced by Contractor with new parts, not reconditioned or repaired parts.

2.21 Any necessary and approved changes in the design, workmanship and / or material on the as delivered Cars shall be approved by Company, and the Contractor shall revise the affected Car history documentation, drawings and training and maintenance manuals to include the changes. These revisions shall be submitted to Company no more than thirty (30) days after approval of the change.

2.22 For purposes of Sections 2.22.1 through 2.22.2, a subsystem is defined as a group of parts, which collectively perform a Car function (e.g. HVAC, braking, propulsion, communication, etc.). A part is defined as the smallest divisible piece of a subsystem, which performs a subsystem function, for example, a relay, a circuit, a compressor, etc.

2.22.1 Following each Car being accepted for revenue service, as specified herein, the reliability of the Car, its components, subsystems, equipment and parts shall be monitored jointly by the Contractor and Company while being operated in revenue service. The reliability monitoring shall be carried out during the three (3) year general Warranty Period. The time shall be computed from the date each new Car receives a Final Completion Certificate pursuant to Section 17.0, Completion, and is accepted for use in revenue service. The reliability of the Cars and subsystems, defined as the mean distance between failures (MDBF) in miles between relevant failures, shall be calculated using the applicable definitions contained in the Part I.

2.22.2 The reliability requirements listed in the Part I shall be achieved from the first day of revenue service with the anticipated continuous Passenger growth. However, if prior to the expiration of the Warranty Period, any Car subsystem, component, equipment or part fails to meet or prevents a Car subsystem or the Car from meeting its MDBF or mean distance between service failures (MDBSF) reliability requirements as specified in the Part I, then this part, subsystem, equipment or component shall be considered defective. Defective parts or subsystems may be any new, manufactured, overhauled, repaired, replaced or reworked part or subsystem covered by this Contract. One hundred percent (100%) of the population of defective parts or subsystems, not

just the individual failed items, shall be deemed to require redesign (repair and adjustment do not constitute redesign) under this warranty. The Contractor shall provide repairs, adjustments, redesign, testing, replacement, and reinstallation at no cost to Company. The Warranty Period shall be extended until such time as all reliability requirements for the defective subsystem, part, equipment or the Car have been achieved for a period of six consecutive months. Such correction shall be to Company's satisfaction and shall include correction of all Cars prior to the completion of the Contract, including Cars for which the Warranty Period has expired.

2.23 Contractor shall act so as not to put the Concessionaire in breach of the Concession Agreement.

2.24 The benefit of all unexpired warranties, guarantees, obligations or other commitments given by Contractor shall be transferred to Owner upon termination of the Prime Contract or this Contract. Following the first Revenue Service Commencement Date, Company shall have the right to assign to Concessionaire the benefit of any unexpired warranties, guarantees, obligations or other commitments given by Contractor.

2.27 Contractor shall include, at a minimum, the foregoing warranty requirements in any subcontract that it places.

3.0 INSPECTION, TESTING AND QUALITY CONTROL

3.1 Contractor shall inspect all materials, supplies and equipment which are to be incorporated in the Work. In addition, Contractor shall conduct a continuous program of quality control for all Work. Contractor's quality control program and inspection procedures for the foregoing shall be submitted in writing to Company for review and approval, in sufficient detail to delineate those items to be inspected and the manner in which they are to be inspected, and shall adequately describe all quality control activities contemplated, including provision for adequate documentation of Contractor's performance of such quality control and inspection.

3.2 The Contractor shall develop appropriate quality management systems and procedures to ensure the consistent quality in the performance of the Work and shall document these systems and procedures for incorporation into Company's ***Quality Management Plan***.

3.2.1 The Contractor shall comply with and monitor and enforce compliance with, and shall ensure that each of its Subcontractors complies with, and monitors and enforces compliance by each of their respective Subcontractors with, the Quality Management Plan.

3.2.2 The Contractor shall, within 6 months of the Phase 1 Effective Date, obtain a registration regarding compliance with international standard ANSI/ISO/ASQ 9001-2008 with an accredited registrar. The Contractor shall maintain ANSI/ISO/ASQ 9001-2008 registration until the end of the Contract. The Contractor shall submit evidence of such registration to Company (i) within five Business Days of the initial registration and (ii) thereafter on every anniversary of the Phase 1 Effective Date.

3.2.3 Company, Concessionaire and Owner shall be entitled to audit compliance by the Contractor and its Subcontractors with the Quality Management Plan from time to time on providing reasonable notice in advance to the Contractor and at such times as are reasonably required by Company. Any such audit may involve the examination or inspection of Work or other activities (including operation and maintenance activities) on or off any Manufacturing Site. The Contractor shall ensure that the representatives of Company, Concessionaire or Owner carrying out any such audit shall be provided with all such assistance and access to facilities and records (including the provision of copies of documents) as they may reasonably require in order to discharge their audit function in a proper manner. The Contractor shall present to Company a plan outlining the steps it intends to take to correct any deficiencies or non-compliance identified in any such audit within 21 days after Company shall have notified the Contractor of such deficiencies or non-compliance. The Contractor shall, and shall ensure that its Subcontractors shall, diligently proceed to implement such plan to Company's satisfaction.

3.3 Contractor shall, during the course of performance of the Work hereunder, without additional compensation, make or cause to be made all tests required by this Contract. Company may require additional inspections and tests. Contractor shall furnish Company with satisfactory documentation of the results of all inspections and tests. Company shall be given not less than five (5) working days notice of any tests to be made by Contractor or Contractor's subcontractors in order that Company, Concessionaire and/or Owner may witness any such tests.

3.4 Company, Concessionaire and Owner and their consultants, agents and contractors shall have access to the Work and all workshops, factories, and other locations on or off the sites where materials and interim and permanent items are being produced, manufactured, fabricated or stored for the purpose of monitoring the quality and progress of the Work, attending the execution of any phases and tests of the Work and otherwise for the purpose of exercising the rights of Company under Attachment 9 (*Project and Construction Management*), **provided** that Company shall give the Contractor at least seven days' notice of any such access it requires where the location to be accessed

is outside the State of Colorado. Contractor shall provide, or cause to be provided access and sufficient, safe and proper facilities for such monitoring. Neither the failure to perform monitoring or inspection nor the failure to discover defective workmanship, materials or equipment, nor approval of or payment to Contractor for such Work, materials or equipment shall prejudice the rights of Company, Concessionaire or Owner.

3.5 The Contractor shall permit and facilitate, and shall ensure that its Subcontractors permit and facilitate, audit, review and inspection of the Work during the Contract in accordance with Section 46 (*Audit and Records*), the Design, Construction and Rolling Stock Requirements and Attachment 9 (*Project and Construction Management*).

3.6 Not used.

3.7 Rejection by Company of any or all parts of defective Work for failure to conform to this Contract shall be final and binding. Such rejected Work shall be promptly corrected or replaced by Contractor at Contractor's expense. If Contractor fails to commence and diligently continue correction or replacement of such rejected Work immediately after receipt of written notice from Company to correct or replace the rejected Work, Company may at its option remove and replace the rejected Work, and Contractor shall promptly reimburse Company for the costs of such removal and replacement of defective Work.

3.8 The Contractor shall comply with and monitor and enforce compliance with, and shall ensure that each its Subcontractors complies with and monitors and enforces compliance by each of their respective Subcontractors with the Contractor's Project Management Plan.

3.9 Contractor warrants that the Cars furnished and delivered hereunder shall be free from latent or patent defects, which Company is not in any manner bound by inspection or otherwise to discover.

3.10 All tests and inspections shall be witnessed by the Company or its authorized third party representative and shall be performed during the hours of 8:00 a.m. and 5:00 p.m., weekdays, Monday through Friday, except as agreed to by the Company.

3.11 The Contractor shall at all times give to Company, its consultants, Owner, and to any other person(s) designated by Company access to all facilities, whether necessary or convenient, for inspecting the materials to be furnished and the Work to be done under this Contract. Company, its consultants, Owner and all persons other person(s) bearing its authorization shall be admitted at any time summarily and without delay at any place where the Work is being performed.

3.12 When the carshell is fully completed and ready to be moved or shipped to the next assembly station or final assembly site, the Contractor shall present the

carshell for a "Hold Point" inspection. Carshell movement beyond any Hold Point without Company approval is prohibited. The Contractor shall provide advance notice for each inspection as provided in the Contract Documents. Prior to performance of any Company inspection, the Contractor shall provide a written report to the Company containing all tests and inspections of the carshell assembly to verify the quality of workmanship, any defects, exceptions and deficiencies noted during manufacture and the remedial actions implemented. Company shall have 2 days to perform the inspection and review all documentation, including inspections performed by the Contractor.

3.13 Upon completion of manufacture of each Car, the Contractor shall conduct a complete and comprehensive visual inspection, electrical inspection and mechanical inspection to ensure proper assembly and perform operational tests of the complete Car to check and verify the quality of workmanship and to check for malfunctions and correct operation and performance of all Car systems. A written report of these checks, tests and inspections shall be supplied to Company and included in the Car History Book. This report shall include any defects, exceptions and deficiencies noted during the manufacturing process and shall include their remedial actions.

3.14 Prior to shipment of any Car and with proper notification, the Contractor shall notify Company that the Contractor has completed its pre-shipment inspection and operational tests of the Car and shall provide the Company with copies of the inspection and test results including weight slips, for review. This information shall be provided to the Company as a complete package at least five (5) full working days in advance of the scheduled Car shipment date. As a minimum, the schedule shall allocate two (2) full working days for Company to perform the pre-shipment inspection of each Car. The Contractor shall ensure that the Car is positioned over a pit with compressed air and shop power applied. Company shall perform a pre-shipment inspection of the Car and if said Car is found to be in conformance with the Contract Documents, Company will issue a signed notice of approval for shipment. The notice will identify each Car by serial number and road number. Only then is the Contractor authorized to ship the Car to Sites. If a Car is not found to be in compliance with the Contract Documents, Company shall issue a notice of rejection stating the defects, exceptions and deficiencies, and the Contractor shall take all necessary remedial actions to correct the defects, exceptions and deficiencies. The Contractor shall notify Company upon completion of the remedial action with a report for their review that details the remedial action taken. If Company deems these remedial actions acceptable, a re-inspection shall be performed to verify the adequacy of the repair, rework, or modification to remedy the defects, exceptions and deficiencies. The Contractor shall reimburse Company for the costs of any such re-inspection and shall be responsible for the delay, if any.

3.15 Upon completion of the pre-shipment inspection and acceptance of remedial actions by Company, the Contractor shall provide the Company with a written

report signed by the Contractor's Director of Quality Assurance, stating that the Car has been manufactured according to the Contract requirements, has passed all required in-plant tests, and is ready for shipment. This report shall include detailed lists of all defects, exceptions and deficiencies that have been approved by Company for repair, rework and/or modification after delivery and the schedule for their completion. This report shall be included in the Car History Book.

3.16 When the pre-shipment inspection and review of all documentation has been conducted to the satisfaction of the Company, and ALL defects and / or corrective action items discovered are fully corrected, Company shall issue to the Contractor a "Notice of Approval for Shipment" to be signed by both the Contractor and Company. No shipment of Cars or other completed material shall be made by the Contractor to Company without such document. The "Notice of Approval for Shipment" shall not be construed nor inferred to constitute acceptance, conditional or final, of the Car by the Company.

3.17 The Contractor shall prepare each Car for shipment. Each Car, unless explicitly agreed by Company, shipped from the Contractor's Manufacturing Site to Sites shall be complete, ready-to-run, and in compliance with all provisions of Part I. All parts that must be removed to permit shipment shall be securely packaged and shipped with the Car to which they belong. The Car shall be secured against unauthorized entry during transit by sealing closed all doors and exterior compartments. Any special temporary fittings and locking devices required for shipment of the Car shall be provided and removed by the Contractor at its expense. The Contractor shall take all reasonable precautions to ensure that the Car is protected from damage during transit, including taking out and maintaining risk of loss Insurance as provided for elsewhere in the Contract.

3.18 Each completed Car shall be received at Sites and will be jointly inspected by representatives of Company and the Contractor within 48 hours of its arrival. Following completion of the inspection, a "Receiving Inspection Report" will be issued and signed by the Contractor, and signed by the Company. This report shall provide an assessment of the "as received" condition of the Car stating the condition of the Car, and noting any defects or damage that may have occurred during shipment. The report shall be issued to Company by the Contractor prior to commencing any adjustments, repairs and/or replacement of damaged parts, post delivery tests and commissioning activities.

3.19 On issuance of a report which indicates a material shortage or damaged item, the Contractor shall promptly replace any missing or damaged equipment and material, at its cost, to prevent delay of the project. In this context "promptly" means that "in stock" items shall be shipped immediately while the repurchase of all other items shall be initiated without delay.

3.20 Spare parts and other materials including those parts that are easily stolen such as keys, radios, emergency tools, fire extinguishers, etc., shall be delivered separate from the Car to Company's receiving department at the designated site location. Along with the Contractor, the Company's receiving department shall prepare and sign a "Receiving Inspection Report", describing any missing parts or damage that may have occurred during shipment and that is otherwise visible after a cursory inspection.

3.21 After issuance of the "Receiving Inspection Report" but in no event later than five (5) working days following arrival at the Sites, the Company's representative at the Sites shall provide to the Contractor's representative a "Certificate of Delivery." Such certificate shall state the date of the delivery and shall include a copy of the "Receiving Inspection Report," noting all damages and defects which require correction by the Contractor.

3.22 To be considered "delivered" and eligible for Milestone Payments according to Section 5.0 "Payment Terms" in Contract Part II (Commercial Terms), each Car shall be in sound, whole, ready-to-run condition, and evaluated to determine whether it is ready for entry into post delivery tests and commissioning activities. Should Company agree to allow Cars to be shipped with in-plant testing, repairs, reworks and/or retrofits to be performed at the Sites, the Cars shall not, unless otherwise agreed upon by Company, be considered delivered until the Contractor has completed all such work and is in compliance with the Contract Part I.

3.23 After issuance of a "Certificate of Delivery," each Car shall be subjected to a series of post delivery tests, pre-revenue tests, inspections and commissioning tasks as described in the Contract Documents.

4.0 CONDITIONS AND RISKS OF WORK

4.1 Contractor represents that it has carefully examined the documentation, drawings and specifications for the Work and has fully acquainted itself with all other conditions relevant to the Work, and its surroundings, and Contractor assumes the risk of such conditions and will, regardless of such conditions, the expense, difficulty of performing the Work, fully complete the Work for the stated Contract Price without further recourse to Company or Owner or Concessionaire.

4.2 Company has made available to the Contractor, before the date of this Contract, certain materials, documents and data related to Owner's and Company's operations, the Eagle Project, the Sites, passenger forecasts and other matters which are or may be relevant to the Eagle Project (such materials, documents and data, the ***Reference Data***).

4.3 The Contractor acknowledges that the Reference Data has been provided to the Contractor for the convenience of the Contractor only. Company makes no

representations or guarantees as to the accuracy, adequacy, completeness or fitness for purpose of the Reference Data. None of Owner, Concessionaire, Company, the Project Third Parties, the FTA and their respective advisers, consultants, servants, contractors and/or agents, shall be liable to the Contractor, any of its Subcontractors or their respective Affiliates, agents or consultants:

4.3.1 (whether in contract, tort, by statute or otherwise howsoever and whether or not arising out of any negligence on the part of Owner, Concessionaire, Company, the Project Third Parties, the FTA and their respective advisers, consultants, servants, contractors and/or agents) in respect of any inaccuracy, error, omission, lack of fitness for purpose, defect or inadequacy in the Reference Data;

4.3.2 in respect of any failure to disclose or make available to the Contractor any information, documents or data;

4.3.3 in respect of not keeping the Reference Data up to date; or

4.3.4 in respect of not informing the Contractor of any inaccuracy, error, omission, lack of fitness for purpose, defect or inadequacy in the Reference Data,

except to the extent that Owner, Concessionaire, Company, the Project Third Parties, the FTA or their respective advisers, consultants, servants, contractors and/or agents, as the case may be, has or have, at the time of disclosure of the Reference Data, willfully misled the Contractor in respect of the Reference Data in a formal written communication issued and signed by Company. If the Contractor has been willfully misled in respect of the Reference Data as described in this Section 4.3 (*Deficiencies in Reference Data*), the Contractor may (as its sole and exclusive remedy) claim for a Relief Event under Section 20.1.4 (**provided** the other requirements of Section 20.0 (*Relief Events*) are satisfied).

4.4 The Contractor acknowledges and confirms that:

4.4.1 it has conducted its own analysis and review of the Reference Data to its satisfaction; and

4.4.2 except as and to the extent specifically provided in Sections 4.3 (*Deficiencies in Reference Data*) and 20.0 (*Relief Events*), it shall not be entitled to make any claim against Owner, Concessionaire, Company, the Project Third Parties and their respective advisers, consultants, servants, contractors and/or agents whether in damages or for extensions of time or additional payments under this Contract on the grounds of any inaccuracy, error or mistake in the Reference Data or any misunderstanding or misapprehension in

respect of the Reference Data, or on the grounds that incorrect or insufficient information relating thereto or to the Sites or the Eagle Project was given to it by any Person, whether or not in the employ of Owner, Concessionaire, Company, the Project Third Parties and their respective advisers, consultants, servants, contractors and/or agents.

4.5 The Contractor shall prepare and submit all Contract Data to Company, at its sole cost in accordance with the requirements of this Contract and, in so far as is specifically set out in Part I, the Third Party Agreements. All Contract Data shall be consistent with the Contractor Documents, unless Company approves a deviation there from (such approval not to be unreasonably withheld or delayed).

4.6 All Contractor Design Submittals shall comply with the Design, Construction and Rolling Stock Requirements, the Third Party Agreements in so far as requirements in this respect are specifically set out in Part I,, all Permits, the Applicable Requirements and Good Industry Practice. Each Contractor Design Submittal shall be accompanied by a certificate signed by the Contractor's third-party reviewer certifying that such Contractor Design Submittal does comply with the requirements referred to in this Section 4.6, in accordance with Section 3 of Attachment 9 (*Project and Construction Management*).

4.7

4.7.1 The Contractor shall submit each item of Contract Data to Company within the time period set out in the Contract Data Requirements List for such item of Contract Data.

4.7.2 On or before the last day of the Review Period for such item of Contract Data, Company shall notify the Contractor in writing of its opinion in relation to whether such Contract Data submitted by the Contractor complies with the applicable requirements of this Contract and of any comments it has or amendments it wishes the Contractor to make. The Contractor shall give due consideration to Company's amendments and comments, but the Contractor shall not be obligated to incorporate Company's amendments or comments unless such comments are necessary for such Contract Data to comply with the applicable requirements of this Contract. To the extent required hereby, the Contractor shall revise the Contract Data and re-submit the revised Contract Data to Company for review in accordance with this Section 4.7 or Section 2.4(c) of Attachment 6 (*Contract Data Requirements List)*.

4.7.3 If Company has not provided notice of its opinion or any amendments or comments to the Contractor prior to the expiry of the Review Period in respect of any item of Contract Data, such item of

Contract Data shall be deemed to be approved by Company, with such approval taking effect on the last day of such Review Period, or in the case of resubmissions on the day immediately following Company's extended review period.

4.7.4 If the Parties cannot agree whether Company's proposed amendments and/or comments are necessary for an item of Contract Data to comply with the applicable requirements of this Contract, the matters in dispute may be referred by either Party for resolution in accordance with the Dispute Resolution Procedure.

4.7.5 The Contractor's Technical Proposal is, and each Contractor Design Submittal shall be, a commitment to the design as shown in the Contractor's Technical Proposal or such Contractor Design Submittal, as the case may be, such that the design or information as depicted therein shall be a requirement of this Contract from the date of approval of such Contractor Design Submittal; **provided** that (i) if the design depicted in the Contractor's Technical Proposal does not comply or is in conflict with any other requirement of this Contract, such other requirement of this Contract shall prevail and (ii) if the design depicted in any Contractor Design Submittal does not comply or is in conflict with any pre-existing requirement of this Contract, such pre-existing requirement of this Contract shall prevail.

4.8

4.8.1 The Contractor will not amend, modify or vary any item of Contract Data that has been approved (or deemed approved) by Company without the prior written approval of Company.

4.8.2 The implementation of any design changes that are not consistent with previously approved Contractor Design Submittals shall be subject to:

(i) prior certification by the Contractor's engineer of record that such design change is consistent with the requirements of Section 4.6 (*Contractor Design Submittals*); and

(ii) prior written approval by Company.

4.9 Any dispute arising between Company and the Contractor in relation to the compliance of any item of Contract Data with the requirements of this Contract may be referred by either Party for resolution in accordance with the Dispute Resolution Procedure.

4.10

4.10.1 When it is required to do so, Company shall submit Contractor Design Submittals to any relevant Project Third Party.

4.10.2 The Contractor may claim for a Relief Event where permitted under Section 20.0 (*Relief Events*) (**provided** the other requirements of Section 20.0 (*Relief Events*) are satisfied) if any Project Third Party fails to review and comment on any Contractor Design Submittal within 45 days of the date on which such Contractor Design Submittal is submitted to the relevant Project Third Party in accordance with Section 4.10 (or such longer time period as may be set out in the Contract Data Requirements List or any relevant Third Party Agreement), and such failure causes a delay or suspension of Work (provided that such delay is not caused by an act or omission of the Contractor including failure by the Contractor to comply with the requirements for such Contractor Design Submittal referred to in Section 4.6 (*Contractor Design Submittals*)); **provided** that, where any relevant Third Party Agreement or any Applicable Requirement provides for deemed approval by the relevant Project Third Party of any Contractor Design Submittal upon the expiry of the review period available to such Project Third Party in accordance with the Contract Data Requirements List or the relevant Third Party Agreement, the Contractor shall treat such Contractor Design Submittal as having been approved and the Contractor shall not be entitled to a Relief Event.

4.11 If any Project Third Party alleges that any Contractor Design Submittal submitted to that Project Third Party does not comply with the requirements for such Contractor Design Submittal as set out in the Third Party Agreements and Company agrees with the Contractor that there is a reasonable basis for challenging the Project Third Party's allegation (or it has been determined pursuant to the Dispute Resolution Procedure that there is a reasonable basis), Company shall either:

4.11.1 dispute such allegation in accordance with the appropriate dispute resolution procedures set out in the applicable Third Party Agreement; or

4.11.2 implement an Company Proposed Change instructing the Contractor to comply with the requirements of the relevant Project Third Party, in which case the provisions of Section 18.10.1 (*Company Proposed Changes*) shall apply.

The Contractor will cooperate with Company and take all necessary steps and acts to assist Company in such procedures, including providing supporting drawings, data and technical information at the times and in the manner reasonably requested by Company.

The Contractor agrees that it shall comply with the resolution of each dispute regarding compliance of the Contractor Design Submittals with the requirements of each Third Party Agreement determined in accordance with the procedures set out in the applicable Third Party Agreement. To the extent that it is determined, in accordance with the procedures set out in the applicable Third Party Agreement, that any Contractor Design Submittal submitted to that Project Third Party:

4.11.3 does not comply with the requirements of the Third Party Agreements, the Contractor shall resubmit such noncompliant Contractor Design Submittal to remedy such noncompliance and any delay or additional cost caused to the Contractor will not constitute a Relief Event, the Contractor will not be entitled to any compensation or relief from Company and the Contractor shall reimburse and indemnify Company for the costs, expenses or damages Company incurs in connection with the dispute; and

4.11.4 complies with the requirements of the applicable Third Party Agreements, the Contractor may claim for a Relief Event where permitted under Section 20.0 (*Relief Events*) (**provided** the other requirements of Section 20.0 (*Relief Events*) are satisfied) in respect of the delay caused to the Contractor in respect of such Contractor Design Submittal.

The Contractor shall at all times ensure that the final design of the Rolling Stock complies with the Design, Construction and Rolling Stock Requirements, the Third Party Agreements, all Permits, the Applicable Requirements and Good Industry Practice notwithstanding any comments of, or failure to comment by, Company or the Project Third Parties.

4.12 Contractor shall cooperate and coordinate with O&M Contractor in relation to its design activities and shall incorporate legitimate requests made by O&M Contractor, provided that Contractor shall not, without Company's prior written consent, incorporate any request from O&M Contractor that would affect conformance with the requirements of this Contract

5.0 ISSUED FOR CONSTRUCTION DRAWINGS AND SPECIFICATIONS

5.1 The Work shall be performed using only drawings and specifications marked "Approved for Fabrication" or equivalent by Company. Such indication shall not relieve Contractor of any obligations under this Contract, nor constitute Company assumption of responsibility for the accuracy or adequacy of any of Contractor's information or Work incorporated in such documents.

5.2 Not used.

5.3 Not used.

5.4 Contractor shall maintain a complete and current set of "Approved for Fabrication" drawings and specifications at any work site where Work is performed.

6.0 INTENT OF SPECIFICATIONS AND DRAWINGS

6.1 The specifications and drawings may not be complete in every detail. Contractor shall comply with their manifest intent and general purpose, taken as a whole, and shall not make use of any errors or omissions therein to the detriment of the Work. Should any conflict, error, omission or discrepancy appear in the drawings, specifications, instructions, in work done by others, or in site conditions, Contractor shall notify Company in writing at once and Company will issue written instructions to be followed. If Contractor proceeds with any of the Work in question prior to receiving such instructions, then required corrections shall be at Contractor's expense.

6.2 Contractor shall not deviate from the specifications and drawings without prior written approval from Company.

6.3 Materials shall not be substituted for those specified, nor shall "or equal" items be furnished pursuant to the specifications without Company prior written approval.

6.4 The Contractor shall furnish all products and materials required to complete the Work. Products provided for the Work shall be new, undamaged and free from defects and of a quality best suited to the purpose required for their use and shall be subject to the approval of the Company. The materials furnished shall be new and shall be free from impurities, defects, and imperfections impairing strength, durability and appearance. They shall be of good commercial quality consistent with the Specification for the purposes specified, with structural properties to withstand the strains and stresses to which they will be subjected in normal service. Notwithstanding any prior inspection or review, only materials conforming to the requirements of the Specification and Contract Drawings, and Documents shall be incorporated into the item or items to be procured.

The Company reserves the right to reject any materials and / or products of the Work that do not meet the requirements of Part I.

6.5 For convenience in designation on the Contract Drawings or in the Specification, certain materials and equipment to be incorporated in the Work may be designated by trade names or the names of manufacturers and their part numbers and descriptions, followed in each instance by the term "or Approved Equal". The Specification is not intended to preclude the use of any material or equipment that is not specifically described. The term "or Approved Equal", if not inserted, shall be implied.

Except in those instances where the product is designated to match others, substitution of an alternative article or material, which the Contractor represents to be of at least equal quality and suitable for the same purpose, may be permitted subject to the following:

All requests by the Contractor for approval of substitutions shall be made to the Company in writing and accompanied by adequate information for evaluation of the Contractor's claim. The Company shall respond to all Contractor's requests for substitution within fourteen (14) Days from receipt of request.

The burden of proof of at least equal quality and of suitability for the same purpose shall be upon the Contractor and all information and tests related to such proof shall be free of cost to the Company.

Whenever classification, rating or other certification by a body such as Underwriters Laboratory, American Manufacturers Association, NFPA, etc. or recognized national standard(s) is a part of the specification for any material, proposals for substitution of alternative materials shall be accompanied by documentation and certification from the appropriate body of compliance with the requirements of the Certification Standards. Contractor assumes all risk associated with Contract performance and meeting the requirements of the Specification using equivalent materials and equipment, whether approved by Company, Project Third Party, or Owner.

6.6 Material or equipment intended for use on the Work, or parts thereof, which is found to be not in conformance with the Contract Documents, shall be clearly marked and so disposed of as to ensure that it will not be used or offered for use again on this Work unless and until proper material or equipment has been substituted or other corrective action taken by the Contractor to the satisfaction of the Company.

7.0 SAFETY

7.1 Contractor shall at all times comply with, and shall ensure that each of its Subcontractors at all times complies with, the Health, Safety and Security Requirements.

7.2 Contractor shall take necessary safety and other precautions to protect property and persons from damage, injury or illness arising out of the performance of the Work. Contractor shall comply strictly with local, municipal, provincial, state and national laws, orders, and regulations pertaining to health or safety which are applicable to Contractor or to the Work, including without limitation the Occupational Safety and Health Act of 1970 (84 U.S. Statutes 1590), as amended, and any state plans approved thereunder and regulations thereunder, to the extent applicable, and Contractor warrants the materials,

equipment and facilities, whether temporary or permanent, furnished by Contractor in connection with the performance of the Work shall comply therewith. At all times while any of Contractor's employees, agents or subcontractors are on Owner's or Company's premises, Contractor shall inspect the places where its employees, agents or subcontractors are or may be present on Owner's or Company's premises and shall promptly take action to correct conditions which are or may become an unsafe place of employment for them.

7.3 Accidents, injuries and illnesses requiring medical attention other than first aid, damage to property of Company, Concessionaire, Owner or Contractor, and fires shall be orally reported to Company at the time of the incident. Written reports, satisfactory in form and content to Company shall be submitted by Contractor within forty-eight (48) hours after each incident.

8.0 SUBCONTRACTS AND PURCHASE ORDERS

8.1 Contractor shall not subcontract performance of all or any portion of the Work under this Contract without first notifying Company of the intended subcontracting and obtaining Company acceptance in writing of the subcontracting and the subcontractor, such acceptance not to be unreasonably withheld. If requested by Company, Contractor shall furnish Company a copy of the proposed subcontract (with price deleted if the subcontracted work is part of fixed price Work of Contractor under this Contract) for Company review of the terms and conditions thereof and shall not execute such subcontract until Company has accepted such terms. Failure of Contractor to comply with this Section may be deemed by Company to be a material breach of this Contract.

8.2 Contractor guarantees that its subcontractors will comply fully with the terms of this Contract applicable to the portion of the Work performed by them. If any portion of the Work which has been subcontracted by Contractor is not prosecuted in accordance with this Contract, on request of Company, to the extent reasonably feasible, the subcontractor shall be replaced at no additional cost to Company and shall not be employed again on the Work.

8.3 Contractor shall include a provision in every subcontract that it places authorizing assignment of such subcontract to Company or Owner without requiring further consent from such subcontractor or supplier.

8.4 Company shall have the right from time to time to contact Contractor's Subcontractors to discuss their progress.

8.5 As used in this Contract, the term "Subcontract" shall also include purchase orders and rental agreements for materials or equipment, and the term "Subcontractor" shall also include vendors or suppliers of such material or

equipment. Subcontractors shall be as listed in Schedule E and Schedule F of Part II Commercial Terms of this Contract.

8.6 Contractor shall be solely responsible and liable to Concessionaire for any part of the Work which is performed by Subcontractors, and Contractor shall not be relieved of any of its obligations, liabilities or responsibilities under this Agreement by reason of part of its obligations being carried out by a Subcontractor or by reason of any inspection, review or approval by Company, Concessionaire or any other Person permitted under the Contract Documents of any portion of the Work or of any work in progress by Contractor or any Subcontractor.

8.7 The United Nations Convention on Contracts for the International Sale of Goods does not apply to this Contract and shall be disclaimed and excluded from any Subcontracts placed by Contractor.

8.8 Company shall be provided with copies of all notices of force majeure or default between the Contractor any Subcontractor.

8.9 The Contractor agrees that it will not use, as a Subcontractor or a Supplier, any firm that is ineligible to work on Owner's contracts.

8.10 In order to qualify as a Subcontractor or Supplier satisfactory to Company, in addition to the other requirements herein provided, the Subcontractor or Supplier must be prepared to prove to the Company that it has the necessary facilities, skill and experience, and ample financial resources to perform the Work in a satisfactory manner. To be considered skilled and experienced, the Subcontractor must show to the satisfaction of Company that it has satisfactorily performed Work of the same general type which is required to be performed under this Contract.

8.11 Contractor shall ensure that the Subcontractor shall look only to the Contractor for the payment of such claims of any nature whatsoever arising out of the said subcontract, and said Subcontractor agrees, as a condition of Company's consent to the making of said subcontract, that he shall make no claim whatsoever against Company, its officers, agents, servants or employees for any work performed or thing done by reason of said subcontract, or for any other cause whatsoever that may arise by reason of the relationship created between the Contractor and Subcontractor by the subcontract. Company will not consent to the making of any subcontract unless the proposed Subcontractor furnishes an acknowledgement to the effect that said Subcontractor has been provided with and is acquainted and agrees with all applicable provisions of the Contract.

8.12 Each Subcontract to which Contractor is a Party shall contain or incorporate by reference the essential terms of this Agreement and the required terms set forth in Section 22.6(f) of the Concession Agreement. Each Subcontract also

must provide that such Subcontract may be freely assigned to Concessionaire or Owner upon the request of Concessionaire or Owner following termination of this Agreement, and that in the event of termination of the Concession Agreement, Owner will be entitled to replace such Subcontract on substantially similar terms as such Subcontract (subject to such amendments as may be necessary to reflect any legal requirements or limitations applicable to Owner) between the applicable Subcontractor and Owner. Company shall be entitled to require Contractor to replace any Subcontractor to the extent such Subcontractor does not comply with the applicable provisions of this Agreement.

9.0 STOP WORK ORDERS

Upon failure of Contractor or its subcontractors to comply with any of the requirements of this Contract, Company shall have the authority to stop any operations of Contractor or its subcontractors affected by such failure until such failure is remedied or to terminate this Contract in accordance with Article 51.0. No part of the time lost due to any such stop work orders shall be made the subject of a claim for extension of time or for increased costs or damages by Contractor.

GENERAL REQUIREMENTS

10.0 FEDERAL AND STATE REQUIREMENTS; TVM CERTIFICATION

10.1 In addition to complying with all other applicable laws, in performing the work, contractor shall comply, and cause all subcontractors to comply, with rules and regulations promulgated by the FTA and FRA applicable to the work or the eagle project, **[**the prevailing wage requirements set forth in 42 U.S.C. § 276a, 23 U.S.C. § 113, as supplemented by 29 C.F.R. Part 5, 23 C.F.R. §§ 635.117(f), 635.118,**]** C.R.S. § 8-17.5-101 *et seq*. and the FTA's Public-Private Partnership Pilot Program (Penta-P) (as described in 72 Fed. Reg. 2583 (January 10, 2007).

During the Contract, the Contractor shall comply with and shall ensure that each of its Subcontractors, complies with the requirements of Part A and Sections 2 and 3 of Part B (*Disadvantaged and Small Business Enterprises Program*) of Attachment 15 (*Specified Requirements*) (which attachment forms an exhibit to this Agreement); **provided** that the Contractor shall not be in breach of this requirement in relation to Part B if it can be demonstrated to Owner 's reasonable satisfaction that it and each of its Subcontractors has exercised good faith efforts to comply with such requirements.

In connection with the performance of this Contract, the Contractor shall cooperate with Company in meeting its commitments and goals with regard to the maximum utilization of Disadvantaged Business Enterprises and will use its best efforts to ensure that Disadvantaged Business Enterprises shall have the maximum practicable opportunity to compete for subcontract work under this Contract.

Failure by the Contractor to carry out these requirements is a material breach of the Contract which may result in the termination of this Contract or such other remedy, as Company deems appropriate.

10.2 Contractor shall comply with, and shall ensure compliance by its Subcontractors with the requirements of Section 26.49 of Subpart C to 49 CFR Part 26 "Participation by Minority Business Enterprises in Department of Transportation Programs" and shall promptly notify Company and RTD if the goals proposed by Contractor have been disapproved by the FTA.

TIMING OF WORK

11.0 SCHEDULING, REPORTING AND COORDINATION

11.1 Contractor shall schedule and coordinate the details of the Work being performed to meet the schedule requirements set forth in Part I of this Contract. Within one hundred and twenty-two (122) calendar days after Company Notice To Proceed and before submittal of the first progress payment invoice, Contractor shall submit to Company for approval, a detailed schedule showing the sequence in which Contractor proposes to perform the Work, the start and completion dates of all separable portions of the Work, manpower forecasts, materials procurement and delivery plans and any other information specified by Company, including all critical path elements, interfaces to Third Party Work where applicable, a complete delineation of performance and Schedule Milestones consistent with Section 11.4 below, and all other information necessary to create an Original Baseline Schedule. Contractor agrees to adhere to the schedule approved by Company and attend and participate in scheduled progress and coordination meetings called by Company.

11.2 During the performance of Work, Contractor shall submit to Company periodic progress reports on the actual progress and updated schedules as may be required by this Contract or requested by Company. In the event Contractor's performance of the Work is not in compliance with the schedule established for such performance, Company may, in writing, require the Contractor to submit its plan for schedule recovery, or specify in writing the steps to be taken to achieve compliance with such schedule, and/or exercise any other remedies under this Contract. Contractor shall thereupon take such steps as may be directed by Company or otherwise necessary to improve its progress without additional cost to Company.

11.3 The Contractor will prepare and keep updated (or ensure the preparation and updating of) the Project Schedules in accordance with the requirements set out in Section 2.6 (*Schedule Management*) of Attachment 9 (*Project and Construction Management*); **provided** that, notwithstanding any other provision of this Contract, the submission by the Contractor of a revised Project Schedule does not constitute the grant of, and shall not result in, an extension

to any Revenue Service Target Date, the Revenue Service Deadline Date, or the Final Completion Deadline Date.

11.4 Milestone Schedule: The Contractor in submitting a detailed Work Schedule as defined above, shall incorporate the Milestones indicated below, along with any additional Milestones the Contractor deems important and necessary for prosecution of the Work under this Contract. The Milestones shall be descriptive in nature, tied to precedent and dependent actions by the Parties, including Third Parties and shall show the required start and completion dates for each Milestone indicated in the Work Schedule.

Company Notice to Proceed "Contract Effective Date"

Submission, Receipt and Approval of: Contractor's Car Specification, Project Work Schedule, Project Management Plan, QA/QC Plan, System Engineering Plan, Configuration Management Plan, and Expected Proprietary Designs per Contract PART III Section 42.1.5:

Submission and Acceptance of Car(s) Preliminary Design Documents Including All Subsystem Schematics:

Submission of Contract Part I Scope of Work Section 3.3.2 Contractors Drawings, Section 3.3.3 FRA Safety Compliance Drawings:

Submission of Contract Part I Scope of Work Section 3.2.3, Mock Ups and Samples, Section 3.2.4 Artist's Rendering, Section 3.2.5 Seating Mock Up:

Submission of Contract Part I Scope of Work Section 3.5.1 Rolling Stock Performance Review:

Submission of Contract Part I Scope of Work Section 3.6.1 Rolling Stock Noise Calculation Report:

Submission of Contract Part I Scope of Work Section 3.8.4 Rolling Stock Structural Compliance Report and Supporting Calculations:

Submission of Car Collision and Survivability Analysis and Report

Submission of Contract Part I Scope of Work Section 3.11.3 Car HVAC Performance Report:

Submission of Contract Part I Scope of Work Section 3.15.2 Truck Assembly Finite Element Analysis Report, and Section 3.15.2 Suspension Behavior Calculation.

Submission of Contract Part I Scope of Work Section 3.16.2 Air Supply and Friction Brake System Documentation

Submission and Acceptance of Car(s) Final Design Documents Including All Subsystems

Submission of First Articles of Inspection, Reports and Qualification Testing Report.

Submission of Contract Part I Scope of Work Section 3.2.6 Pilot Cars, Section 3.2.7 Delivery and Initial Acceptance Test of 2-Pair Pilot Cars.
(Four Cars Total)

Submission of Contract Part I Scope of Work Section 3.3.4 As Built Drawings for the Pilot Cars, Section 3.3.5 Car History Books for the Pilot Cars

Delivery and Final Approval of Car Fleet Maintenance Manuals

Completion of Operations and Maintenance Training Classes

Submission and Completion of Final Version Systems Testing and Commissioning Plan, and Submission of each Car's Production Test Reports.

Delivery and Initial Acceptance Test of Production Cars 1-4

Delivery and Initial Acceptance Test of Production Cars 5-8

Delivery and Initial Acceptance Test of Production Cars 9-12

Delivery and Initial Acceptance Test of Production Cars 13-16

Delivery and Initial Acceptance Test of Production Cars 17-20

Delivery and Initial Acceptance Test of Production Cars 21-24

Delivery and Initial Acceptance Test of Production Cars 25-28

Delivery and Initial Acceptance Test of Production Cars 29-32

Delivery and Initial Acceptance Test of Production Cars 33-36

Delivery and Initial Acceptance Test of Production Cars 37-40

Delivery and Initial Acceptance Test of Production Cars 41-44

Delivery and Initial Acceptance Test of Production Cars 45-46

Submission and Final Approval of all remaining Contract Deliverables, Including As-build Drawings of the Production Cars.

Delivery of Operating Year 1 Operations and Maintenance Spare Parts Block Inventory.

11.5 Contractor shall ensure that the Work required for the issue of each Revenue Service Commencement Certificate shall be completed on or before the applicable Revenue Service Start Date.

12.0 PHASES OF WORK

12.1 Contractor will arrange for: the insurance that it is required to have in place under this Contract to be in place and to provide satisfactory evidence of this to Contractor; [for execution of the Lenders' Direct Contract]; and provide everything required by Article 35, all within 8 days of receipt of notice from Company that the Concession Agreement has been signed by Owner and Concessionaire.

12.2 Company will give Contractor notice as soon as the Phase 1 Effective Date under the Concession Agreement has been achieved, it being noted that compliance by Contractor with Section 12.1 is a condition precedent to that. Contractor will commence performance of the Work upon receipt of such notice.

12.3 Company will give Contractor notice as soon as the Phase 2 Effective Date under the Concession Agreement has been achieved.

12.4 If the Phase 2 Effective Date fails to occur on or before the Phase 2 Condition Precedent Satisfaction Date (as such date may be extended by mutual agreement between the Parties):

12.4.1 Company shall deliver a notice (a ***Phase 2 Rolling Stock Termination Notice***) to the Contractor prior to the scheduled delivery date of the first Phase 2 Rolling Stock under the Original Baseline Schedule (or, as the case may be, the Revised Baseline Schedule) notifying the Contractor of the location or locations for delivery of the Phase 2 Rolling Stock;

12.4.2 Company shall bear any additional cost for delivery of such Cars to a location or locations other than within the District; and

12.4.3 Contractor shall deliver the Phase 2 Rolling Stock to Owner at the location or locations specified in the Phase 2 Rolling Stock Termination Notice and Company shall assign all warranties under this Contract in respect of the Phase 2 Rolling Stock to Owner immediately upon such delivery.

13.0 DELAYS

Contractor is liable for delayed performance and completion of the Work in accordance with Part II.

Contractor has the right to extensions of time and for compensation for delay in accordance with and to the extent set out in Sections 18 to 22 hereof.

The express remedies provided for in this Contract shall constitute the sole liability of Company and Contractor's sole remedy for delays. Contractor shall not be entitled to, and hereby expressly waives recovery of, any other remedies (such as damages) suffered by reason of delays of any nature.

14.0 ACCELERATION OF WORK

14.1 In the event of a delay or disruption to the Work resulting from the occurrence of a Relief Event or a Force Majeure Event during the Contract, Company may require the Contractor to accelerate the Work to recover lost time to the extent reasonable and appropriate under the circumstances, in which case Company will reimburse the Contractor for the net increase in Direct Costs incurred by it as a direct result of such acceleration to the extent and provided that:

14.1.1 the Contractor actually recovers lost time;

14.1.2 such Direct Costs have not otherwise been reimbursed to the Contractor; and

14.1.3 such Direct Costs are claimed on the basis and in accordance with the procedures set out in Section 20.4.3.

14.2 Any dispute between the Parties as to the extent of the Direct Costs incurred as a direct result of such acceleration will be referred for resolution in accordance with the Dispute Resolution Procedure.

15.0 DELIVERY

15.1 The Contractor shall diligently prosecute the work and shall deliver the Cars as described in this section within the times specified.

15.2 Delivery of Cars by the Contractor shall be to a project site and location in Denver determined by the Company, during normal work hours (8:00 a.m. to 4:00 p.m.) or as otherwise agreed to by the Company. No deliveries shall be made on Saturdays, Sundays or Company observed holidays. The Contractor shall be responsible for those charges incurred in the loading, unloading, shipment, delivery and receipt of the Cars to the delivery point.

15.3 Should work be undertaken outside normal work hours, with the prior approval of the Company, all costs including required labor and oversight costs associated with evening work will be borne by the Contractor, including costs for oversight borne by the Company.

15.4 The Contractor shall give Company at least four (4) days advanced written notice of any deliveries. The Contractor shall provide the Company Project Manager with a minimum of forty-eight (48) hours advanced written notice when cancelling or postponing a previously scheduled Car delivery.

15.5 Any temporary fittings and parts required for shipment of any Cars shall be furnished by the Contractor and removed by the Contractor when the Cars are delivered, as necessary. The cost of supplying these fittings and parts and the labor of installing, removing and returning them to the Contractor shall be borne by the Contractor and included in the Contract Price.

15.6 If shipped by sea, while under-deck shipping is preferred, all Cars and components thereof shall be adequately protected against physical damage from handling or from exposure to the marine environment.

15.7 The Contractor shall deliver all vulnerable material as noted to the Company Project Manager upon delivery of each Car and any required special keys or tools to the Company Project Manager upon delivery of each Car.

15.8 The Contractor shall bear the risk of loss or damage to the Cars after delivery to the designated site location, through the provisions in Section 34.0 (Insurance), and issuance of a satisfactory Receiving Inspection Report, regardless of the cause of such loss or damage, and Contractor shall, at its own expense, repair and replace in a timely manner under the direction and to the satisfaction of Company, all parts of the Cars so lost or damaged. Notwithstanding the above, the Contractor shall not be responsible for any damage to the cars that was caused by or which resulted from the negligence of the Company or its employees in providing security for the Cars at the designated site location.

15.9 Should the correction of defects require the removal of Cars from Company property, all expenses and costs incurred in their removal from the designated delivery point and their return thereto shall be borne by the Contractor.

16.0 NOTICE OF COMPLETION AND FINAL ACCEPTANCE

16.1 The provisions of this Article 16.0 are in addition to the acceptance regime for individual Cars. When Contractor deems the Work fully completed, including satisfactory completion of such inspections, tests and documentation as are specified in this Contract, Contractor shall, within ten (10) working days thereafter, give a written Notice of Completion of the Work to Company, specifying the Work completed and the date it was completed. Within thirty (30) calendar days after receipt of said Notice of Completion, Company may inspect the Work and shall either reject the Notice of Completion and specify defective or uncompleted portions of the Work, or shall give the Contractor a written Notice of Acceptance of the Work either for the purpose of final payment only, or for the purposes of final payment and final acceptance.

16.2 In the event Company rejects the Notice of Completion and specifies defective or uncompleted portions of the Work, Contractor shall, within five (5) working days, provide for Company review and approval, a schedule detailing when all defects will be corrected and/or the Work will be completed and shall proceed to remedy such defective and uncompleted portions of the Work. Thereafter, Contractor shall again give Company a written Notice of Completion of the Work, specifying a new date for the completion of the Work based upon the date such defective or uncompleted portions of the Work were corrected. The foregoing procedure shall apply again and successively thereafter until Company has given Contractor written Notice of Acceptance for purposes of final payment and final acceptance.

16.3 Any failure by Company to inspect or to reject the Work or to reject Contractor's Notice of Completion as set forth above, shall not be deemed to be acceptance of the Work for any purpose by Company or Owner nor imply acceptance of, or agreement with, said Notice of Completion.

17.0 COMPLETION

17.1 17.1.1 When the Company reasonably believes that it is prepared to complete the Revenue Service Commencement Requirements in respect of a Commuter Rail Project and the associated Commuter Rail Service, the Company may notify Owner to that effect.

17.1.2 Upon receipt of a notice referred to in Section 17.1.1, Owner, Company, the Contractor, the Independent Engineer and any Project Third Party, as invited, shall participate in the relevant System Performance Demonstration as described in Section 4 (*System Performance Demonstration*) of Part D (*Verification and Demonstration*) of Attachment 7 (*Design, Construction and Rolling Stock Requirements*).

17.1.3 If, following any System Performance Demonstration, the Independent Engineer has not determinted that all of the Revenue Service Commencement Requirements for that Commuter Rail Project and Commuter Rail Service have been achieved, the Independent Engineer shall issue a notice (the ***Outstanding Requirements Notice***) to Company, specifying those Revenue Service Commencement Requirements that are still outstanding or require rectification by Company. In the event that Contractor is responsible for any such specified Revenue Service Commencement Requirements, Company shall issue an equivalent notice to Contractor.

17.1.4 Promptly upon receipt of the Outstanding Requirements Notice under Section 17.1.3, the Contractor will rectify such Revenue Service Commencement Requirements as are specified in the Outstanding Requirements Notice, and promptly upon completing such rectification, will notify Company, who will notify the Independent Engineer, who shall:

(a) issue the relevant Revenue Service Commencement Certificate if Company has demonstrated that it has satisfied the outstanding Revenue Service Commencement Requirements; or

(b) issue a further Outstanding Requirements Notice if Company has failed to achieve each of the outstanding Revenue Service Commencement Requirements. In the event that Contractor is responsible for any such specified Revenue Service Commencement Requirements, Company shall issue an equivalent notice to Contractor.

17.1.5 When the Company reasonably believes that it has completed the Final Completion Requirements for a Commuter Rail Project and the associated Commuter Rail Service, the Company may request that Independent Engineer issue the Final Completion Certificate for such Commuter Rail Project in accordance with this Section 17.1 (*Issuance of Revenue Service Commencement Certificates and the Final Completion Certificates*).

17.1.6 For each Commuter Rail Project and associated Commuter Rail Service, once the Company has demonstrated that the Final Completion Requirements for such Commuter Rail Project and Commuter Rail Service have been achieved, the Independent Engineer shall issue the Final Completion Certificate in respect of such Commuter Rail Project and Commuter Rail Service.

17.1.7 Where the Independent Engineer has not determinted that all of the Final Completion Requirements have been achieved in respect of a Commuter Rail Project and associated Commuter Rail Service, the Independent Engineer shall promptly and in any event within 10 days following such determination issue a notice (an ***Outstanding Completion Requirements Notice***) in respect of such Commuter Rail Project and such Commuter Rail Service to the Company, specifying those Final Completion Requirements for such Commuter Rail Project and such Commuter Rail Service that are still outstanding or require rectification by the Company before the Independent Engineer shall issue the Final Completion Certificate for such Commuter Rail Project and such Commuter Rail Service. In the event that Contractor is responsible for any such specified Final Completion Requirements, Company shall issue an equivalent notice to Contractor.

17.1.8 Promptly upon receipt of an Outstanding Completion Requirements Notice for any Commuter Rail Project and Commuter Rail Service, the Contractor will rectify such Final Completion Requirements in respect of such Commuter Rail Project and such Commuter Rail Service as are specified in the Outstanding Completion Requirements Notice, and promptly upon completing such rectification, will notify Company, who will notify the Independent Engineer, who shall:

(a) issue the Final Completion Certificate for such Commuter Rail Project and such Commuter Rail Service if the Contractor has demonstrated that it has satisfied the outstanding Final Completion Requirements for such Commuter Rail Project and such Commuter Rail Service; or

(b) issue a further Outstanding Completion Requirements Notice if the Company has failed to satisfy each of the outstanding Final Completion Requirements in respect of such Commuter Rail Project and such Commuter Rail Service. In the event that Contractor is responsible for any such specified Final Completion Requirements, Company shall issue an equivalent notice to Contractor.

WORK CHANGES

18.0 CHANGES

18.1 Sections 18.1 to 18.7 apply to changes requested or required by Company other than changes initiated by Owner, which are addressed by Section 18.10. Changes addressed by Sections 18.1 to 18.7 are referred to herein as Company Proposed Changes. The Scope of Work shall be subject to change

by additions, deletions or revisions thereto by Company. Contractor will be notified of such changes by receipt of additional and/or revised drawings, specifications, exhibits or other written notification.

18.2 If, upon receipt of any notification, Contractor considers that a change is involved that could affect its costs of performing the Work or upon the schedule for performance of the Work, Contractor is obligated to inform Company within two (2) working days of Contractor receiving the notification. Unless Contractor notifies Company in accordance with this Section, Contractor is obliged to perform the Work in accordance with the change and will have no entitlement to any additional compensation or to any change to the schedule.

18.3 Contractor shall submit to Company within ten (10) working days after submission of the notification from Contractor required under Section 18.2 above detailed evidence with supporting calculations and pricing for the change, together with any requested adjustments in the schedule. The pricing shall be itemized as required by Company and shall be in sufficient detail to permit an analysis of all labor, material and equipment and shall cover all work involved in the change, whether such work was deleted, added or modified. Amounts related to subcontracts shall be supported in similar detail. Any adjustments to the schedule must be accompanied by a revised version of the detailed schedule, agreed in accordance with Article 11 and Attachment 9, Section 2.6, Schedule Management, demonstrating that any proposed changes to the schedule have been caused by the change and have affected a critical path on such previously agreed detailed schedule.

18.4 If Contractor does not provide the detailed evidence to Company within the time allowed by Section 18.3, Contractor will have waived any right to additional compensation or to a change to the schedule in respect of the change and will proceed with the work in accordance with the change notification issued pursuant to Section 18.1 above.

18.5 Contractor shall not perform changes in the Work in accordance with Section 18.1 until Company has approved in writing the pricing for the change and any adjustment in the schedule for performance of the Work, except as set forth in Sections 18.4 and 18.6, Company will respond within seven (7) working days. Upon receiving such written approval from Company, Contractor shall diligently perform the change in strict accordance with this Contract.

18.6 Notwithstanding Section 18.5 Company may expressly authorize Contractor in writing to perform the change prior to such approval by Company. Contractor shall not suspend performance of this Contract during the review and negotiation of any change, except as may be directed by Company pursuant to Article 22.0, Suspension of Work.

In the event Company and Contractor are unable to reach timely agreement regarding any change, Contractor shall then comply with Article 23.0, Claims.

18.7 Contractor shall not comply with oral changes in the Work. If Contractor believes that any oral notice or instruction received from Company will involve a change in the cost, time to perform or integrity of the Work, it shall require that the notice or instruction be given in writing and shall comply with the provisions of Sections 18.2, 18.3, 18.5 and 18.6. Any costs incurred by Contractor to perform oral changes shall be for Contractor's account, and Contractor waives any and all rights to claim from Company or Owner for such costs or additional time to perform the Work as a result of compliance by Contractor with such oral changes.

18.8 Contractor Proposed Changes

18.8.1 The Contractor shall not make any changes to, or deviate in any way from, the Project Requirements in the carrying out of the Contract, except as permitted under this Article 18.

18.8.2 If the Contractor wishes to suggest at any time during the Contract any variation to the Final Project Design, the Design, Construction and Rolling Stock Requirements which in its opinion would reduce the cost of constructing, maintaining or operating the Commuter Rail Network, improve the efficiency or value to Company of the completed Commuter Rail Network, enable the Contractor to better manage the risks assumed by the Contractor under this Contract in respect of the Works and/or the Commuter Rail Network, or otherwise be of benefit to Company, (a ***Contractor Proposed Change***), the Contractor may submit, at its own cost, to Company an executive summary of such Contractor Proposed Change (the ***Contractor Change Summary***) setting out the nature of the Contractor Proposed Change and the impact of such Contractor Proposed Change on the Contractor's and Company's rights and obligations under this Contract. Within 15 days of receipt of the Contractor Change Summary, Company shall respond to the Contractor in writing, indicating either:

(a) that it is not prepared to consider the Contractor Proposed Change, in which case Company and the Contractor shall take no further action in respect of such change; or

(b) that it is prepared to consider such Contractor Proposed Change further, in which case the Contractor shall submit a Contractor Change Report in accordance with Section 18.8.3 below.

18.8.3 If Company indicates that it is willing to consider the Contractor Proposed Change further, the Contractor may, at its own cost, submit to Company a report (a ***Contractor Change Report***) clearly setting out in a reasonable level of detail:

(a) the exact nature of the proposed improvements, the specific changes which would be required to the Final Project Design or the Design, Construction and Rolling Stock Requirements (as applicable), and the reason for the Contractor Proposed Change;

(b) full details of how the Contractor Proposed Change will impact the Eagle Project and a summary of the benefit (and any detriment) to Company and Owner of the Contractor Proposed Change;

(c) the matters referred to in Section 18.10.3 with respect to the Contractor Proposed Change; and

(d) any potential effects of the Contractor Proposed Change on the achievement of the DBE Goals and/or the SBE Goals.

18.8.4 The Contractor Proposed Change shall not be implemented without the agreement of Company. Company may, in its discretion, reject the Contractor Proposed Change or agree to the Contractor Proposed Change, which agreement, if granted, may be subject to such conditions, including conditions as to consequential financial adjustments between the Parties, as Company may at its absolute discretion specify, by giving written notice within 28 days of receipt of the Contractor Change Report.

18.8.5 If Company gives no response to the Contractor within 30 days following receipt of the Contractor Change Report, Company shall be deemed to have refused the Contractor any right to implement the Contractor Proposed Change.

18.8.6 If Company agrees to any Contractor Proposed Change, and the Parties agree on the cost and time relief consequences of such Contractor Proposed Change to which the Contractor would be entitled under Section 20.0 (*Relief Events*), then (subject to the right of the Contractor at any time after the issuance of the Contractor Change Report to withdraw the request to proceed with the Contractor Proposed Change, subject however to reimbursement to Company of the reasonable documented and proper external professional costs incurred to third parties in responding to the Contractor's request up to that time), Company shall, within 14 days of reaching agreement with the Contractor on the cost and time relief consequences of the Contractor Proposed Change, issue a written instruction to the Contractor to proceed with the Contractor Proposed Change and the Contractor shall implement such change or alteration as soon as practicable in accordance with Section 18.11 (*Implementation of Changes*) and the Contractor may claim for a

Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*) (**provided** the other requirements of Section 20.0 (*Relief Events*) are satisfied). If a Contractor Proposed Change results in a reduction in the cost of the Eagle Project to Company (not including such part of the Eagle Project cost reduction that Company is not entitled to benefit from), Company and the Contractor shall be entitled to share in such cost reduction in the following proportions: 45% for Company and 55% for the Contractor (or such other proportions as the Parties may agree).

18.8.7 The Contractor shall, and shall ensure that its Subcontractors shall, use all Reasonable Efforts to mitigate costs, changes to the Service Payment and extension of the period for completion of the Work as necessary (by reorganizing the Project Schedule or otherwise) as a result of any such Contractor Proposed Change.

18.8.8 At all times notwithstanding any submission of Contractor Proposed Change, or the ongoing consideration or any dispute regarding such Contractor Proposed Change, the Contractor shall continue to comply without delay with all of its obligations under this Contract and the other Project Contracts including continuing to perform all other Work.

18.9 No Relief of Contractor's Obligations

None of the submission of any Contractor Proposed Change pursuant to Section 18.8.1 (*Contractor Proposed Changes*), any approval or refusal by Company or the submission of comments or objections by Company will relieve the Contractor in any way from any of its obligations, liabilities and responsibilities under this Contract and the other Project Contracts.

18.10 Owner Proposed Changes

18.10.1 If Owner wishes to initiate at any time during the Contract any change or alteration to the Final Project Design, the Design, Construction and Rolling Stock Requirements, Company shall be entitled to submit a written request in respect of such change or alteration (an ***Owner Proposed Change***) to the Contractor at Company's own cost. Within 15 days of receipt of an Owner Proposed Change, the Contractor shall respond to Company in writing, at its own cost, (an ***Owner Change Summary***) indicating:

(a) whether it has any objection to carrying out the Owner Proposed Change on the grounds of safety of either construction of the relevant Commuter Rail Project or operation of the relevant Commuter Rail Service;

(b) the estimated order of magnitude of the cost to be incurred or, as the case may be, saved by the Contractor in implementing the Owner Proposed Change; and

(c) the expected impact of the Owner Proposed Change on the Critical Path of the Work .

18.10.2 If Company elects to continue to pursue the Owner Proposed Change on the basis of the Owner Change Summary, it shall so notify the Contractor within 15 days of receipt of the Owner Change Summary and shall indicate to the Contractor whether Company intends to provide funding, if necessary, for such Owner Proposed Change.

18.10.3 Within 30 days of receipt of a notice from Company pursuant to Section 18.10.2, the Contractor shall indicate in a written report to Company (an ***Owner Change Report***):

(a) full details of how the proposed implementation of such Owner Proposed Change will impact the Eagle Project;

(i) the additional costs which the Contractor reasonably expects to incur (the labor, material and equipment elements of which shall be estimated on the basis set out in the Company Pricing Conditions) and/or any cost savings which could be made by the Contractor should such Owner Proposed Change be implemented (providing with such estimate all necessary supporting calculations and information including detailed particulars of additional sums to be paid to the Subcontractors);

(b) any impact upon the time (estimated on a fixed time basis) for achievement of any milestones for the Work and the length of any extension of the dates for any milestones for the Work to which the Contractor considers itself entitled should such Owner Proposed Change be implemented and any adjustments to the Original Baseline Schedule (or, as the case may be, Revised Baseline Schedule) which the Contractor reasonably requires;

(c) any additional Permits required to be obtained;

(d) the identity of the Subcontractors which the Contractor intends to engage for the purposes of effecting such Owner Proposed Change;

(e) any further effects (including benefits) which, after careful consideration, the Contractor foresees as being likely to result from such Owner Proposed Change, if implemented; and

(f) any impact on the achievement of the DBE Goals and/or the SBE Goals,

provided that the Owner Change Report shall be consistent with the Owner Change Summary.

18.10.4 The Contractor shall, and shall ensure that its Subcontractors shall, use all Reasonable Efforts to mitigate any additional costs, changes to the Service Payment or extension of the period for completion of the Work as necessary (by reorganizing the Project Schedule or otherwise) and to maximize any cost savings, in each case as a result of any such Owner Proposed Change.

18.10.5 Within 15 days of Company receiving the Owner Change Report, the Parties shall meet to discuss the contents thereof and any amendments thereto that Company considers appropriate.

18.10.6 Company shall, within 15 days of the meetings held in accordance with Section 18.10.5, confirm in writing to the Contractor whether it agrees to the additional costs, cost savings, changes to the Service Payment and/or the extension of the dates for any milestones set out in the Owner Change Report (as amended or varied pursuant to the meetings held in accordance with Section 18.10.5) or accepts the objections of the Contractor on safety grounds.

18.10.7 If Company does not agree with the Contractor's proposal, or if there is disagreement regarding any of the matters set out in the Owner Change Report, then Company may notify the Contractor of the conditions or adjustments (to the estimated additional cost, cost savings or impact on time) to the Owner Change Report it considers reasonably applicable to the implementation of the Owner Proposed Change or Company may elect to implement the Owner Proposed Change or engage one or more third party contractors to implement such Owner Proposed Change at its own cost and the Contractor shall give Company all reasonable assistance to permit Company to carry out such work including providing any necessary access to Company and its contractors; **provided** that Company shall reimburse the Contractor for the reasonable documented and proper professional costs incurred to third parties in preparing the Owner Change Report. To the extent that the Contractor is unable to perform its obligations under this Contract or incurs any Direct Costs or delay as a result of the actions of such third party contractors

employed by Company to implement an Owner Proposed Change under this Section 18.10.7, the Contractor may claim for a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*) (provided that the other requirements of Section 20.0 (*Relief Events*) are satisfied.

18.10.8 If the Contractor does not accept the conditions or adjustments to the Owner Change Report proposed by Company, the Contractor may refer such dispute for resolution in accordance with the Dispute Resolution Procedure, which shall refer to the prices of comparable equipment or systems in determining whether the Contractor's proposal was reasonable in the circumstances, **provided** that Company shall be entitled to require the Contractor to implement the Owner Proposed Change (in accordance with the Owner Change Report subject to the conditions or adjustments imposed by Company) pending resolution of such Dispute, in which case the Contractor may claim for a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*) (provided that the other requirements of Section 20.0 (*Relief Events*) are satisfied.

18.10.9 Once the Parties agree or a determination has been made in accordance with the Dispute Resolution Procedure with respect to either the Contractor's proposal or Company's conditions or adjustments under this Section 18.10.1 (*Owner Proposed Changes*), without prejudice to the right of Company at any time after submission of an Owner Proposed Change to withdraw the request to proceed with Owner Proposed Change (subject however to reimbursement to the Contractor of the reasonable documented and proper professional costs incurred to third parties in responding to Company's request up to that time), Company shall, if it has not already done so in accordance with Section 18.10.8 and within 14 days after such agreement or determination, issue a written instruction to the Contractor to proceed with the Owner Proposed Change and the Contractor, shall implement such change or alteration as soon as practicable in accordance with Section _ (*Implementation of Changes*) and the Contractor may claim for a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*) (provided that the other requirements of Section 20.0 (*Relief Events*) are satisfied).

18.11 Implementation of Changes

18.11.1 Each Change shall be implemented by the Contractor on a fixed price, fixed time basis (as agreed by the Parties pursuant to Section 18.5, Section 18.8.6 or Section 18.10.5 or as agreed or determined in accordance with the Dispute Resolution Procedure pursuant to or Section 18.10.9) unless Company specifies otherwise, by means of

an amendment to the Contract, or by contractors, subcontractors and consultants reasonably acceptable to Owner and Company.

18.11.2 If Company or Owner does not agree with the contractors, subcontractors and consultants selected by the Contractor to carry out a Change or with the contract price or time period submitted by the such contractors, subcontractors and consultants, the Contractor shall conduct a procurement process to select such contractors, subcontractors or consultants with the approval of Company and Owner in respect of:

(a) the form and requirements of the proposed procurement documents (including the proposed form of contract between the Contractor and the relevant contractor and guarantees and other security for performance thereof);

(b) the procurement process itself; and

(c) the selection of, and qualifying criteria for, contractors or subcontractors to be invited to participate in such tendering process.

18.11.3 Upon the Contractor Proposed Change, Company Proposed Change or Owner Proposed Change under this Article 18(*Changes*) being agreed or any dispute relating thereto being resolved or determined in accordance with the Dispute Resolution Procedure, as the case may be, the provisions of this Contract will continue to apply to the Contractor's obligations under this Contract, as such obligations are amended or varied by such Change. The Parties will implement any amendments or supplements to this Contract as are necessary to reflect such Change.

18.11.4 The Contractor shall keep Company informed of the progress of work carried out in connection with the implementation of each Change (and the associated cost) and will notify Company when such work is, in the opinion of the Contractor, complete.

18.12 Directive Letters

18.12.1 In the event of any Dispute regarding the scope of the Contractor's obligations or whether the Contractor has performed or is performing its obligations in accordance with this Contract, Company may issue a letter (a ***Directive Letter***) to the Contractor. The Directive Letter will state that it is issued under this Section 18.12.1 and will describe the work that Company requires the Contractor to perform. The Contractor shall proceed immediately to carry out the work identified

in the Directive Letter, pending resolution of the relevant Dispute in accordance with the Dispute Resolution Procedure.

18.12.2 If it is determined, in accordance with the Dispute Resolution Procedure, that the Contractor was not required to perform the work identified in the Directive Letter pursuant to this Contract, such Directive Letter shall constitute an Owner Proposed Change and the Contractor may claim for a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*) (provided that the other requirements of 20.0 (*Relief Events*) are satisfied).

18.12.3 The fact that a Directive Letter was issued by Company shall not be considered evidence that in fact an Owner Proposed Change occurred. The determination whether an Owner Proposed Change in fact occurred shall be based on an analysis of the original requirements of this Contract and a determination as to whether the Directive Letter in fact constituted a change in those requirements.

18.13 Audit

Company has the right to audit Contractor for the purpose of determining the scope, pricing and validity of proposed Change Order documentation generated by the Contractor or its Subcontractors.

19.0 CHANGE IN LAW

19.1 Notice of Change in Law

19.1.1 Where a Change in Law occurs, either Party may (provided it does so within 30 days of becoming aware of the occurrence of such Change in Law) notify the other Party in writing (a ***Change in Law Notice***) of its opinion (and the basis and supporting details for such opinion, including advice of advisers, as to whether such Change in Law will result in a material delay or increase in the cost of the carrying out the Work during the Contract.

19.1.2 Within 30 days of the date of receipt of the Change in Law Notice, the Party that received the Change in Law Notice shall notify the Party that sent the Change in Law Notice that either:

(a) it agrees with the matters in the Change in Law Notice; or

(b) it does not agree with the matters in the Change in Law Notice, in which case it will set out in its notice the grounds of objection.

19.1.3 If the Party that received the Change in Law Notice:

(a) agrees with the matters in the Change in Law Notice; or

(b) does not respond within the period specified in Section 19.1.2,

then the provisions of Section 19.2.1 shall apply.

19.1.4 If the Party that received the Change in Law Notice does not agree with the Change in Law Notice, the Parties' Designated Senior Representative shall in accordance with Section _, and as soon as practicable after receipt of the notice pursuant to Section 19.1 (and in any event within 10 days), discuss in good faith in order to agree the disputed matters contained in the Change in Law Notice and any ways in which the effects of the Change in Law may be mitigated or avoided. If the Parties cannot agree on the disputed matters contained in the Change in Law Notice, the dispute shall be determined by the Technical Panel, the Financial Panel or arbitration, as appropriate, in accordance with the Dispute Resolution Procedure to determine whether a Change is necessary.

19.2 Change in Law Change

19.2.1 If the Parties agree, or it is determined in accordance with the Dispute Resolution Procedure, that a Change is necessary as a result of a Change in Law (a ***Change in Law Change***), the extent to which the cost of carrying out the Change in Law Change is to be borne by Company and/or the effects of the Change in Law Change on the carrying out of the Work during the Contract shall be determined in accordance with Section 19.2.2.

19.2.2 Company and the Contractor shall discuss and agree whether an extension of the dates for any milestones is necessary as a result of a Change in Law Change. Company shall pay to the Contractor:

(a)during the Contract, the Direct Costs constituting additional capital expenditure costs (if any) required to implement a Change in Law Change to the extent such costs, as stated in the Change in Law Notice or determined in accordance with Section 19.1.4,.

19.3 Any decrease in the cost of the Work or increase in the amount of gross income calculated pre-tax received by the Contractor resulting from any Change in Law shall be retained by the Contractor up to the thresholds referred to above and all amounts of benefit resulting from any Change in Law beyond those thresholds shall be reflected by a reduction commensurate with the amount of such benefit, in the Service Payment so that the Contractor does not receive a benefit where the benefit is above those thresholds.

19.4 If a payment is to be made by Company for a Change in Law Change, such payment shall become due and payable by the date 60 days after the date set in accordance with the agreement or determination described in this Section 19.2.1 (*Change in Law Change*) but shall be limited to an amount or amounts necessary so as to put the Contractor in the same economic position in which it would have been had the Change in Law not been made.

19.5 The Contractor agrees that its right to relief in respect of a Change in Law Change shall be limited to the relief agreed or determined in accordance with this Section 19.2.1 and that it shall not pursue, and hereby waives, any claims that it may have in respect of any additional cost or time relief consequences of such Change in Law Change whatsoever.

19.6 Not used.

19.7 Not used.

20.0 RELIEF EVENTS

20.1 For the purposes of this Contract, the term ***Relief Event*** means any of the following events or circumstances or any combination of such events or circumstances:

20.1.1 a dispute raised by a Project Third Party relating to the compliance of a Contractor Design Submittal with the requirements for such Contractor Design Submittal as set out in the Third Party Agreements to the extent that it is subsequently determined, in accordance with the procedures set out in the applicable Third Party Agreement, that the Contractor Design Submittals submitted to that Project Third Party does comply with the requirements for such Contractor Design Submittal as set out in the Third Party Agreements; **provided** that the Contractor shall only be entitled to relief in respect of the delay caused by such dispute to the extent such delay directly relates to the Contractor's obligations with respect to Contractor Design Submittals;

20.1.2 a failure by a Project Third Party to review and comment on any Contractor Design Submittal submitted by the Contractor in accordance with the time periods referred to in Section 4.10.2; **provided** that the extension of time to which the Contractor shall be entitled shall be limited to the delay directly caused by the failure of such Project Third Party to review and comment in accordance with the time periods set out in the Contract Data Requirements List and the Third Party Agreements to the extent such delay directly relates to the Contractor's obligations with respect to Contractor Design Submittals;

20.1.3 the implementation of a Change in accordance with Section 18(*Changes*) or a Change in Law Change to the extent provided in Section 19.2.2;

20.1.4 any willful misleading of the Contractor as described in Section 4.3 (*Deficiencies in Reference Data*);

20.1.5 a violation of Applicable Requirements by Owner as agreed by Owner or, if Owner disputes the occurrence of a violation of Applicable Requirements by Owner, as evidenced by a final unappealable ruling of court of law in a competent jurisdiction or of an arbitral tribunal in a binding arbitration (as the case may be), otherwise than as contemplated in this Contract and/or required by Applicable Requirements;

20.1.6 a failure of Company to obtain for the Contractor the benefit of Company Permits in accordance with the timetable agreed between Company and the Contractor in accordance with the procedures set out in Attachment 9 (*Project and Construction Management*); but only to the extent that such failure is not caused by the Contractor's failure to make timely or proper applications, or the breach of or failure to comply with Applicable Requirements or the conditions attached to such Company Permits;

20.1.7 a suspension of the Work by Company or Owner except where default by Contractor is causative of such suspension;

20.1.8 a failure by Company to make storage facilities in Denver available to Contractor within the time agreed,

but, in each case, only to the extent that:

(a) such event or circumstance (and/or its effects and consequences on the Contractor) does not result from and is not contributed to by any breach by the Contractor of its obligations under this Contract or any of the other Project Contracts or any negligent act or omission of the Contractor;

(b) such event or circumstance has arisen notwithstanding the Contractor complying with its obligations under this Contract, and in accordance with its obligations under Attachment 9 (*Project and Construction Management*); and

(c) the Contractor has at all times complied with its obligations under Section 20.3.1 (*Mitigation in case of a Relief Event*) with respect to minimizing and mitigating the consequences of the Relief Event.

20.2 Notification of Relief Event

20.2.1 Subject to compliance by the Contractor with the requirements of this Section 20.0 (*Relief Events*), the Contractor shall be entitled to relief from performance of its obligations under this Contract to the extent that the Contractor is prevented from complying with its obligations under this Contract by any Relief Event or the Contractor's ability to perform its obligations under this Contract is adversely affected by any Relief Event.

20.2.2 Except in the case of a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*) (to which the provisions of Section 20.6.1 (*Relief for Changes and Work Orders*) shall apply), the Contractor will give written notice to Company as soon as practicable (and in any event, within 10 days) upon the Contractor becoming aware of the occurrence of a Relief Event (a ***Relief Notice***). The Contractor shall not be entitled to any relief if a Relief Notice is not submitted within this time period.

20.2.3 The Relief Notice will include, to the extent reasonably ascertainable at the date of such Relief Notice:

(a) details of the nature of the Relief Event and its duration (or the Contractor's estimate of its likely continued duration);

(b) an estimate of its likely impact on the Eagle Project, details of the steps taken or to be taken by the Contractor to avoid the Relief Event, and reasons why the Relief Event could not be avoided by the Contractor; and

(c) an estimate of the extension of time the Contractor requires to fulfill the relevant obligations under this Contract.

20.2.4 If and for as long as the Relief Event is continuing, the Contractor will provide Company periodically (and at least on a weekly basis) with updates of the Relief Notice.

20.2.5 During the continuance of any Relief Event, the Contractor will grant Company such access to any Site and/or the Rolling Stock and provide such information as required for the purposes of establishing the accuracy of the Relief Notice.

20.3 Mitigation in case of a Relief Event

20.3.1 The Contractor will use its Reasonable Efforts to anticipate the effect of any Relief Event and will use, and will require each of its Subcontractors to use Reasonable Efforts to minimize and/or mitigate

the consequences of any Relief Event (both in terms of delay and cost) which measures shall include:

(a) rearranging the order in which the Work is scheduled to be performed under the Project Schedule;

(b) procuring that the Work be divided (or further divided) into components that can be undertaken separately and/or concurrently.

20.4 Extension of time and other relief for Relief Events occurring during the Contract

20.4.1 Where the carrying out of the Work has been delayed as a result of the occurrence of a Relief Event during the Contract, the Milestone dates shall, to the extent necessary, be extended as agreed in writing by the Parties, or as determined in accordance with the Dispute Resolution Procedure (as the case may be), to reflect the impact of the Relief Event on the Critical Path of the Work. Such impact shall be determined:

(a) taking into account the Contractor's representations in its Relief Notice;

(b) on the basis that the Contractor and the Design/Build Contractor will use Reasonable Efforts to minimize and mitigate the effects of the Relief Event in accordance with Section 20.3.1; and

(c) after taking into account any requirement by Company for the Contractor to accelerate the relevant Work in accordance with Section 14.0 (*Acceleration of Work*).

provided that (A) with respect to a Relief Event, under paragraph 20.1.3 of Section 20.1 (*Relief Events*), such extension shall be determined in accordance with Section 20.6.1(a).

20.4.2 The Contractor shall be entitled to claim, and be paid by Company, the Direct Costs actually incurred by it as a result of the disruption to the Contractor's performance of this Contract caused by any Relief Event, other than: (i) a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*), to which Section 20.6.1 (*Relief for Changes and Work Orders*) shall apply; and (ii) the first three months during which Contractor stores Cars at its Manufacturing Site subject to Section 20.3.1 (*Mitigation in case of a Relief Event*) and subject to space being available at the Contractor Manufacturing Site.

20.4.3 Any claim by the Contractor under Section 20.4.1 to 20.4.3 shall be accompanied by supporting details of the Direct Cost claimed (the labor, material and equipment elements of which shall be calculated on the basis set out in the Contractor Pricing Conditions).

20.5 Reductions for Contributory Acts of Contractor and Failure to Mitigate

20.5.1 The Direct Costs payable by Company as a result of any Relief Event shall be reduced by the portion of such Direct Costs that directly resulted from:

(a) any breach by the Contractor of its obligations under this Contract or any of the other Project Contracts or any negligent act or omission of the Contractor; or

(b) any failure by the Contractor to comply with Section 20.3.1 (*Mitigation in case of a Relief Event*).

20.6 Relief for Changes and Work Orders

20.6.1 In the event of the occurrence of a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*), subject to Section 19.2.1 (*Change in Law Change*) in respect of Change in Law Changes, the Contractor shall be entitled to the following relief, as applicable:

(a) an extension of time equal to the fixed period of time agreed between the Parties in respect of such Change in accordance with Section 18.8.1 (*Contractor Proposed Changes*) or Section 18.10.1 (*Company Proposed Changes*), as applicable;

(b) compensation equal to the fixed price agreed between the Parties in respect of such Change in accordance with Section 18.8.1 (*Contractor Proposed Changes*) or Section 18.10.1 (*Company Proposed Changes*), as applicable and

(c) compensation equal to Contractor's Incurred Costs in connection with a Directive Letter to the extent that Contractor was not required to perform the work identified in the Directive Letter as determined in accordance with Section 18.12.2.

20.6.2 The Contractor agrees that its right to relief in respect of a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*), subject to Section 19.2.1 (*Change in Law Change*) in respect of Change in

Law Changes, shall be limited to the relief referred to in Section 20.6.1 and that it shall not pursue, and hereby waives, any claims that it may have in respect of any additional cost or time relief consequences of such Relief Event whatsoever.

20.7 Payment of Direct Costs

20.7.1 Any Direct Costs payable by Company in accordance with this Section 20.0 (*Relief Events*) shall be paid by Company by direct lump sum payment in accordance with Part II Commercial Terms, Section 5.0 Payment Terms.

20.8 Dispute as to Relief Event

20.8.1 Any Dispute between the Parties regarding the existence, duration or effect of any Relief Event may be referred by either Party for resolution in accordance with the Dispute Resolution Procedure.

20.9 Memorandum of relief

20.9.1 Upon agreement between the Parties (or, as the case may be, upon determination in accordance with the Dispute Resolution Procedure) as to the scope of the relief to which the Contractor is entitled in respect of any Relief Event (other than a Relief Event under paragraph 20.1.3 of Section 20.1 (*Relief Events*), to which Section 20.6.1 (*Relief for Changes and Work Orders*) shall apply), the Parties shall execute a written memorandum setting out the details of such agreement (or, as the case may be, determination).

20.10 Exclusive remedies

20.10.1 The Contractor agrees that, except as otherwise provided in this Contract, the remedies set out in Sections 20.4.1 (*Extension of time and other relief for Relief Events occurring during the Contract*) or, as the case may be, Section 20.6.1 (*Relief for Changes and Work Orders*) will be its sole and exclusive remedies as against Company or any Project Third Party for any Loss suffered or costs incurred by the Contractor arising out of or in connection with the Relief Event or the delay or disruption caused by the Relief Event.

21.0 FORCE MAJEURE

21.1 Force Majeure Events

21.1.1 For the purposes of this Contract, the term ***Force Majeure Event*** means any of the following events or circumstances or any combination of such events or circumstances:

(a) act of war (whether declared or undeclared), invasion, armed conflict, or act of foreign enemy, in each case involving, imminently threatened within or directly affecting the United States of America, **provided** that where only threatened, the actions taken by the Contractor must be reasonable in view of and proportionate to the threat;

(b) the occurrence of force majeure under any Third Party Agreement or action (including a Change in Law) taken by any Project Third Party (or their respective agents or contractors) or any other Relevant Authority, including the Transportation Security Administration, the United States Department of Homeland Security, FRA, FTA or Federal Aviation Administration (or any successor entity of the foregoing agencies) in response to a threat to public health, safety, security or the Environment, in each case, the effect of which is to suspend the performance by the Contractor of any of its obligations under this Contract;

(c) revolution, riot, insurrection, civil commotion, sabotage or terrorism in each case arising or imminently threatened within and/or affecting the United States of America, **provided** that where only threatened, the actions taken by the Contractor must be reasonable in view of and proportionate to the threat;

(d) strikes or industrial action unless they are solely restricted to employees of the Contractor and/or their respective Subcontractors;

(e) nuclear explosion, radioactive or chemical contamination or ionizing radiation, biological contamination of any Site, unless the source or cause of the explosion, contamination, radiation or hazardous material is brought to or near such Site by the Contractor, the Design/Build Contractor or any Design/Build Subcontractor or any of their employees, servants, agents or consultants;

(f) fire, explosion, storm, flood, earthquakes, landslide but only where it causes material and unavoidable damage to the Rolling Stock and/or it damages all or any material part of any Site, the Work or the Rolling Stock or means that the Rolling Stock cannot or substantially cannot be used;

(g) a legally imposed quarantine, against which the Affected Party (as defined below) could not reasonably have been expected to take precautions, and which prevents or delays the

performance by the Affected Party of its obligations under this Contract;

(h) embargo or trade sanctions having an adverse effect on the performance of this Contract;

(i) any other event outside the reasonable control of the Affected Party, and which was not reasonably foreseeable by the Affected Party as at the date of this Contract, where such event materially and unavoidably prevents or delays the Affected Party from performing any of its obligations under this Contract; **provided** that:

(i) the term "reasonably foreseeable" means any event or circumstance or category of events or circumstances specifically described in this Contract or which the Affected Party knew, or should have known, may occur, and which is of a type that a construction contractor or operator or vehicle supply contractor, acting in accordance with Good Industry Practice and this Contract, would have taken steps to avoid or protect itself against; and

(ii) an event shall not qualify as a Force Majeure Event under this paragraph (i) where such event is an event of the same type as an event which is classified as a:

(A) Force Majeure Event under paragraphs (a) to (h) above; or

(B) such event is an event of the same type as an event which is classified as a Relief Event,

but in each case only to the extent that:

(I) the same is outside of the Contractor's control and does not arise from and is not contributed to by any breach by the Contractor of its obligations under this Contract or the other Project Contracts or any other neglect, default, act or omission of the Contractor;

(II) such events or circumstances have arisen notwithstanding the Contractor complying with its obligations under this Contract, and in accordance with its obligations under Attachment 9 (*Project and Construction Management*) or the O&M Submittals;

(III) the Contractor has at all times complied with its obligations under Section 21.6.1 (*Mitigation in case of a Force Majeure Event*) with respect to minimizing and/or mitigating the consequences of the Force Majeure Event.

21.2 Relief from liability

21.2.1 None of Company, anyone acting on behalf of Company, the Contractor or anyone acting on behalf of the Contractor will be liable for any failure to comply, or delay in complying, with any obligation under or pursuant to this Contract to the extent that such failure or delay is caused directly by a Force Majeure Event, **provided** that no such relief may be claimed in respect of any obligation to pay any amounts that may from time to time becoming owing hereunder.

21.3 Notification and determination of the effect of a Force Majeure Event

21.3.1 If either Party claims that it, or anyone acting on its behalf, has been prevented or delayed from or in performing any of its obligations under this Contract by a Force Majeure Event, such Party (the ***Affected Party***) shall give written notice to the other Party as soon as practicable (and in any event, within 6 days) upon the Affected Party becoming aware of such Force Majeure Event (a ***Force Majeure Notice***).

21.3.2 The Force Majeure Notice will specify the circumstances constituting the Force Majeure Event, its likely duration and consequences (to the extent then reasonably ascertainable) and the Affected Party's obligations under this Contract which is delayed or prevented.

21.3.3 During a period of 30 days commencing from the receipt of a Force Majeure Notice by the relevant Party, Company and the Contractor will meet to discuss the Force Majeure Event and its consequences and, to the extent then possible, to determine the most effective way of proceeding with the Affected Party's obligations, and with the Work

or the operation of the Rolling Stock and will use all Reasonable Efforts to minimize the adverse effects of the Force Majeure Event.

21.3.4 If Company and the Contractor cannot agree on a way of proceeding with the Affected Party's obligations, and with the Work or the operation of the Rolling Stock during such 30-day period, either of the Parties may, within 10 days following such 30-day period, refer the Dispute for resolution in accordance with the Dispute Resolution Procedure or, if the Force Majeure Notice is not so contested, both Company and the Contractor will be deemed to have accepted the validity of the claim.

21.3.5 The Affected Party will keep the other Party informed of any further information it receives relating to the Force Majeure Event or any failure or delay in complying with its obligations under this Contract.

21.4 Financial Responsibility

21.4.1 Subject to Section 21.7 (*Extensive Force Majeure Event*), so long as a Force Majeure Event is, or its consequences are, continuing, except as otherwise provided in this Contract, the following shall apply in respect of a Force Majeure Event:

(a) subject to Section 24 (*Protection of Materials, Equipment and Work*) and to the provision of funds by Owner where the Force Majeure Event is included in any Uninsurable Risk that Owner has assumed or where Relevant Proceeds are not available pursuant to Section 24.5.1 (*Insurance Proceeds*) or are insufficient to fund the total costs of performing the Restoration Plan, the Contractor shall pay all the costs of rectifying any damage caused by a Force Majeure Event, and shall not be entitled to claim any Direct Costs resulting from the Force Majeure Event; and

(b) the Contractor shall not be entitled to compensation for any loss of income or consequential loss.

21.5 Extension of Time for Force Majeure Events occurring during the Contract

21.5.1 Where the carrying out of the Work has been delayed as a result of the occurrence of a Force Majeure Event during the Contract, the dates for any Revenue Service Target Date, the Revenue Service Deadline Date and/or the Final Completion Deadline Date shall, to the extent necessary, be extended as agreed by the Parties, or as determined in accordance with the Dispute Resolution Procedure (as the case may be), to reflect the impact of the Force Majeure Event on the critical path of the Work. Such impact shall be determined:

(a) taking into account the Contractor's representations in its Force Majeure Notice;

(b) on the basis that the Contractor will use Reasonable Efforts to minimize or mitigate the effects of the Force Majeure Event in accordance with Section 21.6.1; and

(c) after taking into account any requirement by Company for the Contractor to accelerate the relevant Work in accordance with Section 14.0 (*Acceleration of Work*).

21.6 Mitigation in case of a Force Majeure Event

21.6.1 The Parties will use their Reasonable Efforts to anticipate the effect of any Force Majeure Event and will use, and (so far as the Contractor is concerned) will require each of the Project Contractors and the Subcontractors to use, their Reasonable Efforts to minimize and/or mitigate the consequences of any Force Majeure Event (both in terms of delay and cost) which measures shall include:

(a) rearranging the order in which the Work is scheduled to be performed under the Project Schedule;

(b) procuring that the Work be divided (or further divided) into components that can be undertaken separately and/or concurrently; and

(c) minimizing the costs of operation and maintenance (including overhead and variable costs) which are incurred during the continuance of the Force Majeure Event.

21.7 Extensive Force Majeure Event

21.7.1 In the event that the Concession Agreement is terminated on account of an Extensive Force Majeure Event, this Contract will also be terminated.

21.8 Dispute

21.8.1 Any Dispute between the Parties regarding the existence, duration or effect of any Force Majeure Event may be referred for resolution in accordance with the Dispute Resolution Procedure.

21.9 Memorandum of Relief

21.9.1 Upon agreement between the Parties (or, as the case may be, upon determination in accordance with the Dispute Resolution Procedure) as to the scope of the relief to which the Contractor is entitled in

respect of any Force Majeure Event, the Parties shall execute a written memorandum setting out the details of such agreement (or, as the case may be, determination).

22.0 SUSPENSION OF WORK

22.1 Company may, at any time and from time to time, by written notice to Contractor, suspend further performance of all or any portion of the Work by Contractor. Said notice of suspension shall specify the date of suspension and the estimated duration of the suspension. Such suspensions shall not exceed one hundred eighty (60) consecutive calendar days each nor aggregate more than two hundred seventy (120) calendar days. Upon receiving any such notice of suspension, Contractor shall promptly suspend further performance of the Work to the extent specified, and during the period of such suspension shall properly care for and protect all Work in progress and materials, supplies, and equipment Contractor has on hand for performance of the Work. Upon the request of Company, Contractor shall promptly deliver to Company copies of outstanding subcontracts of Contractor and shall take such action relative to such subcontracts as may be directed by Company. Contractor shall use its best efforts to utilize its material, labor and equipment in such a manner as to mitigate costs associated with suspension. Company may, at any time, withdraw the suspension of performance of the Work as to all or part of the suspended Work by written notice to Contractor specifying the effective date and scope of withdrawal, and Contractor shall resume diligent performance of the Work for which the suspension is withdrawn on the specified effective date of withdrawal.

22.2 If Contractor believes that any such suspension or withdrawal of suspension justifies modification of the Contract Price, Contractor shall comply with the provisions of the procedure set forth in Article 18.0, Changes. Contractor's final claim for modification of the Contract Price shall substantiate Contractor's increased costs for such suspension or withdrawal of suspension, with documents satisfactory to Company. Upon Company's verification and approval of such additional costs, Contractor and Company shall agree upon an adjustment in the Contract Price, based upon such verified and approved additional costs as full settlement to Contractor for the suspension or withdrawal of suspension. Contractor shall not be entitled to any prospective profits or any damages because of such suspensions or withdrawals of suspension.

22.3 Contractor acknowledges and accepts the rights of Owner under Sections 23.2 and 41.2(b)(iii) of the Concession Agreement. Any notice received from RTD under Sections 23.2 (*Suspension of Work*) and 41.2(b)(iii) (*Consequences of a Concessionaire Termination Event*) of the Concession Agreement shall be communicated immediately to the Contractor by Company. Without limitation

to any other rights of Company under this Contract, Company shall be entitled to order the suspension of any part of the Work in the event that Owner suspends work by Company, which Owner is entitled to do in the following circumstances:

22.3.1 in the event of an emergency that creates an immediate need and serious threat to public health, safety, security or the Environment;

22.3.2 where it has reasonable grounds for concluding that damage to any part of Owner's existing system, any Site, or any assets owned by any party on any part of any Site or personal injury to the employees or contractors of Owner or any Project Third Party or Passengers or third parties is likely to result from the continuation of the Work;

22.3.3 if Owner is notified by a Project Third Party that the Work does not comply with the requirements of a Third Party Agreement; or

22.3.4 if Owner is notified by any Relevant Authority that the Work is in breach of any Applicable Requirement.

22.4 Any suspension required by Company shall last for the duration of such event or for so long as such grounds exist or until either the Contractor or Company has undertaken appropriate remedial action to prevent such damage or injury to the reasonable satisfaction of Owner.

22.5 Any delay to or increase in the costs of the completion of the Work caused by the suspension of the Work by Company pursuant to Sections 22.1, 22.2 and 22.3 shall not, in itself, constitute a Relief Event, without prejudice to the Contractor's right to claim a Relief Event or Force Majeure Event in respect of such event where grounds for a Relief Event or Force Majeure Event are expressly provided elsewhere in this Contract.

23.0 CLAIMS

23.1 If, for any reason, Contractor considers that an event has occurred pursuant to which it has a right to claim compensation from Company or an extension to the schedule, Contractor shall notify Company in writing of the existence of such claim within five (5) working days of the Parties' failure to reach a timely agreement pursuant to Section 18.6 for changes or from the occurrence of the event in question for other claims. Within ten (10) days of giving such a notification, Contractor shall submit to Company the proposed cost and schedule effect of the change. In this respect, Contractor shall comply with the provisions of Section 18.3. Contractor shall substantiate its claim with payroll documents, paid invoices, receipts, records of performance and other documents satisfactory to Company and subject to its verification. Neither Company nor Owner shall be liable for, and Contractor hereby waives, any

claim or potential claim of Contractor which was not reported by Contractor in accordance with the provisions of this Article.

23.2 Company will determine the extent, if any, to which the Contract Price is to be changed by reason of the claim and the extent to which the schedule is to be changed by reason of the claim. Company will advise Contractor of the result of this determination and will issue a Contract modification accordingly. If Contractor disputes Company's determination and notifies Company within five (5) working days of receiving it, Contractor may seek to resolve the dispute in accordance with Article 53.0. If Contractor elects to proceed pursuant to Article 53.0, Contractor agrees to limit its claim to the amount claimed by it in accordance with Section 18.1. In no event shall any work be halted, whether or not the claim can be resolved to Contractor's satisfaction, and Contractor shall be bound by the terms and conditions of this Contract to prosecute the Work without delay to its successful completion.

23.3 The following shall not constitute changes and Contractor has no right to make any claim in relation thereto:

23.3.1 Instructions, interpretations, decisions or acts by Company which are:

(a) to achieve compliance with the Contract by Contractor; or

(b) to correct errors, omissions, poor engineering, defective workmanship or other failure of the Contractor to comply with the Contract;

23.3.2 Delay in the performance of Contractor’s work or any additional work caused by Contractor.

23.3.3 Any work performed by Contractor required by Company comments to Contractor’s submittals to the extent that such comments are consistent with the Contract.

23.4 If Contractor fails to follow the requirements of Section 18.8, it shall have waived any right to make any claim in respect of the events referred to in Section 18.8. Contractor's sole remedy in respect of any claim will be as provided in Section 18.8. No claim by Contractor in relation to events referred to in Section 18.8 shall be allowed after final payment is made pursuant to the provisions set forth in Article Contract Part II Section 5.0 Payment Terms.

23.5 Company shall not be bound to any adjustments in the Contract Price or scheduled time unless expressly agreed to by Company in writing.

MATERIALS AND EQUIPMENT

24.0 PROTECTION OF MATERIALS, EQUIPMENT AND WORK

24.1 Contractor shall at all times prior to Initial Acceptance of Rolling Stock, in accordance with the best practices and at no additional cost to Company, preserve and protect the Rolling Stock and material and equipment used by Contractor in the execution of the Work from damage or loss from any cause, including weather, fire, theft and unexplained disappearance, and shall require each Subcontractor to do the same.

24.2 Up to delivery at Site, neither Company, Concessionaire nor Owner shall be responsible for any loss suffered by Contractor, or damage to the Work, or to materials, tools and equipment of Contractor or of any other contractor, and Contractor assumes responsibility for any such loss or damage and for any cost of repairing, making good, or replacing any such loss or damage that may be directed by Company or Owner.

24.3 If any part of the Rolling Stock shall be damaged or partially destroyed (a ***Relevant Incident***, and such part of the Rolling Stock, the ***Affected Portion***), the provisions of this Section 24 shall apply, irrespective of whether such Relevant Incident results from a Relief Event, a Contractor Termination Event, a Company Termination Event or a Force Majeure Event.

24.4 Restoration

24.4.1 Unless Company agrees otherwise, upon the occurrence of a Relevant Incident where the cost of repairing the Affected Portion is in excess of either:

(a) U.S.$ 5,000,000; or

(b) the likely amount of the Relevant Proceeds in respect of the Relevant Incident,

the Contractor shall prepare and deliver to Company as soon as practicable a plan (the ***Restoration Plan***) prepared by the Contractor for the carrying out of the work necessary to repair, reinstate or replace the parts of the Affected Portion which have been damaged or destroyed (the ***Restoration Work***) for the Affected Portion to be restored to a condition to satisfy the applicable Design, Construction and Rolling Stock Requirements.

24.4.2 Upon the occurrence of a Relevant Incident to which the provisions of Section 24.4 do not apply, the Contractor shall proceed to restore or replace the Affected Portion promptly. . The Contractor shall be entitled to use the Relevant Proceeds to fund such restoration or replacement.

24.4.3 The Restoration Plan shall set out:

(a) a detailed breakdown of the costs of the Restoration Work;

(b) the length of time estimated to carry out the Restoration Work and the period during which the Affected Portion (or any part thereof) will cease to operate;

(c) the proposed terms and timetable upon which the Restoration Work is to be effected (including the date that the Affected Portion will become fully operational), the final terms of which shall be subject to the prior written approval of Company; and

(d) the identity of the Person proposed to effect the Restoration Work, which shall be subject to the prior written approval of Company, unless such Person is the Design/Build Contractor and the Restoration Work is to be carried out during the Contract.

24.4.4 Upon receipt of the Restoration Plan, Company shall consider the feasibility of carrying out the Restoration Work, taking into consideration the following factors:

(a) the scope and extent of the Restoration Plan and the length of time projected in the Restoration Plan during which the Affected Portion (or any part thereof) will cease to operate;

(b) the extent to which insurance proceeds will be available to fund the total cost of the Restoration Work or, to the extent that Owner has assumed any Uninsurable Risk, the extent to which Owner would be required to advance funds to finance the performance of the Restoration Plan; and

(c) the projected length of time (if any) during which Company shall be required to continue to pay the Service Payment for the Affected Portion to the Contractor while the operation of the Affected Portion (or any part thereof) is suspended; and

24.4.5 If, taking into consideration the factors set out in Section 24.4.4, acting reasonably, Company determines that the Restoration Plan is not feasible and the Relevant Incident constitutes or results from:

(a) a Force Majeure Event, Company may at its discretion terminate this Contract in its entirety by written notice to the other Party with immediate effect pursuant to Section 21.7

(*Extensive Force Majeure Event*) (**provided** the other requirements of Section 0 are satisfied); or

(b) a Contractor Termination Event, Company may terminate this Contract pursuant to Section 51.4 (*Consequences of a Contractor Termination Event*); **provided** that Company shall not be required to serve notice of default on the Contractor requiring the Contractor to remedy the breach or to propose a reasonable plan for the remedying of the breach pursuant to Section 51.3.1.

24.4.6 If Company determines that the Restoration Plan is feasible:

(a) the Parties agree and undertake that, subject to compliance by the other Party with its obligations under this Section 24.4.1 (*Restoration*), neither Party shall exercise any right which it might otherwise have to terminate this Contract by virtue of the Relevant Incident;

(b) the Restoration Plan will be adopted; **provided** that if Company disagrees with any part of the Restoration Plan, either Party may refer the matters in dispute for resolution in accordance with the Dispute Resolution Procedure;

(c) the Contractor shall enter into contractual arrangements to effect the Restoration Work with the Person and on the basis specified in the Restoration Plan and approved by Company or as determined in accordance with the Dispute Resolution Procedure;

(d) not used;

(e) the cost of performing the Restoration Plan shall be funded by:

(i) to the extent Relevant Proceeds are available pursuant to Section 24.5.1 (*Insurance Proceeds*), the Relevant Proceeds; and

(ii) to the extent Relevant Proceeds are not available pursuant to Section 24.5.1 (*Insurance Proceeds*) or are insufficient to fund the total costs of performing the Restoration Plan, Company;

(f) Company undertakes to use Reasonable Efforts to assist the Contractor in the carrying out of the Restoration Plan; and

(g) the Contractor shall ensure the Restoration Work is carried out in accordance with Section 1.1 as if Section 1.1 applied to the Restoration Work in the same manner as such provisions apply to the Contractor's performance of the Work. To the extent that Company and the Contractor agree that any Restoration Work shall not be carried out in accordance with the Design, Construction and Rolling Stock Requirements, the Restoration Work shall be carried out in accordance with drawings and specifications which shall first be submitted for review and comment and in writing by Company and, as applicable, the Project Third Parties.

24.5 Insurance Proceeds

24.5.1 If any part of the Rolling Stock in respect of which the Contractor or Company, as the case may be, is obligated to maintain insurance pursuant to Section 34.0 (*Insurance*) shall be damaged or destroyed, the Contractor or Company, as the case may be, shall (and, if applicable, Contractor shall ensure that its Subcontractors shall) pay all proceeds in respect of such loss or damage received under any insurance maintained or required under Section 34.0 (*Insurance*) (the ***Relevant Proceeds***) into an escrow account in the joint names of Company and Owner at a bank to be nominated by Owner (and advised to the insurers accordingly) and, subject to Section 24.4.1 (*Restoration*), such proceeds shall be released as required to enable the Contractor to make payments in accordance with the contractual arrangements referred to in Section 24.4 and to meet any other reasonable costs and expenses of the Contractor (provided that such costs and expenses are recoverable or have been recovered from insurers) for the sole purpose of funding the Restoration Work. The Contractor shall provide to Company from time to time such information as it may reasonably require in relation to the release of funds pursuant to this Section 24.5.1. If Owner (acting reasonably taking into account all circumstances including the amount of the Relevant Proceeds) determines that the Restoration Plan is not feasible and this Contract is terminated pursuant to Section 24.4.5 or if any Relevant Proceeds held in the escrow account have not been utilized to fund the cost of performing the Restoration Plan (after such Restoration Plan has been fully carried out), in each case, such Relevant Proceeds shall be released to Owner.

25.0 NOT USED

26.0 CONTRACTOR'S SHIPMENTS

26.1 Contractor shall be responsible for arranging all shipments of Work to the Site and shall consign such shipments to itself as Consignee at the project shipping

address, freight fully prepaid. Contractor shall be responsible for making demurrage agreements and settlement with carriers for its shipments.

26.2 Contractor shall advise Company in writing, in advance of major shipments of Work and shall coordinate with Company the arrival, unloading and release of carriers' equipment. Contractor shall promptly unload its shipments and promptly release carrier's equipment.

26.3 In the event Contractor may be unable to promptly unload its shipment, Contractor shall notify Company of such inability not less than ten (10) working days in advance of arrival. Company, at its option, may unload or make arrangements for others to unload such shipments for the account and risk of Contractor. Contractor will promptly pay Company for such costs of unloading.

27.0 BUY AMERICA

27.1 The Contractor agrees to comply with all federal “Buy America” requirements applicable to this Contract as set forth in 49 U.S.C. §5323(j) and 49 CFR Parts 661-663. For rolling stock, the cost of components produced in the U.S. must be at least sixty percent (60%), and one-hundred percent (100%) of final assembly, as defined in the aforementioned Federal Regulations, must occur in the U.S. With respect to all other deliverables, steel, iron, and manufactured products are to be produced in the United States, unless a waiver has been granted by FTA or the product is subject to a general or specific waiver. In the case of a claimed waiver, the Contractor shall provide documentation thereof to the Company in advance of Notice To Proceed, or after Notice To Proceed, in the case of waivers granted after Notice To Proceed.

27.2 In addition to the pre-audit and post-audit required by 49 U.S.C. 5323(m) and 49 CFR Part 663 to verify compliance, the Contractor agrees to interim audits to be conducted by the Company, subject to reasonable notice to the Contractor.

27.3 Availability of Components and Consumable items: All consumable items shall be available from at least two manufacturers and available from U.S. distributors. Consumable items that are not available from multiple manufacturers and U.S. distributors shall be used only if approved by the Company. Items that are composed of multiple subcomponents that must be purchased individually and assembled by the Company are not acceptable.

27.4 All semiconductors shall be available from at least two manufacturers and available from U.S. distributors. Single source devices, such as high voltage power devices, microprocessors, ASICs, and related support chips may be used only if approved by company. Such devices shall be essential to the proposed equipment and shall meet the proven service requirements. The manufacturer of such devices shall have a service proven record of providing this device and devices of a similar

nature. If such a device is discontinued by the manufacturer before the end of the service life of the equipment, the contractor shall guarantee that a suitable replacement with identical functioning capabilities will be available.

28.0 CARE, CUSTODY, CONTROL AND TITLE TO MATERIALS AND EQUIPMENT

28.1 Contract revenues representing payments to subcontractors shall not be considered to be earned by Contractor unless and until Contractor has paid the current invoices of such subcontractor. In the event Company determines, in its sole discretion, that Contractor has become insolvent or is in danger of becoming insolvent, then Company is authorized, but not required, to make direct payment to Contractor's subcontractors with respect to any current or past-due invoices then outstanding. Alternatively, Company may, in its sole discretion, require that contracts between Contractor and any such subcontractor be assigned to Owner or Company, and Contractor hereby authorizes and consents to any such assignment. Owner and Company shall be entitled to full credit against any obligations to Contractor for any payments made to any subcontractor under this Section 23.3, whether made pursuant to assigned subcontracts or otherwise. Title to any materials or equipment for which such direct payment is made shall pass directly from such subcontractor to Company or Owner.

28.2 Ownership of Rolling Stock

28.2.1 Ownership of and title to each part of the Rolling Stock shall immediately and automatically vest in Company free from all Encumbrances upon delivery of any element of the Rolling Stock to a Site or, following delivery of a Phase 2 Rolling Stock Lease Termination Notice, with respect to Phase 2 Rolling Stock, to the location designated in such notice.

28.2.2 Notwithstanding Section 28.2.1, the passage of ownership of and title to any part of the Rolling Stock to Company shall not imply acceptance of such part of the Rolling Stock by Company as to the compliance of such part of the Rolling Stock with the requirements set out in this Contract nor shall the Contractor be relieved of its obligation to comply with any of its obligations under this Contract.

28.2.3 The Contractor shall not do any act or thing that will create any Encumbrance against such Rolling Stock, unless the Encumbrance came into existence as a result of an act of or omission by Company or a Person claiming through it which in turn was not caused by an act or omission of the Contractor.

28.2.4 Contractor shall provide Company with a security interest in the goods that make up the Work as soon as they are identified to the

Contract. In this context, the expression "security interest" has the meaning used in the Uniform Commercial Code.

LABOR AND WORK RULES

29.0 CONTRACTOR'S PERSONNEL

29.1 At all times during the course of the Work, Contractor shall provide at the Manufacturing Site a qualified, competent and responsible supervisor who shall be satisfactory to Company. The supervisor shall have authority to represent Contractor and directions given to him shall be binding on Contractor. Upon Company's written request, Contractor shall give the supervisor, in writing, complete authority to act on behalf of, and to bind Contractor in all matters pertaining to the Work and this Contract. Contractor shall furnish Company a copy of the authorization. Contractor shall not transfer or remove any of its supervisory or key personnel from performance of Work without the prior written approval of Company.

29.2 Any employee of Contractor present at the Site deemed by Company or Owner, in their sole judgment, to be objectionable shall be removed from the Site immediately upon Company request and shall be promptly replaced by Contractor at no extra expense to Company or Owner. Contractor shall nevertheless retain all authority and control over its employees, including responsibility for all costs arising from providing reasonable accommodations for its employees.

29.3 Contractor shall furnish it with the names and addresses of Contractor's subcontractors, field employees of Contractor and its subcontractors, and others who have performed or are performing the Work hereunder.

29.4 The Contractor shall ensure that, effective as of the Phase 1 Effective Date, each of the Key Personnel (i) is employed by or seconded to the Contractor for the exclusive purposes of the Eagle Project and (ii) occupies the role and function identified for such person in the Part 1 Scope of Work.section 15.0

29.5 Subject to Section 29.6, the Contractor shall not remove or replace any of the Key Personnel without Company's prior written consent such consent not to be unreasonably withheld or delayed).

29.6 If any of the Key Personnel (a) ceases to have the necessary or relevant experience or qualifications for his or her position as such position may reasonably require from time to time in accordance with this Agreement and applicable law, (b) voluntarily terminates or (c) is physically incapable of continuing its employment with the Contractor (or any relevant affiliate thereof), the Contractor shall propose a replacement to Company as soon as

practicable and shall provide Company with such information about such replacement's relevant experience as Company may reasonably require.

29.7 If the Contractor breaches its obligations under this Section 29 in relation to any person who is Key Personnel under the Concession Agreement, Company shall be entitled to receive U.S.$100,000 per breach. The right of Company to receive such amount is not intended to constitute a penalty, but is intended to be, and shall constitute, liquidated damages. The Parties acknowledge that such liquidated damages are a reasonable estimate of the presumed actual damages that would be incurred by Company.

30.0 LABOR HARMONY

30.1 Whenever Contractor has knowledge that any actual or potential labor dispute is delaying, or threatens to delay, the timely performance of the Work, Contractor shall immediately give notice thereof, including all relevant information to Company.

30.2 Contractor shall be responsible and liable for all labor relations matters of Contractor and Subcontractor personnel relating to the Work and shall at all times use Reasonable Efforts to maintain harmony among the unions (if any) and other personnel employed in connection with the Work and act in a reasonable, professional and courteous manner with others.

30.3 To the extent applicable, the Contractor agrees to comply with Department of Labor regulations, “Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction (also Labor Standards Provisions Applicable to Non-Construction Contracts Subject to the Contract Work Hours and Safety Standards Act), and agrees to incorporate into each non-construction subcontract with a value of $25,000.00 or more the provisions outlined above.

31.0 EMPLOYMENT CERTIFICATIONS AND PRACTICES

31.1 Contractor certifies that it has an affirmative action policy ensuring equal employment opportunity without regard to race, color, national origin, sex, age, religion or handicap, that it maintains no employee facilities segregated on the basis of race, color, religion or national origin and that it is not debarred or suspended from being awarded federal or federally assisted contracts.

31.2 If applicable to this Contract, the following laws, orders and regulations, as amended, are hereby incorporated by reference: Executive Order 11246; Vietnam Era Veterans Readjustment Act; Rehabilitation Act of 1973; Veterans Compensation, Education and Employment Act; 41 CFR 60-1.4 (Equal Employment Opportunity); 41 CFR 60-250.4 (Veterans Affirmative Action); 41 CFR 60-741.4 (Handicap Affirmative Action); 41 CFR 601.40 (Affirmative

Action Plans); 41 CFR 601.7 (EE01 Reports); 41 CFR 61650 (Veterans Employment Reports).

31.3 Upon request of Company, Contractor will furnish it with a certificate satisfactory in form to Company that goods furnished by Contractor in performance of this Contract were produced in full compliance with the requirements of Sections 6, 7, and 12 of the Fair Labor Standards Act of 1938, as amended, and the regulations and orders of the U.S. Department of Labor issued under Section 14 thereof.

31.4 The Contractor agrees to comply with, and assure the compliance by its third party Contractors and Subcontractors under this project, with all applicable requirements of the Federal Government and Federal Transit Administration as applies to this project. The Contractor agrees to comply with all applicable requirements of the Americans with Disabilities Act of 1990.

31.5 The Contractor is responsible for all visa, work permit and other similar requirements for its personnel.

32.0 WORK RULES

Contractor shall comply strictly with Company and Owner's rules governing the conduct of Contractor and Contractor's employees, agents and subcontractors at and about the Site. Contractor agrees that it shall ensure that its supervisory personnel, employees, agents and subcontractors at the Site comply strictly with such rules. Company and Owner reserve the right to, from time to time, revise any such rules, and Contractor shall comply fully with such rules as revised in accordance with the foregoing provisions.

INDEMNIFICATION AND INSURANCE

33.0 INDEMNITY

33.1 Contractor will, to the fullest extent permitted by law, fully and effectively defend, indemnify and hold harmless Owner, Concessionaire, Company, the Project Third Parties and the other Relevant Authorities and their respective agents, servants, consultants and employees from and against all loss, damage and/or Claims arising out of or in connection with any act or omission of the Contractor or its subcontractors, agents, servants, consultants or employees in connection with this Contract and the other Project Contracts or breach thereof or any willful misconduct of the Contractor or its agents, servants, consultants or employees, including any suffered or incurred in respect of:

33.1.1 personal injury (including injury resulting in death), including to an employee of Owner, Concessionaire, Company, the Contractor, any Project Contractor or Subcontractor, any Project Third Party or any Utility Owner;

33.1.2 any loss of or damage to any real or personal property of Owner, Concessionaire, Company, any Project Third Party, Relevant Authority, Project Third Party or Utility Owner or any other Person, including loss of use thereof; and/or

33.1.3 any fines or penalties imposed on Owner, Concessionaire or Company by Relevant Authorities arising as a result of the Contractor's breach of or failure to comply with Applicable Requirements or its obligations under this Contract and/or the other Project Contracts, including claims arising from Contractor's actual or asserted failure to pay taxes; and.or

33.1.4 from actual or asserted violation or infringement of rights in any patent, copyright, proprietary information, trade secret or other property right caused or alleged to be caused by the use or sale of goods, materials, equipment, methods, processes, designs or information, including construction methods, construction equipment and temporary construction facilities, furnished by Contractor or its subcontractors in performance of the Work. Should any goods or services provided by Contractor become, or appear likely to become, the subject of a claim of infringement of a patent, copyright or other property right, Contractor shall, at Company's option, either procure for Company, Concessionaire and Owner the right to continue using such goods or services, replace same with equivalent, non-infringing goods or services, or modify the goods or services so that the use thereof becomes non-infringing, provided that any such modification or replacement is of equal quality and provides equal performance to the infringing goods or services; and/or

33.1.5 from actual or alleged contamination, pollution, or public or private nuisance, arising directly or indirectly out of this Contract or out of any acts or omissions of Contractor, its subcontractors, or suppliers.

but only to the extent that such loss, damage or Claim does not arise as a result of the negligent acts, omissions or willful misconduct of Company, Concessionaire or Owner.

33.2 In the event that the indemnity provisions in this Contract are contrary to the law governing this Contract, then the indemnity obligations applicable hereunder shall be construed to be to the fullest extent allowed by applicable law.

33.3 With respect to claims by employees of Contractor or its subcontractors, the indemnity obligations created under this Article 33.0 shall not be limited by the fact of, amount, or type of benefits or compensation payable by or for Contractor, its subcontractors or suppliers under any workers' compensation, disability benefits, or other employee benefits acts or regulations, and

Contractor waives any limitation of liability or immunity arising from workers' compensation or such other acts or regulations.

33.4 Company shall be entitled to retain from payments otherwise due Contractor such amounts as shall reasonably be considered necessary to satisfy any claims, suits or liens for damages that fall within Contractor's indemnity obligations under this Article 33.0, until such claims suits or liens have been settled and satisfactory evidence to that effect has been furnished to Company.

33.5 The Contractor will not be liable to indemnify Company or, as the case may be, the Project Third Parties, Relevant Authorities or their agents, servants, consultants or employees under or pursuant to this Section 33 (*Indemnity*) for any Losses and/or Claims, to the extent that they have been fully and effectively indemnified in respect thereof pursuant to the insurances maintained under Section 34.0 (*Insurance*), except to the extent of any deductibles or expenses applicable to such insurance for which the Contractor shall be liable.

34.0 INSURANCE

34.1 34.1.1 From the Effective Date until the end of the Contract:

(a) Owner shall at its own cost take out and maintain or cause to be maintained policies of insurance which provide cover on the basis set out in this Section 34.0 (*Insurance*) and in Part AI (*Company Construction Insurances*) of Attachment 12 (*Insurance*); and

(b) the Contractor shall at its own cost take out and maintain or cause to be maintained policies of insurance which provide cover on the basis set out in this Section 34.0 (*Insurance*) and in applicable elements of Part A(II) of Attachment 12.

34.2 The Contractor shall be responsible for all deductibles or self-insured retentions in respect of each insurance policy unless expressly specified otherwise in Attachment 12 (*Insurance*).

34.3 Each insurance policy required to be taken out and maintained or caused to be maintained by the Contractor in accordance with this Section 34.0 (*Insurance*) and Attachment 12 shall insure the Contractor, Concessionaire, Company, Owner (and, with respect to liability policies only, its consultants, agents, and contractors, as disclosed to the Contractor upon the Contractor's request), the Lenders, the Project Third Parties.

34.4 34.4.1 Each Party shall ensure that at all times the companies issuing the insurance policies referred to in Article 34.0 and Attachment 12 are Qualifying Insurers.

34.4.2 The Contractor and Company shall deliver to each other certificate(s) of insurance (and all required endorsements thereto) executed by an authorized representative of the insurer (or, if Owner is assuming any Uninsurable Risk executed by Owner) evidencing such Party's compliance with the requirements set out in this Section 34.0 (*Insurance*) and Attachment 12 (*Insurance*), prior to the date on which such insurance is required to be maintained. Such certificate shall reference this Contract (and Company's contract number and title for this Contract) and the insurance cover to which such certificate applies. Each Party shall provide to the other Party copies of all policies of insurance taken out by such Party in accordance with this Section 34.0 (*Insurance*) and Attachment 12 (*Insurance*) within 90 days of taking out such policy.

34.4.3 The Contractor and Company shall ensure that all policies required to be taken out by this Section 34.0 (*Insurance*) and Contractor shall provide 30 days prior written notice of any cancellation, reduction or material change in the insurance coverage.

34.4.4 At least once in each 12-month period, the Contractor and Company will deliver to each other (and, in the case of insurance taken out by the Contractor, to Company's Risk Manager):

(a) certificates for the renewal or replacement of the insurance cover which such Party takes out pursuant to this Section 34.0 (*Insurance*); and

(b) a certificate of an appropriate officer of such Party:

(i) confirming that all insurance policies taken out pursuant to this Section 34.0 (*Insurance*) are in force on the date thereof;

(ii) confirming the amounts and expiration date or dates of such policies and the names of the Qualifying Insurers issuing such policies;

(iii) including certificates evidencing payment of any premiums then due, in a form reasonably satisfactory to the other Party; and

(iv) stating that such policies comply with the requirements of this Section 34.0 (*Insurance*) and the relevant provisions of Attachment 12 (*Insurance*), to the extent applicable.

34.4.5 Each Party shall ensure that all insurances which such Party is required to take out and maintain or cause to be maintained in accordance with this Section 34.0 (*Insurance*) and Attachment 12 (*Insurance*) (with the exception of workers' compensation/employers' liability insurance and automobile liability) and any other policies taken out by that Party, or (in the case of the Contractor) the Project Contractors or their respective Subcontractors in connection with the Eagle Project (including umbrella/excess liability insurance) contain a term to the effect that the companies issuing the insurance policies have agreed to waive all rights of subrogation against the other Party.

34.4.6 The original copy of all notices, reports and other communications relating to insurance matters to which Company is entitled shall be sent to Company's Risk Manager and a copy of such communications shall be sent to Company at its address set out in Section 67.0 (*Notices, Etc.; Language*).

34.5 Contractor shall, at its sole cost, obtain and maintain in force for the duration of the Contract (including the guarantee period set forth in Article 1.0) insurance of the following types, with limits not less than those set forth below:

34.5.1 Workers' Compensation Insurance, including occupational illness or disease coverage, in accordance with the laws of the nation, state, territory or province having jurisdiction over Contractor's employees and Employer's Liability Insurance with a minimum limit of $1,000,000 per accident and, for bodily injury by disease, $1,000,000 per employee. Contractor shall not utilize occupational accident or health insurance policies, or the equivalent, in lieu of mandatory Workers' Compensation Insurance or otherwise attempt to opt out of the statutory Workers' Compensation system.

34.5.2 Commercial General Liability Insurance ("Occurrence Form") with a minimum combined single limit of liability of $5,000,000 each occurrence for bodily injury and property damage; with a minimum limit of liability of $5,000,000 each person for personal and advertising injury liability. Such policy shall have an aggregate products/completed operations liability limit of not less than $5,000,000 and a general aggregate limit of not less than $5,000,000,. The products/ completed operations liability coverage shall be maintained in full force and effect for not less than three (3) years following completion of Contractor's services. The policy shall be endorsed to name Company and Owner, including their respective affiliates, the financing parties and the respective officers, directors and employees of each, as additional insureds. Such endorsement shall be made upon ISO Endorsements CG 20 10 07 04 and CG 20 37 07 04, "Additional Insured - Owners, Lessees or Contractors – Scheduled Person or Organization/Completed Operations." Current

endorsements providing coverage identical to that provided under ISO Endorsements CG 20 10 07 04 and CG 20 37 07 04, and coverage limits identical to those provided by Contractor's Commercial General Liability Insurer to meet the above requirements.

34.5.3 Automobile Liability Insurance covering use of all owned, non-owned and hired automobiles with a minimum combined single limit of liability for bodily injury and property damage of $1,000,000 per occurrence. This policy shall be endorsed to name Company and Owner, including their respective affiliates, directors and employees, as additional insureds.

34.5.4 If Contractor will utilize tools or equipment in the performance of its services under the Contract, Equipment Floater Insurance (Tools and Equipment Insurance) covering physical damage to or loss of all major tools and equipment, construction office trailers and their contents, and Cars for which Contractor is responsible, throughout the course of the Work.

34.6 All insurance provided by Contractor under this Article 29.0 shall include a waiver of subrogation by the insurers in favor of Company, Owner, financing parties (if any) and all other contractors and subcontractors performing work at the Sites, including their respective affiliates, directors, and employees. Contractor hereby releases Company and Owner, including their respective affiliates, directors and employees for losses or claims for bodily injury, property damage or other insured claims arising out of Contractor's performance under the Contract.

34.7 Certificates of insurance satisfactory in form to Company (ACORD form or equivalent) shall be supplied to Company evidencing that the insurance required above is in force, that not less than thirty (30) days written notice will be given to Company prior to any cancellation or restrictive modification of the policies, and that the waivers of subrogation are in force. Contractor shall also provide with its certificate of insurance executed copies of the additional insured endorsements and dedicated limits endorsements required in this Article 29.0. At Company's request, Contractor will provide a certified copy of each insurance policy required under this Contract.

34.8 The foregoing insurance coverages shall be primary and non-contributing with respect to any other insurance or self insurance which may be maintained by Company or Owner. Contractor's General and Automobile Liability Insurance policies shall contain a Cross Liability or Severability of Interest clause.

34.9 The fact that Contractor has obtained the insurance required in this Article shall in no manner lessen nor affect Contractor's other obligations or liabilities set forth in this Contract.

35.0 SURETY INSTRUMENTS

The Contractor shall provide performance security in an amount of at least 50% of the Contract Price to support performance by the Contractor of its obligations under the Contract. To fulfill this requirement the Contractor shall provide one or more irrevocable standby letters of credit to be issued by an acceptable Qualifying Institution, for the account of the Contractor in an aggregate amount equal to US$40 million or 25% of the Contract Price, whichever is the greater. The balance of the required performance security may be provided by bond(s) or irrevocable standby letter(s) of credit issued by acceptable Qualifying Institutions. Following Final Acceptance of the last production car, including option cars, the requirement for performance security may be reduced to letter(s) of credit in an amount of 10% of the Contract Price, for the Warranty Period.

The Contractor shall be required to provide an irrevocable standby letter of credit to be issued by an acceptable Qualifying Institution in an amount equal to US$1 million as proposal security, increasing to US$2.5 million in the event of award of the Concession Agreement to Concessionaire.

Contractor shall provide a parent company guarantee from Hyundai Rotem Company in the form attached hereto. In the event that the credit rating of the parent guarantor diminishes substantially such that Company, acting reasonably, deems it to be insufficient, Contractor shall be required to provide a parent company guarantee in a form equivalent to that attached hereto from a higher tier credit worthy parent entity.

WORK CONDITIONS

36.0 ENVIRONMENTAL REQUIREMENTS

36.1 The Contractor will, from the Effective Date to the End Date, carry out each aspect of the Contract and ensure that each of its Subcontractors performs its obligations, in each case, to fully comply with the following (***Environmental Requirements***):

36.1.1 all Project Requirements of an Environmental nature;

36.1.2 the requirements and provisions of the RODs, of the 404 Permits and of the mitigation measures in the NWES Environmental Evaluation;

36.1.3 the requirements and provisions of the Voluntary Clean-Up Application and Materials Management Plan;

36.1.4 the requirements and provisions of any Permits relating to the Environment; and

36.1.5 any permission, declaration, instruction or consent of an Environmental nature issued by any Relevant Authority relating to the Eagle Project (or any part thereof).

If any of the requirements and provisions set out in paragraph 36.1.1 of this Section 36.1 conflict with any of the requirements and provisions set out in paragraphs 36.1.2, 36.1.3, 36.1.4 or 36.1.5 of this Section 36.1, the requirements and provisions set out in paragraphs 36.1.2, 36.1.3, 36.1.4 or 36.1.5 shall take precedence.

36.2 The Contractor shall at all times comply with, and shall ensure that each its Subcontractors at all times complies with, the Owner's Sustainability Plan.

36.3 The Contractor will not interfere with the work of or cause any delay to any other contractors which may be carrying out work in the land adjoining or near any Site for Company, any Project Third Party or any Relevant Authority and otherwise comply with the provisions of the Third Party Agreements in respect of such work; **provided** that the Contractor shall not be in breach of this Section 36.3 for any temporary interruption to the work of any such contractors that has been agreed in advance between the Contractor, such contractor, Company, or any relevant Project Third Party, as the case may be.

36.4 Use of Hazardous Chemicals

The Contractor shall supply to the Company a representative sample of Material Safety Sheets (hereinafter MSDS) for any and all chemicals, materials or substances intended for use in the completion of the Project that are covered by reference or definition by the Occupational Safety and Health Administration (hereinafter OSHA) Hazard Communication Standard (hereinafter HCS) The chemical name and Chemical Abstract Service (hereinafter CAS) number must be provided for all hazardous substances and for the five (5) most predominant ingredients. If this information is not available on the MSDS, the information must be provided under separate cover when the MSDS is submitted.

In addition to supplying Company with the MSDS, the Contractor shall obtain the expressed written approval of Company to use any chemicals, materials or substances in the completion of said project which have a health, flammability or reactivity hazard of 2, 3 or 4 as defined by the National Fire Protection Association Standard NFPA704.

During the performance of said project, the Contractor shall undertake any and all necessary precautions to ensure that Company personnel and property are not exposed to physical or health hazards from any of the aforementioned chemicals, materials or substances. The Contractor shall ensure that all said chemicals, materials and substances are labeled with the chemical case and CAS number of all

hazardous substances and of the five (5) most predominant ingredients in accordance with the requirements of the OSHA-HCS and Colorado Worker and Community Right-to-Know Act.

In the event the Contractor obtains any new information pertaining to the aforementioned chemicals, materials or substances during the performance of said project, the Contractor shall immediately make that information available to Company.

36.5 Environmental Indemnity

In addition to those indemnity provisions contained in Article 33.0, The Contractor shall conduct all activities in compliance with all applicable federal, state and local laws, rules and regulations designed to prevent or control the discharge of substances into the land, water and air and to protect individual health and safety. The Contractor will hold harmless and defend Company, U.S. Department of Transportation (USDOT) the State of Colorado, their directors, officers, employees, agents and assigns from and against any and all suits, actions, proceedings, costs, fines, penalties and claims arising from or alleged to have arisen from Contractor's violation of any such environmental, health or safety laws, rules or regulations whenever such suits, actions, claims or proceedings shall be commenced, or whenever such costs are accrued, except for any violations, if any, at the Company Sites or facilities existing prior to the Contractor's performance of the Work under this Contract.

The Contractor will take reasonable and necessary precautions to prevent the discharge of hazardous substances, including asbestos and petroleum products onto Owner's property or into the environment, including the air. If it is determined by The Company that adequate steps are not being taken by the Contractor, Company may suspend the work of the Contract immediately without benefit of prior notice to the Contractor, until such time as a plan is developed, agreed to by the Company and implemented by the Contractor to insure the environmental security of Owner's property and abutting lands and the safety of Owner's and Company's employees and others who work on or visit the property

37.0 CONTRACTUAL RELATIONSHIP

Contractor represents that it is fully experienced and properly qualified to perform the class of Work provided for herein, and that it is properly equipped, organized and financed to perform such Work. Contractor represents that at the time of submission of its quotation for performance of the Work, it was properly licensed and qualified to do business in all governmental jurisdictions in which the Work is to be performed. Upon written request by Company, Contractor shall furnish to it such evidence as Company may require relating to the Contractor's ability to fully perform this Contract. Nothing contained in this Contract or any subcontract awarded by Contractor shall create any contractual relationship between any subcontractor and Company or

Owner. Contractor agrees that Contractor is an independent contractor and an employer subject to all applicable unemployment compensation, occupational safety and health, workers' compensation, or similar statutes so as to relieve Company of any responsibility or liability for treating Contractor's employees as employees of Company for the purpose of their safety or of keeping records, making reports or paying of any payroll taxes or contribution; and Contractor agrees to defend, indemnify and hold Company harmless and reimburse it for any expense or liability incurred under said statutes in connection with employees of Contractor, including a sum equal to any unemployment benefits paid to those who were Contractor's employees, where such benefit payments are charged to Company under any merit plan or to Company reserve account pursuant to any statute.

Contractor further agrees, as regards the items set forth below and for Work under this Contract, that it will keep and have available all necessary records and make all payments, reports, collections and deductions and otherwise do any and all things so as to fully comply with all federal, state and local laws, ordinances and regulations as they affect performance of this Contract, so as to fully relieve and protect Company and Owner from any and all responsibility or liability therefore or in regard thereto: (1) the production, purchase and sale, furnishing and delivering, pricing, and use or consumption of materials, supplies and equipment; (2) the hire, tenure or conditions of employment of employees and their hours of work and rates of the payment of their work, and (3) the keeping of records, making of reports, and the payment, collection and/or deduction of federal, state, commonwealth and local taxes, contributions, pension funds, welfare funds, or similar assessments.

38.0 PERMITS AND LICENSES

38.1 Contractor shall promptly apply for and procure, without additional compensation, all permits (except for such permits as may be specifically set forth as Company responsibility elsewhere in this Contract), certificates and licenses required by governmental authorities having jurisdiction over the Work, Contractor or the location of the Work.

38.2 Contractor shall be responsible for applying for, obtaining, renewing, replacing, extending the validity of and arranging necessary amendments to, all Permits legally required in connection with its performance of this Contract except for Company Permits, for which Company will be responsible to the extent provided in Section 38.3 (*Company Permits*) and any delay to or increase in the costs of the completion of the Work or any interruption or impairment of the manufacture, delivery and operation of the Rolling Stock caused by the failure of or delay by the Contractor to apply for, obtain, renew, replace, extend the validity of or arrange necessary amendments to, any such Permit shall not constitute a Relief Event. Company will cooperate with the Contractor in applying for the Permits and will, at the reasonable request of the Contractor and at the Contractor's cost, and where necessary to obtain, renew, replace, extend the validity of, or arrange necessary amendments to the Permits:

38.2.1 execute such documents as can only be executed by Company;

38.2.2 make such applications, either in its own name or jointly with the Contractor as can only be made by Company or in the joint names of the Contractor and Company, as the case may be; and

38.2.3 attend meetings with appropriately qualified staff and cooperate with approval bodies as reasonably requested by the Contractor.

38.3 38.3.1 Company shall be responsible for obtaining for the Contractor the benefit of the Company Permits.

38.3.2 Company shall ensure that the Contractor shall have the use and benefit of Company Permits at the time at which such Company Permits are required for carrying out the Work.

38.3.3 The Contractor shall take all necessary steps and acts to facilitate the application by Company referred to in Section 38.3.1, including providing supporting drawings, data and technical information at the times and in the manner reasonably requested by Company and the filing by the Contractor of appropriate applications with the Relevant Authorities.

38.3.4 The Contractor may claim for a Relief Event where permitted under Section 20.0 (*Relief Events*) (**provided** the other requirements of Section 20.0 (*Relief Events*) are satisfied) to the extent that Company's failure to obtain the benefit for the Contractor of any Company Permit causes a delay or suspension of Work; **provided** that such delay in obtaining such benefit is not caused by an act or omission of the Contractor including failure to take all necessary steps and acts to facilitate the application by Company.

38.4 Contractor shall pay all applicable and required royalties and license fees (it being understood that Contractor is not responsible for ongoing maintenance and support fees) and shall procure for the benefit of Company, Owner and/or Concessionaire, as applicable, at Contractor's sole expense (other than ongoing maintenance and support fees), the appropriate rights, licenses, agreements and permissions for materials, methods, processes and systems incorporated into the Rolling Stock. In performing the Work hereunder, Contractor shall not incorporate into the Rolling Stock any materials, methods, processes or systems which involve the use of any confidential information, intellectual property or proprietary rights which Company, Owner, Concessionarie or Contractor does not have the right to use or which may result in claims or suits against Company, Owner, Concessionaire or Contractor arising out of claims of infringement of any domestic or foreign patent rights, copyrights or other proprietary rights, or applications for any such rights, or use of confidential information. Any such rights held by Contractor

with respect to items incorporated in the Work shall be assigned or licensed to Concessionaire, Company or Owner, as applicable, at no additional cost to Concessionaire, Company or Owner, in connection with the use or operation of the Eagle Project

39.0 INDEPENDENT CONTRACTOR

Nothing in this Contract shall be deemed to represent that Contractor, or any of Contractor's employees or agents, are the agents, representatives or employees of Company or Owner. Contractor shall be an independent contractor and shall have responsibility for and control over the details and means for performing the Work, provided that Contractor is in compliance with the terms of this Contract. Anything in this Contract which may appear to give Company the right to direct Contractor as to the details of the performance of the Work or to exercise a measure of control over Contractor shall mean that Contractor shall follow the desires of Company only as to the intended results of the Work.

40.0 PUBLICITY

Contractor shall not make news releases, publicize or issue advertising pertaining to the Work or this Contract, without first obtaining the written approval of Company regarding content and intended use of all publicity related materials.

41.0 OWNERSHIP AND USE OF DRAWINGS

41.1 Any drawings, documents, technical data, methods, processes, tooling, and inventions; whether conceived, or developed and produced during the course of the Contract specifically for the purposes of completing the Contract, shall be the property of the Contractor, who shall have sole exclusive rights for subsequent use of same, except for an irrevocable, perpetual, royalty-free, nonexclusive license granted by the Contractor to the Company, Concessionaire and Owner, to use itself or through its agents, for the specific purposes listed below, all patented, copyrighted and unpatented technology, know-how, trade-secrets and other proprietary rights which are included in the Work and which are necessary for the specific purposes to operate, maintain, repair, modify and overhaul the Cars, and for the preparation of specifications for future production orders of Cars employing some or all of the licensed technology.

41.2 The Company, Concessionaire and Owner have the right, within the scope of the Contract and for the sole purpose of operating, maintaining and subsequently modifying the Work, to use, duplicate, or disclose the Technical Data and the information conveyed therein, in whole or in part, and to have or permit others to do so, as set out below:

41.2.1 Manuals or instructional materials prepared for installation, operating, maintenance or training purposes.

41.2.2 Technical Data pertaining to items, components or processes which were prepared for the purpose of identifying sources, size, configuration, mating and attachment characteristics, functional characteristics and performance requirements of the Cars.

41.2.3 Other Technical Data which has been or is normally furnished without restriction by the Contractor or Subcontractors

41.2.4 Computer and microprocessor software documentation including program design language or pseudo-code listings, and, or fully annotated source code; Subject to section 42.1.8 herein.

41.2.5 In the event the Contractor and/or its Subcontractor(s) require an agreement prior to providing confidential Technical Data to the Company, the Company agrees to enter into a non-disclosure agreement acceptable to the Parties to ensure delivery of confidential Technical Data pursuant to the Contract Documents;

41.2.6 Other specifically described Technical Data which the Parties agree will be furnished without restriction.

41.3 No such copyrighted materials shall be included in the Technical Data furnished hereunder unless the written permission of the copyright owner has been obtained by the Contractor for use by the Company, Concessionaire and Owner in the manner herein described.

41.4 The Contractor shall report to the Company promptly and in written detail each notice or claim of copyright infringement received by the Contractor with respect to any Technical Data delivered hereunder.

42.0 INTELLECTUAL PROPERTY RIGHTS

42.1

42.1.1 The Work Products shall be provided to Company in accordance with the terms of this Contract and the time periods set out in Contract Data Requirements List. As part of the handover procedure before the End Date, the Contractor shall provide Company with copies (in native format) of all Work Products and related documentation prepared in connection with the Eagle Project to the extent final copies (in native format) of such Work Products have not previously been submitted to Company. The Contractor shall be responsible for

the preservation of any and all Work Products prior to provision of such Work Product to Company and the Contractor shall replace any such Work Products that are lost, destroyed or damaged to the extent practicable without additional cost to Company.

42.1.2 For the purposes of this Article 42, the term ***Use*** means the right to use, make, import, reproduce, publish, display, modify, create derivative works from or otherwise exploit the items identified below and Intellectual Property Rights in or to all or any part of such items. Owner, Concessionaire and Company shall have the right to, and the Contractor acknowledges Owner's and Company's right to Use all or any part of the Work Products, and to obtain and hold in its own name patents, copyright and/or trademark registrations for Work Products owned by Owner, Concessionaire or Company and any derivative works created by Owner or Company based on the Work Products, in accordance with and subject to Sections 42.1.3 to 42.1.7 and Section 42.4 (*Warranty*). The Contractor shall provide all documentation and licenses, information and assistance reasonably required by Owner, Concessionaire or Company to exercise the licenses granted herein, including subject to Section 42.1.3, all information and Source Code necessary to fully access and create derivative works based on software.

42.1.3 The Contractor hereby grants to Company, Concessionaire and Owner, for the benefit of Company, Concessionaire, Owner and the FTA, a fully paid-up, royalty-free, nonexclusive, irrevocable, perpetual license limited to the territory of the United States of America to Use the Contractor Content solely for the purposes of the Eagle Project, Company's other projects and other direct purposes of the United States federal government as required by the FTA.

42.1.4 The Contractor shall obtain, on Owner's, Concessionaire's and Company's behalf, all necessary licenses for the Third Party Materials. For all rights and licenses for Third Party Materials not owned by the Contractor, Contractor shall assign or transfer to Owner, Concessionaire and Company when obtained, or at such other time as reasonably requested by Company, all such rights and licenses to Third Party Materials that the Contractor obtains or controls. For all rights and licenses for Third Party Materials owned by the Contractor, the Contractor hereby grants to Owner, Concessionaire and Company a fully paid-up, royalty-free, non-exclusive, irrevocable, perpetual license, with the right to sub-license, limited to the territory of the United States of America, to Use the Third Party Materials solely for the purposes of the Eagle Project..

42.1.5 Upon the Effective Date, Contractor shall furnish a list to Company of all Contractor Tools and a list of all Proprietary Designs expected to

be utilized in performance of this Agreement, in each case containing sufficient descriptive information and supporting evidence to support the classification of such tools and designs as Contractor Tools and Proprietary Designs. To the extent not previously identified to Company and sufficiently described in such lists, the Contractor shall clearly and specifically identify the Contractor Tools and/or Proprietary Designs in each of its submittals, in each case providing sufficient descriptive information and supporting evidence to support the classification of such tools and designs as Contractor Tools and Proprietary Designs. Work Products shall not be considered reclassified as Contractor Tools and/or Proprietary Designs on the basis of such submittals until Company has either confirmed such reclassification in writing or failed to respond to Contractor within 30 days of the relevant submission. In accordance with Section 64.3, to the extent the Contractor considers any descriptions or materials provided under this Section 42.1.5 to contain information exempt from public disclosure, it must indicate to Company the provision of the Colorado Open Records Act that exempts such document from public disclosure and otherwise comply with Section 64.3.

42.1.6 The Contractor hereby grants to Owner, Concessionaire and Company a fully paid-up, royalty-free, nonexclusive, irrevocable, perpetual, non-transferable license limited to the territory of the United States of America to Use the Contractor Tools and the Proprietary Designs solely for the purposes of the Eagle Project but only to the extent reasonably necessary to effect systems integration with the Eagle Project and any Owner Related Project that is a commuter rail project.

42.1.7 The Contractor shall obtain from its Subcontractors and shall ensure that its Subcontractors obtain from all of their respective Subcontractors and suppliers written assignments or licenses as necessary to effect the licenses granted to Owner, Concessionaire and Company herein, at no additional cost to Owner, Concessionaire or Company, and shall provide copies of such documents to Company upon request.

42.1.8 Subject to compliance with this Section 42.1.8 and otherwise applicable Law, the Contractor may fulfill its obligations with respect to Source Code under this Section 42.1 (*Work Products*) and subject to the terms of a software escrow agreement. Software escrow agreement shall be kept for such time as is necessary to enable Company and O&M Contractor to comply with their respective obligations to Concessionaire. During escrow period, either Party may propose to the other Party to enter into a source code escrow agreement with respect to any Source Code by initiating a Change, **provided** that at all times the Contractor shall be required, at its own

cost and expense, to enter into, and pay all costs associated with the maintenance of, a source code escrow agreement in form and substance reasonably acceptable to Company with respect to the Source Code for any software that is not otherwise readily commercially available to Owner as reasonably determined by Owner. Each Source Code escrow agreement entered into under this Section 33.1(h) shall include provisions for the deposit and updating of deposits of Source Code, verification of Source Code deposits, release of the Source Code, and any other provisions as are considered customary for such agreements from time to time

42.2 Company or Owner (or its assigns or licensors as applicable) shall at all times retain sole ownership of Company Content and Owner Content and the Intellectual Property Rights therein. Company hereby grants to the Contractor a nonexclusive, non-transferable, royalty-free license to use, make, reproduce, modify, display and publish Company Content and Owner Content solely for the purpose of performing the Contractor's obligations under this Contract and the other Project Contracts, which license shall terminate with immediate effect on the End Date. Contractor acknowledges Company's, Concessionaire's and Owner's unrestricted right to Use Company Content and Owner Content, and to obtain and hold in its own name patents, copyright and/or trademark registrations for Work Products owned by Company, Concessionaire or Owner and any derivative works or developments created by Company, Concessionaire or Owner based on the Work Products.

42.3 Except for its own internal use, the Contractor shall not and shall not authorize any other Person, and shall ensure that its Subcontractors shall not, publish or reproduce Company Content in whole or in part, or in any manner or form, without the prior written consent of Owner, until such time as Owner has either released or approved the release of such Company Content to the public.

42.4 The Contractor warrants and represents that:

42.4.1 the Contractor Content, the Contractor Tools, the Proprietary Designs and any Third Party Materials are original to the Contractor or its Subcontractors or suppliers, and do not infringe the Intellectual Property Rights or proprietary rights of any third party;

42.4.2 Company's and Owner's Use of the Contractor Content, the Contractor Tools, the Proprietary Designs and any Third Party Materials shall not infringe the Intellectual Property Rights or proprietary rights of any third party; and

42.4.3 the performance by the Contractor (including its agents, consultants and contractors) of its responsibilities under, pursuant to, or arising from this Contract and and/or the provision or operation of the Rolling

Stock shall not infringe the Intellectual Property Rights or proprietary rights of each other or any third party.

42.5

42.5.1 The Contractor shall be liable for and shall indemnify Owner, Concessionaire and Company (and its directors, officers, agents, consultants or employees) to the maximum extent permitted by law from and against all loss, damage and Claims, whether direct or indirect, that Company (or any of its directors, officers, agents, consultants or employees) may suffer or incur arising out of a breach of the Contractor's warranties set out in Section 42.4 (*Warranty*) or if Company's rights and interests provided under this Contract with respect to the Contractor Content, the Contractor Tools, the Proprietary Designs and any Third Party Materials and the Intellectual Property Rights therein are at any time determined by a court of law or other competent authority to be invalid, ineffective or impaired in any material respect.

42.5.2 The Contractor shall, at its own cost, provide such cooperation and assistance and take such action and institute such proceedings as Company requests in the event of any Claim as described under Section 42.4.1 and shall assist Company in resolving queries concerning the ownership and licensing of the Contractor Content, the Contractor Tools, the Proprietary Designs and any Third Party Materials and the Intellectual Property Rights therein.

42.5.3 The Contractor shall require each of its Subcontractors to indemnify Owner in the same manner and to the same extent as provided for in Section 24.2.4.

42.6 The warranties set out in Section 42.4 (*Warranty*) and the indemnity set out in Section 42.5 (*Indemnity*) shall survive the expiration or termination of this Contract.

42.7 Company and the Contractor each undertake at the request of the other and at no charge to execute all documents and to do all acts which may be reasonably required by the other to bring into effect the provisions of this Section 42.0 (*Intellectual Property Rights*).

43.0 ASSIGNMENTS

Contractor shall not assign this Contract wholly or in part, voluntarily, by operation of law, or otherwise, without first obtaining the written consent of Company. Any assignment of this Contract in violation of the foregoing shall be, at the option of Company, void. Subject to the foregoing, the provisions of this Contract shall extend to the benefit of and be binding upon the successors and assigns of the parties hereto.

Company reserves the right, at its sole option, to assign this Contract to Owner, Concessionaire, Owner's designated agent, or to Company affiliates, and, if assigned to Concessionaire, Concessionaire may further assign this Contract as collateral security for its debts.

44.0 LAWS AND REGULATIONS

44.1 Contractor shall comply strictly with local, municipal, state, federal and governmental laws, orders, codes and regulations applicable to Contractor's operations in the performance of the Work hereunder.

44.2 Contractor shall not, under any circumstances apply to or enter into negotiations with any governmental authority or agency for acceptance of variations from or revisions to safety or health, or air, water or noise pollution laws or regulations relating to this Contract, or to the performance thereof, without Company and Owner's prior written approval.

44.3 Contractor certifies that it is in compliance, and shall at all times remain in compliance, with all applicable anti-corruption and anti-bribery laws, including but not limited to the U.S. Foreign Corrupt Practices Act of 1977, as amended.

44.4 Contractor shall not, under any circumstances, cause or permit, in connection with the Work to be performed hereunder, the discharge, emission or release of any Hazardous Materials and/or waste, pollutant, contaminant or other substance in violation of any applicable laws, rules or regulations which are now or hereafter promulgated by any governmental authorities having jurisdiction over the Work. Contractor shall comply with all legal regulatory requirements applicable to the Work performed under this Contract and shall be responsible for compliance with all Hazardous Materials, waste, health and safety, notice, training, and environmental protection laws, rules, regulations and requirements.

"Hazardous waste" includes all substances which are or may be identified as such in 40 CFR Part 261 or other applicable laws or regulations. Contractor shall submit to Company material safety data sheets (OSHA Form 20) as required by applicable regulation. As an inducement to award of this Contract, Contractor warrants full compliance and that it will adhere to all applicable project Hazardous Materials and waste procedures and, if necessary, obtain or arrange for, at its expense, all identification numbers, permits, applications and other things required in connection with the activities under this Contract.

Contractor agrees to take, at its expense, all actions necessary to protect third parties, including without limitation, employees and agents of Owner and Company from any exposure to, Hazardous Materials or hazards of, hazardous and/or toxic wastes or substances generated, or utilized in, Contractor's operations. Contractor agrees to report to the appropriate governmental agencies all discharges, releases and spills of Hazardous Materials and/or

wastes required to be reported by law and to immediately notify Owner and Company of same.

44.5 This Contract shall be subject to the law and jurisdiction of the State of Colorado, unless expressly designated otherwise within this Contract.

45.0 COOPERATION ON OTHER RTD PROJECTS

A. Following delivery by Company of a written request for any Project Records, including the Contract Data and Work Products, or other information in the possession or under the control of Contractor or the Subcontractors that is relevant or potentially relevant to any Other RTD Project, including for the purpose of preparing, including or making reference to such information in any Other Project Procurement Material, Contractor shall (and shall cause the Subcontractors), promptly (and in any event within 25 days of delivery of Company's request) deliver to Company all such Project Records and other information that Company may otherwise require Contractor to deliver or to procure the delivery of under the terms of this Agreement.

B. Following delivery by Company to Contractor of a written request, Contractor shall inform Company by written response within 25 days of the request of all material facts or circumstances of which it is aware that might reasonably be expected to affect the design, construction, operation or maintenance of any Other RTD Project in the light of the details concerning such project that Company has submitted to Contractor or that are otherwise available to Contractor, including the Final Project Designs.

C. If Company has been notified that Owner is preparing to issue or has issued any Other Project Procurement Materials or is otherwise seeking offers from any person or negotiating with any person in respect of any proposed Other RTD Project, then, in addition to those actions required under Section A and B above, Contractor shall use all Reasonable Efforts as Company may request to assist such procurement, including, at reasonable times and upon reasonable notice, providing access to Owner and its designees to Project Records, but only to the extent that Company may otherwise require Contractor to deliver or to procure the delivery of such records under the terms of this, to the extent not previously provided in accordance with this Article 46 solely and to the extent necessary to procure and award the relevant Other RTD Project;

D. If Company notifies Contractor that Owner awards or otherwise undertakes any Other RTD Project other than with Owner, then:

Contractor shall use all Reasonable Efforts to cooperate and liaise with Owner and all Owner designated contractors engaged in such Other RTD Project to the extent reasonably necessary to facilitate the Other RTD Project and (y) Contractor shall not take any action which is calculated or intended to directly or indirectly prejudice or frustrate or make more difficult such Other RTD Project, *provided* that in either case of (x) or (y), this obligation shall not require Contractor to take, or refrain from taking, any action that would reasonably be anticipated to adversely affect the Rolling Stock or the carrying out of Contractor's other obligations under this Agreement.

DOCUMENTATION, LIENS AND OFFSETS

46.0 DOCUMENTATION AND RIGHT OF AUDIT

46.1 Where Contractor's invoice includes compensation for Work performed at a unit price, Contractor shall submit its determination of units of Work performed, determined in accordance with the provisions of this Contract, and substantiated by documents satisfactory in form and content to Company. Upon verification by Company of said documents, Company will advise Contractor in writing of either acceptance of Contractor's determination of units or of Company determination of such units. If Contractor believes that Company has incorrectly determined the units of Work performed, Contractor shall comply with the provisions of Article 53.0, Dispute Resolution Procedure.

46.2 Where Contractor's invoice includes compensation for Work performed for a reimbursable Contract Price, all costs, expenses and other amounts so invoiced shall be substantiated and supported by equipment time slips, paid invoices, time sheets, receipts and other documents satisfactory to and verified by Company.

46.3 Contractor shall maintain for a period of two (2) years after final payment under this Contract, all records and accounts pertaining to Work performed by Contractor under this Contract for a unit price, a reimbursable price, or otherwise authorized in writing by Company for performance on a reimbursable basis. Company and/or Owner shall have the right to audit, copy and inspect said records and accounts at all reasonable times during the course of such Work and for the above two (2) year period for the purpose of verifying units furnished and/or costs incurred, as applicable.

46.4 46.4.1The Contractor will keep, and shall ensure that each of its Subcontractors keeps, full records in respect of the construction, financing, commissioning, completion, maintenance and operation (as applicable) of the Rolling Stock and the performance of the Contractor's obligations under this Contract, including evidence of all prices, costs or rates negotiated and invoiced by the

Contractor in connection with the performance of this Agreement (the ***Project Records***) in accordance with Owner's Audit and Records Requirements and otherwise in accordance with Applicable Requirements.

46.4.2 The Contractor shall permit and facilitate, and shall ensure that each of its Subcontractors permits and facilitates, access, at any time, for audit, examination, review and inspection of the Project Records, including for the purposes of making excerpts and transcriptions. Such access shall be granted to Company, Owner, any Relevant Authority, any Project Third Party (to the extent provided in the Third Party Agreements), or any of their respective authorized representatives or advisers (collectively the ***Reviewing Authorities***) (each at its own cost). Any Reviewing Authority may at its own cost inspect (which inspection right shall include the right to take photographs; provided that as a condition to taking photographs, each Reviewing Authority must agree that such photographs may be used solely for the purpose of preparing reports for use by such Reviewing Authority and under no circumstances shall such photographs be used for any other purpose or otherwise disseminated outside of such Reviewing Authority except as required by Law) any elements of the Work or the Rolling Stock (at its own cost) in order to monitor the performance by the Contractor of its obligations and responsibilities under this Contract.

46.4.3 Company shall provide the Contractor with the opportunity to attend audits and inspections referred to above on any Site by giving notice (including notice of the identity of the relevant person) to the Contractor as soon as is reasonably practicable in the circumstances.

46.4.4 Following any audit or inspection by Company or any Relevant Authority of the Project Records, the Work or the Rolling Stock, Owner, Company or any Relevant Authority carrying out such audit or inspection may direct the Contractor to remedy any noncompliance with the terms of this Contract or the Applicable Requirements.

46.5 If the Contractor disputes the conclusions of any audit or inspection or any claim of noncompliance by the Contractor of its obligations hereunder or under the Applicable Requirements, the Contractor may refer the Dispute for resolution in accordance with the Dispute Resolution Procedure within seven days of receiving the audit or inspection results. If the Contractor does not refer such Dispute to the Dispute Resolution Procedure within such period, then it is deemed that the Contractor accepts the audit or inspection results and it shall remedy any noncompliance as directed by Company or any Relevant Authority as soon as practicable.

46.6 Contractor shall make available all Project Records and other records relating to appeals under Section 53 (*Dispute Resolution Procedure*) or to the litigation or the settlement of Claims arising under or relating to this Agreement until such appeals, litigation, or Claims are finally resolved, in each case unless such records are exempt from disclosure under the applicable Dispute Resolution Procedure.

46.7 Contractor's obligations under this Article 46 (*Audit and Records*) shall continue for three years following the date of termination or expiry of this Contract.

46.8 The Contractor shall permit and facilitate the pre-award and post delivery Buy America audit. These audits are conducted in accordance with 49 CFR, Part 663, and will require the Contractor to supply Company or Owner a list of components and subcomponents (if necessary), the cost of such items, total material cost, final assembly cost and other information as necessary to comply with the requirements of the Buy America audits.

47.0 LIENS

47.1 To the full extent permitted by applicable law, Contractor hereby waives and releases any and all rights of mechanic's lien and similar rights for payment for services, labor, equipment, or materials furnished by Contractor in performance of the Work and granted by law to persons supplying materials, equipment, services and other things of value to improve or modify land or structures hereon, which Contractor may have against Owner's premises, property belonging to Company, Concessionaire or Owner or funds payable by Owner to Concessionaire or by Concessionaire to Company.

47.2 Contractor shall at all times promptly pay for all services, materials, equipment and labor used or furnished by Contractor in the performance of the Work under this Contract and shall, to the fullest extent allowed by law, at its expense keep Owner's premises and all property belonging to Company, Concessionaire or Owner free and clear of any and all of the above mentioned liens and rights of lien arising out of services, labor, equipment or materials furnished by Contractor or its employees, material-men or subcontractors in the performance of the Work. If Contractor fails to release and discharge any lien or threatened lien against Owner's premises or the property of Company, Concessionaire or Owner arising out of performance of the Work within five (5) working days after receipt of written notice from Company to remove such claim of lien, Company may, at its option, discharge or release the claim of lien or otherwise deal with the lien claimant, and Contractor shall pay Company any and all costs and expenses of Company in so doing, including reasonable attorneys' fees incurred by Company.

47.3 At the time of each scheduled payment hereunder, Contractor shall (a) certify to Company that the Rolling Stock, are, to the extent of the most recent payment received by Contractor, free from any and all claims, liens, security interests or

encumbrances in the nature of mechanics', labor or materialmen's liens or otherwise, arising out of or in connection with performance by Contractor, or any Subcontractor, of the Work, and (b) provide an interim lien waiver, in the form of Exhibit [ ] hereto (or, solely in the case of vendors providing materials or equipment valued at less than $[50,000] in the aggregate, other evidence reasonably satisfactory to Company demonstrating that such vendor has waived or is not entitled to place any lien on any part of the Rolling Stock), of Contractor's lien claims, to the extent of the most recent payment received by Contractor, and interim lien waivers, in the form of Exhibit [ ] hereto, from each Subcontractor with a Subcontract in excess of $[50,000], to the extent of the most recent payment received by Contractor, as are necessary to support Contractor's certificate. If any claim, lien, security interest or encumbrance is filed or notification of withholding money for labor or material furnished under this Agreement is served on Company, Concessionaire, Owner or any Lender, Company may withhold from any scheduled payment or other amount payable to Contractor under this Agreement or otherwise, an amount sufficient to discharge any or all such liens or claims, unless Contractor shall furnish a bond in form, substance and amount reasonably satisfactory to Company, Concessionaire, Owner and the Financing Parties to protect Concessionaire, the Project and the Sites against such liens or claims, and, after thirty (30) days from the time such lien or claim is made, unless Contractor shall have furnished a bond as described above, Company may discharge such lien or claim with the moneys withheld, whereupon for purposes of this Agreement such moneys shall be deemed to have been paid to Contractor hereunder. In addition, Contractor shall deliver to Company a final release and waiver of liens, in the form of Exhibit [ ] hereto, from each Subcontractor with a Subcontract in excess of $[50,000] on the payment date next following the date on which final payment to such Subcontractor is made.

48.0 RIGHT TO OFFSET

Company, without waiver or limitation of any rights or remedies of Company or Owner, shall be entitled from time to time to deduct from any amounts due or owed by Company to Contractor, in connection with this Contract any and all amounts owed by Contractor to Company in connection with this Contract.

49.0 FINAL PAYMENT CERTIFICATION AND RELEASE

49.1 Company shall not be obligated to make final payment to Contractor until Contractor has delivered to Company a certificate and release satisfactory to Company that Contractor has fully performed under this Contract and that all claims of Contractor for the Work are satisfied upon the making of such final payment, that no property of Owner,Concessionaire or Company or property used in connection with the Work is subject to any unsatisfied lien or claim as a result of the performance of the Work, that all rights of lien against Owner's, Company's or Concessionaire's property in connection with the Work are released (including without limitation, if Company requests, releases of lien

satisfactory in form to Company, executed by all persons who by reason of furnishing material, labor or other services to Contractor for the Work or potential lienors against Owner's Company's or Concessionaire's property), and that Contractor has paid in full all outstanding obligations against the Work.

49.2 In addition to the above specified submittals and prior to final payment being made to Contractor, Contractor shall provide Company with written certification that all wages, fringe benefits, dues and payroll deductions have been made. Failure to provide such certification shall be cause for Company to withhold final payment until such time as all payment(s) are made and certification is submitted.

TERMINATION

50.0 NOT USED

51.0 TERMINATION OF THE CONTRACT

Contractor Termination Events

51.1 The following are ***Contractor Termination Events***:

51.1.1 the Contractor fails to commence the Work within two months after the Effective Date;

51.1.2 the Revenue Service Commencement Certificate in respect of any Commuter Rail Service is not, or there is no reasonable prospect of it being, issued on or before the Revenue Service Deadline Date for reasons related to the Work (any Dispute as to what constitutes "no reasonable prospect" shall be determined by the Technical Panel in accordance with the Dispute Resolution Procedure);

51.1.3 the Final Completion Certificate in respect of any Commuter Rail Project is not, or there is no reasonable prospect of it being, issued on or before the Final Completion Deadline Date for reasons related to the Work (any Dispute as to what constitutes "no reasonable prospect" shall be determined by the Technical Panel in accordance with the Dispute Resolution Procedure);

51.1.4 the Contractor abandons the Work;

51.1.5 an involuntary proceeding shall be commenced or an involuntary petition shall be filed seeking (A) liquidation, reorganization or other relief in respect of any of the Contractor or any of their debts, or of a substantial part of their assets, under any Federal, state or foreign bankruptcy, insolvency, receivership or similar law now or hereafter in effect or (B) the appointment of a receiver, trustee, custodian,

sequestrator, conservator or similar official for any of the Contractor or for a substantial part of its assets, or Contractor makes a general assignment for the benefit of its creditors, and, in any such case, such proceeding or petition shall continue undismissed for a period of 60 or more days or an order or decree approving or ordering any of the foregoing shall be entered;

51.1.6 the Contractor shall (A) voluntarily commence any proceeding or file any petition seeking liquidation, reorganization or other relief under any Federal, state or foreign bankruptcy, insolvency, receivership or similar law now or hereafter in effect, (B) consent to the institution of, or fail to contest in a timely and appropriate manner, any proceeding or petition described in paragraph 51.1.5 above, (C) apply for or consent to the appointment of a receiver, trustee, custodian, sequestrator, conservator or similar official for itself or for a substantial part of its assets, (D) file an answer admitting the material allegations of a petition filed against it in any such proceeding, (E) make a general assignment for the benefit of creditors or (F) take any action for the purpose of effecting any of the foregoing;

51.1.7 the Contractor sells, transfers, leases or otherwise disposes of all or any part (which has a material adverse effect in the Contractor's ability to carry out its obligations under this Contract) of its undertakings, properties or assets by a single transaction or a number of transactions (whether related or not and whether at the same time or over a period of time without the prior consent of Company (such consent not to be unreasonably withheld or delayed);

51.1.8 the non-compliance with any share transfer restrictions or any change in control limitation as contemplated by Section 56;

51.1.9 the Contractor fails to comply in any material respect with any Specified Requirement or any Applicable Requirement;

51.1.10 the Contractor fails to comply with any material requirement of Section 34.0 (*Insurance*) and Attachment 12 (*Insurance*);

51.1.11 any of the representations or warranties referred to in Section 55.1 (*Contractor Representations and Warranties*) prove to be materially untrue or incorrect to the extent that such breach of representation or warranty has a material adverse effect on the Eagle Project as a whole or the interests of Company or Owner;

51.1.12 any breach by the Contractor of its obligations under Section 43 (*Assignment*);

51.1.13 any material breach by the Contractor of its obligations in respect of subcontracting, including the provisions of Section 10 (DBE, SBE and Specified Requirements) and of Part C (*Disadvantaged and Small Business Enterprises Programs*) of Attachment 15 (*Specified Requirements*);

51.1.14 not used; and

51.1.15 without limitation to paragraphs 51.1.1 to 51.1.14 above, any breach of any other material obligations of the Contractor under this Contract, or repudiation of this Contract by the Contractor.

51.2 Notwithstanding Section 51.1, no Contractor Termination Event shall arise where a default by the Contractor under this Contract arises as a result of:

51.2.1 actions or omissions by Company where the Contractor is otherwise in compliance with its obligations under this Contract in respect of which the Contractor Termination Event has arisen; or

51.2.2 a Relief Event or a Force Majeure Event (other than to the extent a Contractor Termination Event has occurred notwithstanding the occurrence of such Relief Event or Force Majeure Event).

51.3 Subject to the terms of the Lenders' Direct Contract, upon the occurrence of a Contractor Termination Event and so long as such event is continuing:

51.3.1 in the case of a Contractor Termination Event other than those referred to in paragraphs 51.1.5, 51.1.6, or 51.1.14 of Section 51.1, Company shall serve notice of default on the Contractor requiring the Contractor, at the Company's option, to either:

(a) remedy the breach or breaches referred to in such notice of default within 30 days of such notice (or such longer period as may be agreed by Company in its absolute discretion); or

(b) propose within 20 days of such notice a reasonable plan for the remedying of the breach or breaches, such plan to specify in reasonable detail the manner in which such breach or breaches is or are proposed to be remedied and the latest date by which it is proposed that such breach or all such breaches shall be remedied,

during which period Company may not, in either case, exercise any rights to terminate the Contract, but (subject to Section 51.5 (*Remedial plan*)) following which Company may terminate the Contract with immediate effect; and

51.3.2 in the case of the Contractor Termination Events referred to in paragraphs 51.1.5, 51.1.6, or 51.1.14 of Section 51.1, terminate the Contract by notice in writing with immediate effect.

51.4 Contractor acknowledges and accepts the rights of Owner under Section 41.2 (b)(iii) of the Concession Agreement. Subject to compliance with Section 51.5 *(Remedial Plan)* and so long as the Contractor Termination Event is continuing, Company, Concessionaire or Owner may at its option and without prejudice to any of its other rights or remedies and to any rights of action which shall accrue or shall have already accrued to them, do any or all of the following:

51.4.1 suspend payment of the Payments and any other payments otherwise due hereunder, but only during the period in which Company, Owner or RTD exercises its step-in rights in accordance with Section 51.4.2; and

51.4.2 without terminating the Contract, by notice in writing having immediate effect, Company, Owner or RTD may suspend performance by the Contractor of the Work, and take over the performance of the Work or any part thereof (in which case the Contractor shall reimburse Company for all reasonable costs incurred by it in performing or engaging others to perform the functions of the Contractor (including the relevant administrative expenses)); **provided** that, notwithstanding the removal of the Contractor, the Contractor is not released from its obligations, liabilities or responsibilities under this Contract and this Contract shall remain in full force and effect for a period of 180 days from the date on which Company, Company or Concessionaire first exercised its rights under this Section 51.4.2.

51.5 Where the Contractor proposes a plan in accordance with Section 51.3(i)(b), Company shall notify the Contractor within 20 days if it does not accept such plan as being reasonable and provide reasons in respect thereof, failing which Company shall be deemed to have accepted such plan. Where Company notifies the Contractor that it does not accept such plan as being reasonable, the Parties shall meet within the following five days in order to agree any necessary amendments to the plan proposed. If the Parties fail to agree within such five-day period, the question of whether or not the plan (as the same may have been amended by agreement) is reasonable may be referred by either Party for resolution in accordance with the Dispute Resolution Procedure.

51.6 If:

51.6.1 the breach or breaches notified in a notice of default served under Section 51.3.1 is or are not remedied or rectified:

(a) before the expiry of the period referred to in Section 51.3(i)(a) (if applicable); or

(b) where the Contractor proposes a plan pursuant to Section 51.3(i)(b) which has been accepted by Company or determined in accordance with the Dispute Resolution Procedure as being reasonable, but the Contractor has subsequently not acted in accordance with such plan; or

51.6.2 a plan proposed by the Contractor pursuant to Section 51.3(i)(b) is rejected by Company as not being reasonable, and, where referred for resolution in accordance with the Dispute Resolution Procedure, Company's rejection of such plan is not reversed as a result of such reference to the Dispute Resolution Procedure,

Company may, if the Contractor Termination Event is continuing unremedied and unwaived, terminate the Contract in its entirety by notice in writing having immediate effect.

51.7 The following are ***Company Termination Events***:

51.7.1 Company fails to pay more than 5% of an undisputed amount within 30 days of the due date, the Contractor notifies Company in writing of such failure to pay and requiring it to be remedied, and such failure is not remedied within 30 days of receipt of such notice; and

51.7.2 the obligations of Company under this Contract are or become illegal, unenforceable, void or voidable, and as a result, Company is or becomes unable to perform its material obligations under this Contract.

51.8 Upon the occurrence of an event which, in the opinion of the Contractor, is or could become a Company Termination Event, the Contractor shall serve notice on Company of the occurrence of such Company Termination Event.

51.9 Upon the occurrence of an Company Termination Event and so long as such Company Termination Event is continuing, the Contractor may, at its option, serve notice on Company requiring Company to rectify or remedy the Company Termination Event (the ***Initial Termination Notice***). If the relevant matter or circumstance has not been rectified or remedied by Company or otherwise within 10 days of the receipt of the Initial Termination Notice (in the case of an Company Termination Event under paragraph 51.7.1 of Section 51.7 (*Company Termination Events*)) or 45 days (in the case of all other Company Termination Events), the Contractor may serve a further notice to the General Manager (the ***Second Termination Notice***). If the relevant matter or circumstance has not been rectified or remedied by Company or otherwise within 10 days of the receipt of the Second Termination Notice (in the case of

an Company Termination Event under paragraph 51.7.1 of Section 51.7 (*Company Termination Events*)) or 45 days (in the case of all other Company Termination Events), the Contractor may serve a final notice on Company terminating the Contract with immediate effect.

51.10 The Contractor may only give notice to Company terminating the Contract in accordance with the provisions of this Section 51.8.

51.11 Subject to the exercise by Company, Concessionaire or Owner of its step-in rights under with Section 51.4.2 [or exercise by Lenders of their rights under the Lender's Direct Contract], the Parties will continue to perform their obligations under this Contract, notwithstanding the provision of any Termination Notice, until the termination of the Contract becomes final and effective in accordance with the provisions of this Section 51 (*Termination*) and the Lenders' Direct Contract.

51.11.1 If Company terminates this Agreement as result of a breach by Contractor of its obligations under this Agreement:

A. Subject to the limit of liability in the Contract Signature Document, Contractor shall be liable to Company for the aggregate of:

1. the costs reasonably incurred by Company in replacing Contractor to complete the Work;

2. all direct Damages suffered or incurred by Company as a result of such termination and/or the acts or omissions of Contractor leading to such termination, including, where the Concession Agreement has not been terminated, the costs and expenses reasonably attributable to the employment of a different contractor to fulfill the obligations and services to have been performed by Contractor under this Agreement; and

3. any Damages, costs and expenses suffered or incurred by Company under the Prime Conctract or any other related agreement as a result of such termination; and

B. Company may cause the Work to be completed by other contractors, and Contractor shall pay for the cost of such completion and Damages suffered by Company to the extent the same exceeds the Contract Sum. Concessionaire shall, within a reasonable period of time after the Project is fully and finally completed by the work of one or more other contractors, determine the total cost (including contractor fees) to Company for completing the Work, including all sums previously paid or then owned to Contractor pursuant to this Agreement. If the Contract Sum is less than the sum of (i) the cost incurred by Company to fully and finally complete the Work, (ii) all

other Damages suffered by Concessionaire as a result of a default or breach by Contractor of its obligations under the Contract Documents, and (iii) all amounts previously paid to Contractor pursuant to this Agreement, Contractor shall pay to Company on demand the amount of such difference. Any amount owed by Company to Contractor for the month and level of completion of the Work shall be retained by Company until after completion of the Work and applied by Company to pay any amounts and Damages owed by Contractor pursuant to this Agreement. Any excess shall be remitted to Contractor within sixty (60) days after the Work is fully and finally completed.

51.12 .

Upon the termination pursuant to Section 51.7, the Contractor and Company shall meet to discuss the reasonable compensation for the Contractor to be reimbursed by the Company for the costs, expenses and damages arising from the termination.

PARTNERING AND DISPUTE RESOLUTION

52.0 NOT USED

53.0 DISPUTE RESOLUTION; PARTNERING PROGRAM

53.1 Arbitration; Other Actions.

Any claim or controversy between Company and Contractor not exceeding One Million Dollars ($1,000,000) in value shall be submitted to binding arbitration in accordance with this Section 53.1 upon written notice of either Party delivered to the other of such Party's intention to arbitrate, the nature of the dispute, the amount claimed and the decision sought. Arbitration under this Section 53.1 shall be conducted by Judicial Arbitration and Mediation Services (JAMS) or its successor in accordance with its Streamlined Arbitration Rules and the Federal Arbitration Act, 9 USC Section 1 *et seq*. The notice of intent to arbitrate also shall specify the name and address of an arbitrator selected by the Party requesting arbitration. The other Party shall within ten (10) Business Days of receipt of the arbitration notice select its arbitrator; *provided* that if it fails to do so, the arbitrator appointed by the Party requesting arbitration shall serve as the sole arbitrator of the dispute. However, if both Parties name an arbitrator, the two arbitrators thus selected shall within ten (10) Business Days of the selection of the second arbitrator select the third arbitrator. All arbitrators shall be qualified, independent and neutral. The decision of any two of the three arbitrators on any issue shall be final. Unless the Parties otherwise agree, all arbitration proceedings shall be held in Denver, Colorado. Company and Contractor shall proceed with any arbitration expeditiously. All conclusions and decisions of the arbitration shall be made consistent with applicable legal principles and the arbitrators' good faith interpretation of the terms and provisions of this Agreement. The award of the arbitrators will be final and binding on both Parties and may be enforced in any court having jurisdiction

over the Party against which enforcement is sought. Each Party shall bear its own expenses, including but not limited to counsel fees and witness fees. If the arbitrators determine that the claim or defense of either Party was frivolous (i.e., without justifiable merit), they may require that the Party at fault pay or reimburse the other Party for costs of the arbitration in whole or in part, except that all expenses of the arbitration shall be apportioned in the award of the arbitrators based upon the respective merit of the positions of the Parties. NOTWITHSTANDING THE FOREGOING, EQUITABLE REMEDIES, INCLUDING INJUNCTION AND SPECIFIC PERFORMANCE, SHALL BE AVAILABLE TO THE PARTIES BY JUDICIAL PROCEEDINGS AT ANY TIME AND, FOR THE PURPOSE OF ENFORCING ANY ARBITRAL AWARD OR DECISIONS, THE PARTIES HEREBY SUBMIT TO THE EXCLUSIVE JURISDICTION AND VENUE OF THE FEDERAL AND STATE COURTS IN DENVER, COLORADO. THE PARTIES ALSO SUBMIT TO THE EXCLUSIVE JURISDICTION AND VENUE OF THE FEDERAL AND STATE COURTS IN DENVER, COLORADO, REGARDING ANY DISPUTE BETWEEN THE PARTIES WHERE THE AMOUNT IN CONTROVERSY EXCEEDS ONE MILLION DOLLARS ($1,000,000). EACH OF THE PARTIES HEREBY IRREVOCABLY AND UNCONDITIONALLY WAIVES TRIAL BY JURY IN ANY LEGAL ACTION OR PROCEEDING UNDER THIS AGREEMENT AND FOR ANY COUNTERCLAIM IN SUCH AN ACTION OR PROCEEDING. THE PROVISIONS OF THIS SECTION 19.1 SHALL SURVIVE THE TERMINATION OF THIS AGREEMENT.

53.2 Common Issue in Dispute under the Prime Contract.

Notwithstanding any other provision in this Agreement to the contrary, if any issue in dispute between the Parties to this Agreement is also the subject of, or relates to, a concurrent dispute under the Prime Contract, the Parties shall seek to cause the dispute hereunder to be consolidated with the dispute resolution process occurring under the Prime Contract, and the Parties shall meet with the Concessionaire to coordinate such consolidation. If such consolidation does not occur, then any ongoing proceeding regarding the dispute hereunder shall be stayed pending final resolution of the dispute under the Prime Contract, which resolution shall be binding on the Parties for all purposes of this Agreement.

53.3 Continuation of Work.

Contractor shall continue its performance of the Work on a timely basis in accordance with the Project Schedule during any dispute which may arise between Company and Contractor concerning the Project.

53.4 Partnering Program.

Contractor acknowledges the development of a partnering program between Owner and Concessionaire under Section 49 of the Concession Agreement. To the extent requested by Company, Contractor shall participate (and shall cause its Subcontractors to participate) in the implementation of such partnering program,

including attending partnering meetings and facilitating the resolution of issues through the partnering mechanism.

54.0 NOT USED

GENERAL

55.0 REPRESENTATIONS AND WARRANTIES

55.1 The Contractor represents and warrants to Company that, as at execution of this Contract, and (except as specified below) again on the Effective Date:

55.1.1 *Organization; Power and Authority*. The Contractor is a [●], duly organized, validly existing and, where legally applicable, in good standing under the laws of [●] and has the corporate power and authority to transact the business it transacts and proposes to transact, to execute and deliver this Contract and the other Project Contracts to which it is a party and to perform the provisions hereof and thereof.

55.1.2 *Authorization, Enforceability*. This Contract and the other Project Contracts to which it is a party have been duly authorized by all necessary corporate action on the part of the Contractor, and this Contract constitutes a legal, valid and binding obligation of the Contractor enforceable against the Contractor in accordance with its terms, except as such enforceability may be limited by (i) applicable bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting the enforcement of creditors' rights generally and (ii) general principles of equity (regardless of whether such enforceability is considered in a proceeding in equity or at law).

55.1.3 *No Conflicts*. The execution, delivery and performance by the Contractor of this Contract and the other Project Contracts to which it is a party and the performance by the Contractor of its obligations hereunder and thereunder will not (A) contravene, result in any breach of, or constitute a default under, any agreement, contract, instrument or other undertaking to which the Contractor is a party or which is binding on the Contractor or any of its property or assets, (B) conflict with or result in a breach of the articles, bylaws or other governing documents of the Contractor or (C) violate any Applicable Requirement.

55.1.4 *Consents and Approvals*. At the Effective Date, all Permits required to be in effect as at the Effective Date for the execution by the Contractor of, and the performance by the Contractor of its obligations under, this Contract and the other Project Contracts to

which it is a party have been obtained, are in full force and effect and not subject to appeal.

55.1.5 *Litigation; Observance of Contracts, Statutes and Orders*. There are no actions, suits, investigations or proceedings pending against the Contractor or any company which is a Holding Company of the Contractor or, to the knowledge of the Contractor, threatened against or affecting the Contractor or any company which is a Holding Company the Contractor or any of their respective property in any court or before any arbitrator of any kind or before or by any Relevant Authority that, individually or in the aggregate, could reasonably be expected to have a material adverse effect on the business or condition (financial or otherwise) of the Contractor. Neither the Contractor nor any company which is a Holding Company of the Contractor is in default under any term of any agreement or instrument to which it is a party or by which it is bound, or any order, judgment, decree or ruling of any court, arbitrator or Relevant Authority or is in violation of any Applicable Requirement (including Environmental Requirements), which default or violation, individually or in the aggregate, could reasonably be expected to have a material adverse effect on the business or condition (financial or otherwise) of the Contractor.

55.1.6 *Termination Events*. No Contractor Termination Event, or event which, with the passage of time or provision of notice or both, would be a Contractor Termination Event, has occurred and is continuing nor will such a Contractor Termination Event result from the entry by the Contractor into this Contract or the other Project Contracts to which it is a party or the exercise by the Contractor of its rights under, or the performance by the Contractor of any of its obligations under, this Contract or the other Project Contracts to which it is a party.

55.1.7 *Financial Statements.* At the date of execution of this Contract, the audited consolidated financial statements of the Contractor for the reporting year ended immediately before submission of the Contractor's Proposal have been prepared on a basis consistently applied and using [GAAP/IFRS] or equivalent accounting principles utilized and generally accepted in the country of incorporation of such party, and audited by an independent certified public accountant (applying GAAP or equivalent auditing standards utilized and generally accepted in the country of incorporation of such party) and give a true and fair view of the consolidated financial condition of each such group and are unqualified for the accounting period in question.

55.1.8 *No Change in Financial Condition*. At the date of execution of this Contract, there has been no material adverse change in the financial

condition of the Contractor since the date of their latest audited consolidated accounts that would have a material adverse effect on the Contractor's ability to perform its obligations under this Contract and the other Project Contracts.

55.1.9 *Accuracy of Contractor Documents*. All written information and certifications furnished by or on behalf of the Contractor to Company, or any of its representatives or advisors, as part of or in connection with the Contractor's Proposal and the negotiation of this Contract or the Project Contracts or delivered by or on behalf of the Contractor to Company or any Person on its behalf pursuant to this Contract has been and is true and accurate in all material respects when given and taken as a whole and there are no other facts or matters the omission of which would have made any statement or information contained in the written information provided to Company or to any of its representatives or advisors that is misleading in any material respect and all expressions of opinion contained therein were honestly made on reasonable grounds after due and careful enquiry.

55.1.10 *Changes affecting Company's decision to enter into this Contract*. The Contractor is not aware of any material facts or circumstances that have not been disclosed to Company and that, if disclosed, would reasonably be expected to materially adversely affect the decision of a prudent person considering whether or not to enter into this Contract with the Contractor.

55.1.11 *Necessary Information*. At the date of this Contract, the Contractor has generally obtained for itself all necessary information regarding:

(a) the risks, contingencies and all other circumstances which may influence or affect the Contractor's ability to perform its obligation under this Contract or the Eagle Project; and

(b) any other factors which would affect its decision to enter into this Contract or the terms on which it would do so.

55.2 Notwithstanding that the statements in this Section 55.1 (*Contractor Representations and Warranties*) are represented only at particular times, the Contractor shall inform Company as soon as it becomes aware that any (with the exception only of Section 55.1.9 (*Accuracy of Contractor Documents*)) of the statements set out in this Section 55.1 (*Contractor Representations and Warranties*) (disregarding the references in those subclauses to the times at which the statements are made) cease to be true and correct, or become misleading in any way, at any time.

55.3 Company represents to the Contractor that at the signature of this Contract:

55.3.1 *Organization; Power and Authority*. Company has the power and authority to transact the business it transacts and proposes to transact, to execute and deliver this Contract and the other Project Contracts to which it is a party and to perform the provisions hereof and thereof.

55.3.2 *Authorization; Enforceability*. This Contract and the other Project Contracts to which it is a party have been duly authorized by Company, and this Contract constitutes a legal, valid and binding obligation of Company enforceable against Company in accordance with its terms, except as such enforceability may be limited by (i) applicable bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting the enforcement of creditors' rights generally and (ii) general principles of equity (regardless of whether such enforceability is considered in a proceeding in equity or at law).

55.4 The Contractor acknowledges that Company has entered into this Contract in reliance on the representations made by the Contractor contained in Section 55.1 (*Contractor Representations and Warranties*) of this Contract.

55.5 Company acknowledges that the Contractor has entered into this Contract in reliance on the representations made by Company contained in Section 55.3 (*Company Representations and Warranties*) of this Contract.

56.0 RESTRICTIONS ON CHANGE IN CONTROL OF CONTRACTOR

In the event of any proposed change in Control of Contractor, the Contractor shall inform Company and Concessionaire of such change in Control (or proposed change in Control) as promptly as possible, and shall consult with Company regarding the action the Contractor should take. After such consultation, if such change in Control materially adversely affects the Contractor's ability to carry out its obligations under this Contract and Owner so requests in writing, then Company shall terminate the Contract. If the Parties fail to agree whether the change in Control in question materially adversely affects the Contractor's ability to carry out its obligations under the Contract, then the issue may be referred by either Party for resolution in accordance with the Dispute Resolution Procedure, during which period, the Contractor shall not be required to take any action in connection with the Project Contracts.

57.0 VALIDITY OF PROVISIONS

In the event any section, or any part or portion of any section of this Contract shall be held to be invalid, void or otherwise unenforceable, such holding shall not affect the remaining part or portions of that section, or any other section hereof.

58.0 WAIVER

Company's failure to insist on performance of any term, condition, or instruction, or to exercise any right or privilege included in this Contract, or its waiver of any breach, shall not thereafter waive any such term, condition, instruction, and/or any right or privilege.

No asserted waiver of any right or benefit by Company shall be valid unless such waiver is in writing, signed by Company, supported by consideration and specifies the extent and nature of the rights or benefits being waived.

59.0 GRATUITIES

59.1 Contractor, its employees, agents or representatives shall not offer or give to an officer, official or employee of Company, Concessionaire or Owner, gifts, entertainment, payments, loans or other gratuities to influence the award of a contract or obtain favorable treatment under a contract.

59.2 Violation of this Article may be deemed by Company to be a material breach of this Contract and any other contract with Company and subject all contracts with Contractor to termination for default, as well as any other remedies at law or in equity.

60.0 INTERPRETATION

60.1 Unless the context otherwise clearly requires:

60.1.1 the definitions of terms herein shall apply equally to the singular and plural forms of the terms defined;

60.1.2 whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms;

60.1.3 the words "include", "includes" and "including" shall be deemed to be followed by the phrase "without limitation";

60.1.4 the verb "will" shall be construed to have the same meaning and effect as the verb "shall";

60.1.5 any definition of or reference to any agreement, instrument or other document herein shall be construed as referring to such agreement, instrument or other document as from time to time amended, supplemented or otherwise modified (subject to any restrictions on such amendments, supplements or modifications set forth herein);

60.1.6 any reference to a Law shall be construed as a reference to (a) such Law as it may be amended, modified or supplemented from time to

time, (b) all regulations and rules pertaining to or promulgated pursuant to such Law, (c) the successor to the Law resulting from recodification or similar reorganizing of Laws and (d) all future Laws pertaining to the same or similar subject matter;

60.1.7 any reference herein to any Person, or to any Person in a specified capacity, shall be construed to include such Person's successors and assigns or such Person's successors in such capacity, as the case may be;

60.1.8 the words "herein", "hereof" and "hereunder", and words of similar import, shall be construed to refer to this Contract in its entirety and not to any particular provision hereof;

60.1.9 all references herein to Sections, Parts and Attachments shall be construed to refer to Sections and Parts of and Attachments to, this Contract. The Attachments to this Contract are an integral part hereof. The provisions of this Contract shall prevail over the provisions of the Attachments to the extent of any inconsistency.

60.1.10 the headings used in this Contract are for convenience of reference only and are not to affect the construction of or to be taken into consideration in interpreting this Contract; and

60.1.11 references to this Contract or to any other agreement or document relating to the Eagle Project include a reference to this Contract, or, as the case may be, such other agreement or document as amended from time to time.

61.0 NO PARTNERSHIP

Nothing contained in this Contract shall be deemed to constitute a partnership between the Parties. Neither Party shall hold itself out contrary to the terms of this Section 61.0. This Contract is not for the benefit of any third party and shall not be deemed to create or evidence any right or remedy of any such third party, whether referred to herein or not. Nothing contained in this Contract shall imply or create any contractual relationship between Company and Contractor's Subcontractors.

62.0 ILLEGAL ALIENS

62.1 The Contractor shall comply, and shall ensure that all Subcontractors comply, in all material respects, with all applicable requirements of Colorado Revised Statutes §§ 8-17.5-101 *et seq.*

62.2 The Contractor shall not (i) knowingly employ or contract with an illegal alien to perform any work under this Contract or (ii) enter into a contract with any Subcontractor that fails to certify to the Contractor that the Subcontractor shall

not knowingly employ or contract with an illegal alien to perform any work under such contract or this Contract.

62.3 The Contractor shall confirm, and shall ensure that all Subcontractors confirm, the employment eligibility of all employees who are hired in connection with the Contractor's performance of its obligations under this Contract through participation in either the E-Verify Program or the Department Program.

62.4 The Contractor shall not use the E-Verify Program or the Department Program procedures for the purpose of pre-employment screening of job applicants while this Contract is being performed.

62.5 If the Contractor participates in the Department Program, the Contractor shall:

62.5.1 notify Company of participation in the Department Program and shall comply with §8-17.5-102(c) of the Colorado Revised Statutes and any other requirements of the Department Program;

62.5.2 within 20 days after hiring an employee who is hired in connection with the Contractor's performance of its obligations under this Contract, confirm to Company, in a notarized certificate in form and substance satisfactory to Company, that the Contractor has examined the legal work status of such employee, retained copies of the documents required by 8 U.S.C. §1324a, and not altered or falsified the identification documents for such employees; and

62.5.3 consent (and does hereby consent) to United States Department of Labor and Employment audits conducted in accordance with C.R.S. §8-17.5-102(5)(C)(III).

62.6 If the Contractor obtains actual knowledge that a Subcontractor responsible for the performance of any part of the Contractor's obligations under this Contract employs or contracts with an illegal alien, the Contractor must notify such Subcontractor and Company within three Business Days of the Contractor having such actual knowledge. If, within three Business Days of receiving such notice, the Subcontractor does not stop employing or contracting with the illegal alien, the Contractor shall terminate the agreement with the Subcontractor; **provided** that the Contractor shall not be required to terminate such agreement with such Subcontractor if, during such three Business Days after receiving the notice required in this Section 62.6, the Subcontractor provides information to Company to establish that the Subcontractor did not knowingly employ or contract with an illegal alien.

62.7 The Contractor shall cooperate and comply with any reasonable request the United States Department of Labor and Employment makes in the course of any investigation it undertakes.

63.0 NO FEDERAL GOVERNMENT OBLIGATION

The Contractor acknowledges and agrees that, notwithstanding any concurrence by the United States federal government in, or approval of, the solicitation or award of this Contract, the United States federal government is not a party to this Contract and shall not be subject to any obligations or liabilities to Company, the Contractor, or any other party (whether or not a party to this Contract) pertaining to any matter resulting from this Contract.

64.0 CONFIDENTIALITY

64.1 In this Section, ***Information*** means all information relating to the other Party which is supplied by or on behalf of the other Party (whether before or after the date of this Contract), either in writing, orally or in any other form, directly or indirectly from or pursuant to discussions with the other Party or which is obtained through observations made by the receiving Party and such term includes all Work Products, analyses, compilations, studies and other documents whether prepared by or on behalf of a Party which contain or otherwise reflect or are derived from such information.

64.2 Each Party will maintain the confidentiality of any Information, except that Information may be disclosed or provided:

64.2.1 by either Party to its and its Affiliates' directors, officers, employees, consultants and agents, including accountants, legal counsel and other advisors;

64.2.2 by Company, to the Lenders, Project Third Parties or Relevant Authorities or otherwise as Company may require for the operation, maintenance or improvement of the Rolling Stock in the event of, or following, termination of this Contract;

64.2.3 by the Contractor, to its Subcontractors to the extent such Information is necessary for the performance by the Contractor of its obligations under this Contract;

64.2.4 by either Party to the extent:

(a) it is required to disclose such Information pursuant to an Applicable Requirement or by any subpoena or similar legal process or by any Relevant Authority;

(b) the other Party confirms in writing that such Information is not required to be treated as confidential;

(c) such Information is or comes into the public domain otherwise than through any disclosure prohibited by this Contract;

provided that, in the cases of paragraphs (a), (b) and (c), the Persons to whom such disclosure is made will be informed of the confidential nature of such Information and will so provide such Information subject to the same or similar requirements to maintain confidentiality as contained in this Contract.

64.3 The Contractor understands that any documents that it supplies to Company under this Contract are subject to public inspection and copying under the Colorado Open Records Act, Section 24-72-201 *et seq.*, unless exempt from public disclosure by Law. The Contractor agrees that if it considers documents to be exempt from public disclosure, it must indicate to Company the provision of the Colorado Open Records Act which exempts such document from public disclosure. The Contractor further agrees that if a Colorado Open Records Act request is filed with Company seeking disclosure of those documents, the Contractor will assist Company in responding to the request by reviewing the documents requested and confirming that the Contractor does not wish Company to make them public. In addition, the Contractor agrees to hold Company harmless and, at Company's option, provide legal defense for Company from all claims and demands, including attorney's fees, asserted against Company that result from Company refusing to make public the documents the Contractor has designated as confidential and proprietary. The Contractor also agrees that, if any action is filed in court seeking disclosure of the documents declared confidential and proprietary by the Contractor, Company may deposit the documents with the court and the Contractor will defend in court its designation of the information as exempt from disclosure.

65.0 NO DEEMED WAIVERS; REMEDIES CUMULATIVE

No failure or delay by either Party in exercising any right or power hereunder shall operate as a waiver thereof, nor shall any single or partial exercise of any such right or power, or any abandonment or discontinuance of steps to enforce such a right or power, preclude any other or further exercise thereof or the exercise of any other right or power. Notwithstanding any other provision of this Contract, the rights and remedies of the Parties hereunder are cumulative and are not exclusive of any rights or remedies that the Parties would otherwise have. No waiver of any provision of this Contract or consent to any departure by either Party therefrom shall in any event be effective unless such waiver is permitted by Section 66.0 (*Amendments*), and then such waiver or consent shall be effective only in the specific instance and for the purpose for which given.

66.0 AMENDMENTS

Neither this Contract nor any provision hereof may be waived, amended or modified except pursuant to an agreement or agreements in writing entered into by the Parties.

67.0 NOTICES, ETC.; LANGUAGE

67.1 Any notice, approval, election, demand, direction, consent, designation, request, agreement, instrument, certificate, report or other communication required or permitted to be given or made under this Contract (each, a ***notice***) to a party must be given in writing (including by fax or electronic mail). All notices will be validly given if on a Business Day to each Party at the following address:

67.1.1 To Company: [*Name of Company's Representative*]
Address:
Email: [●]

67.1.2 To the Contractor: [*contact details of Contractor*]

67.2 A notice shall be deemed to have been given:

67.2.1 upon receipt, if delivered in person;

67.2.2 upon receipt (confirmed by automatic answer back or equivalent evidence of receipt), if validly transmitted electronically before 3:00 p.m. (local time at the place of receipt) on a Business Day;

67.2.3 one Business Day after delivery to the courier properly addressed, if delivered by overnight courier; or

67.2.4 four Business Days after deposit with postage prepaid and properly addressed, if delivered by United States certified or registered mail.

67.3 The Parties will notify each other in writing of any change of address, such notification to become effective 15 days after notification.

67.4 All of the Contract Data, the Work Products and all written communications between any of Company, the Contractor, and the Subcontractors shall be in English.

68.0 CAPTIONS

69.0 THE CAPTIONS AND SECTION HEADINGS APPEARING HEREIN ARE INCLUDED SOLELY FOR CONVENIENCE OF REFERENCE AND ARE NOT INTENDED TO AFFECT THE INTERPRETATION OF ANY PROVISION OF THIS CONTRACT.INDEPENDENT ENGINEER

Contractor acknowledges the role of the Independent Engineer under the Concession Agreement and the Independent Engineer's Agreement.

70.0 GOVERNING LAW

This Contract shall be construed in accordance with, and this Contract and all matters arising out of or relating in any way whatsoever to this Contract (whether in contract, tort or otherwise) shall be governed by, the law of the State of Colorado.

71.0 CONSENT TO SERVICE OF PROCESS

Each Party irrevocably consents to service of process by personal delivery, certified mail, postage prepaid or overnight courier. Nothing in this Contract will affect the right of any Party to serve process in any other manner permitted by law.

72.0 WAIVER OF CONSEQUENTIAL DAMAGES

In no event, whether based on contracts, indemnity, warranty, tort (including, as the case may be, a Party's own negligence) or otherwise, shall either Party be liable to the other Party for or with respect to any Claims for consequential, indirect, punitive, exemplary, special or incidental damages, lost profits, lost revenues or otherwise; **provided**, however, that this Section 72.0 shall not limit a Party's right to any termination payments payable under Section 51.11(*Payment of Termination Compensation*) or damages (i) which are fines, penalties or other charges assessed by a Relevant Authority, (ii) arise out of occurrences actually covered by any valid and collectible insurance maintained by either or both Parties or (iii) which are expressly provided for in this Contract.

73.0 EXECUTION IN COUNTERPARTS

This Contract may be executed in any number of counterparts, each of which shall be identical and all of which, taken together, shall constitute one and the same instrument, and the Parties may execute this Contract by signing any such counterpart. Transmission by facsimile of an executed counterpart of this Contract shall be deemed to constitute due and sufficient delivery of such counterpart, to be followed thereafter by an original of such counterpart.

74.0 BINDING EFFECT

This Contract shall be binding upon and inure to the benefit of the Parties and their respective successors and assigns.

75.0 SEVERABILITY

Any provision of this Contract held to be invalid, illegal or unenforceable in any jurisdiction shall, as to such jurisdiction, be ineffective to the extent of such invalidity, illegality or unenforceability without affecting the validity, legality and enforceability of the remaining provisions hereof; and the invalidity of a particular provision in a particular jurisdiction shall not invalidate such provision in any other jurisdiction.

76.0 ENTIRE CONTRACT

This Contract embodies the entire agreement between the Parties relating to the subject matter hereof and supersedes all prior commitments, agreements, representations, and understandings, whether oral or written, relating to the subject matter hereof, and may not be contradicted or varied by evidence of prior, contemporaneous, or subsequent oral agreements or discussions of the Parties hereto. All Attachments referred to herein are incorporated in this Contract by reference and constitute a part of this Contract.

77.0 SURVIVAL

The provisions of this Contract which by their nature are intended to survive the termination, cancellation, completion or expiration of this Contract shall continue as valid and enforceable obligations of the parties notwithstanding any such termination, cancellation, completion or expiration.

END OF PART III – GENERAL TERMS STANDARD